



Republic of the Philippines
Department of Education

BIDDING DOCUMENTS

For

PROCUREMENT OF HUMAN RESOURCES INFORMATION SYSTEM

2026C-ICTS2-002-B5-CB-034

PhP500,000,000.00

Information and Communications Technology Service-
Solutions Development Division

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Glossary of Acronyms, Terms, and Abbreviations

ABC – Approved Budget for the Contract.

BAC – Bids and Awards Committee.

BDS – Bid Data Sheet.

BIR – Bureau of Internal Revenue.

BSP – Bangko Sentral ng Pilipinas.

CDA - Cooperative Development Authority.

CIF – Cost Insurance and Freight.

CIP – Carriage and Insurance Paid.

COS – Contract of Service.

CPI – Consumer Price Index.

DDP – Delivered Duty Paid.

DOLE – Department of Labor and Employment.

DTI – Department of Trade and Industry.

EXW – Ex works.

FCA – “Free Carrier” shipping point.

FOB – “Free on Board” shipping point.

GCC - General Conditions of Contract.

GFI – Government Financial Institution.

GOCC – Government-Owned and/or –Controlled Corporation.

GoP – Government of the Philippines.

GPPB – Government Procurement Policy Board.

HoPE – Head of Procuring Entity.

INCOTERMS – International Commercial Terms.

IRR – Implementing Rules and Regulations.

ITB – Instructions to Bidders.

JO – Job Order.

LCB- Lowest Calculated Bid.

LCRB – Lowest Calculated Responsive Bid.

LGU – Local Government Unit

LoC – Letter of Credit.

MAB – Most Advantageous Bid.

MARB – Most Advantageous Responsive Bid.

MEARB – Most Economically Advantageous Responsive Bid.

MYCA – Multi-Year Contracting Authority.

NFCC – Net Financial Contracting Capacity.

NGA – National Government Agency.

PhilGEPS - Philippine Government Electronic Procurement System.

PSA – Philippine Statistics Authority.

RA No. – Republic Act Number.

SARB – Single Advantageous Responsive Bid.

SCC - Special Conditions of Contract.

SCRB – Single Calculated Responsive Bid.

SEARB – Single Economically Advantageous Responsive Bid.

SEC – Securities and Exchange Commission.

SLCC – Single Largest Completed Contract.

UN – United Nations.

Definition of Terms

Bid – a signed offer, proposal, or quotation submitted by a supplier, manufacturer, distributor, contractor, consultant, or service provider in response to the requirements of the Procuring Entity as stated in the Bidding Documents. (IRR, Section 5[c]).

Bidder – a supplier, manufacturer, distributor, contractor, consultant, and service provider, whether public or private, who submits a Bid in response to the requirements of the Procuring Entity as stated in the Bidding Documents. (IRR, Section 5[d]).

Bidding Documents – the documents issued by the Procuring Entity as the basis for Bids, furnishing all information necessary to prospective Bidder to prepare a Bid for the Goods, Infrastructure Projects, and Consulting Services required by the Procuring Entity. (IRR, Section 5[e]).

Contract – refers to the agreement entered into between the Procuring Entity and the Supplier or Manufacturer or Distributor or Service Provider for procurement of Goods and Services; Contractor for Procurement of Infrastructure Projects; or Consultant or Consulting Firm for Procurement of Consulting Services; as the case may be, as recorded in the Contract Form signed by the parties, including all attachments and appendices thereto and all documents incorporated by reference therein.

Contract Price - the price payable to the Supplier under the Contract for the full and proper performance of its contractual obligations.

Effective Date of the Contract – the date indicated in the contract. However, the Supplier shall commence performance of its obligations only upon receipt of the Notice to Proceed.

Foreign-funded Procurement or Foreign-Assisted Project – refers to the acquisition of Goods, Consulting Services, and the contracting for Infrastructure Projects by the Government of the Philippines which are wholly or partly funded by foreign loans or grants pursuant to a Treaty or International or Executive Agreement.

Framework Agreement – is a procurement strategy which shall be in the nature of an option contract between the Procuring Entity and the Bidder that stipulates the terms and conditions to be applied in subsequent contracts for the procurement of Goods, Infrastructure Projects, and Consulting Services with a single or multiple contractor, manufacturer, supplier, distributor, consultant, and service provider to expand the pool of prospective Bidders, take advantage of economies of scale, minimize the administrative burden of conducting separate procurement activities, and generate time and money savings. (IRR, Section 16.2).

Goods – refer to (i) all items, supplies, and materials, whether in the nature of equipment, furniture, stationery, materials for construction, or personal property of any kind, needed in the transaction of public businesses or in the pursuit of any government undertaking, project or activity; or (ii) general support services which pertain to all types of services except Consulting Services and Infrastructure Projects, such as the repair and maintenance of equipment and furniture, as well as trucking, hauling, janitorial, security, and related or analogous services.

Personnel Services or individual COS or JO engagements do not fall under this definition; (IRR, Section 5[n])

MARB – refers to the award criteria in the procurement of Goods where the considerations for the award of contract are the eligibility of the bidder, the responsiveness of its bid to the technical requirements, and the most advantageous bid in reference to the highest rated offer based on the quality component of the bid.

MEARB – refers to the award criteria in the procurement of Goods where the considerations for the award of contract are the eligibility of the bidder, and the responsiveness of its bid to the technical requirements, and the determination of the most economically advantageous bid in reference to the quality-price ratio allocated to the technical and financial components of the bid.

Online submission – pertains to the submission of the bid for Goods and the bid envelopes containing the technical and financial components of the bid through electronic means or through the electronic bidding facility of the PhilGEPS.

Project – refers to a specific or identified procurement covering Goods, Infrastructure Projects or Consulting Services. A Procurement Project shall be described, detailed, and scheduled in the Project Procurement Management Plan prepared by the agency which shall be consolidated in the procuring entity's Annual Procurement Plan.

Services - means those services ancillary to the supply of the Goods, such as transportation and insurance, and any other incidental services, such as installation, commissioning, provision of technical assistance, training, and other such obligations of the Supplier covered under the Contract.

Supplier – refers to a citizen, or any corporate body or commercial company duly organized and registered under the laws where it is established, habitually established in business and engaged in the manufacture or sale of the merchandise or performance of the general services covered by its Bid. Supplier as used in these Bidding Documents may likewise refer to a manufacturer, distributor, contractor, consultant, or service provider.

Verified Report - the report submitted by the Implementing Unit to the HoPE setting forth its findings as to the existence of grounds or causes for termination and explicitly stating its recommendation for the issuance of a Notice to Terminate.

Section I. Invitation to Bid



Republic of the Philippines
Department of Education
 Bids and Awards Committee V

INVITATION TO BID

FOR THE

Procurement of Human Resources Information System

2026C-ICTS2-002-B5-CB-034

- 1) The Department of Education (DepEd), through the Information and Communications Technology Service-Solutions Development Division (ICTS-SDD), intends to apply the sum of **Philippine Pesos Five Hundred Million and 00/100 (PhP500,000,000.00)** only from the DepEd Computerization Program (DCP) - Strengthening Assistance for Government Infrastructure and Social Programs (SAGIP) 2025 (Continuing Fund), being the Approved Budget for the Contract (ABC), to payments under the contract for the Project, **Procurement of Human Resources Information System**, broken down as follows:

LOT NO.	DETAILS	DELIVERY SCHEDULE	ABC (in PhP)
1 lot	Human Resource Information System (HRIS)	The HRIS shall be implemented within three hundred sixty-five (365) calendar days from receipt of the Notice to Proceed	500,000,000.00
TOTAL			500,000,000.00

Bids received in excess of the ABC shall be automatically rejected at bid opening.

- 2) The DepEd, through the Bids and Awards Committee (BAC) V, now invites bids for the Project, **Procurement of Human Resources Information System**, using the Lowest Calculated Responsive Bid (LCRB). Delivery of the goods is required to be completed **within three hundred (365) calendar days from the receipt of Notice to Proceed (NTP)**, as specified in **Section VI. Schedule of Requirements and Section VII. Technical Specifications of this Bidding Documents.**
- 3) Bidders should have completed within a period of **ten (10) years** from the date of submission and receipt of bids, contracts similar to the Project.
- 4) Bidding will be conducted through competitive bidding procedures using a non-discretionary “pass/fail” criterion as specified in the Implementing Rules and Regulations (IRR) of Republic Act (RA) No. 12009.

- 5) Bidding is restricted to Filipino citizens/sole proprietorships, partnerships, or organizations with at least sixty percent (60%) interest or outstanding capital stock belonging to citizens of the Philippines, and to citizens or organizations of a country the laws or regulations of which grant similar rights or privileges to Filipino citizens, pursuant to RA No. 5183.

The description of an eligible bidder is contained in the Bidding Documents, particularly, in **Section II. Instructions to Bidders**.

- 6) Interested bidders may obtain further information from DepEd BAC V Secretariat at Telephone Nos. 8636-6542 or 8633-9343 and inspect the Bidding Documents at the address given below from Mondays to Fridays, from 8:00 a.m. to 5:00 p.m.
- 7) The Bidding Documents can be purchased on or before the deadline for the submission of bids by either of the following:
- a. A complete set of Bidding Documents may be acquired by interested bidders on **July 2, 2026**, from the BAC V Secretariat at Room M-512, 5th Floor, Mabini Building, DepEd Complex, Meralco Avenue, Pasig City, upon accomplishing a **Bidder's Information Sheet (BIS) (Annex "A")** and payment of the applicable fee for the Bidding Documents to the DepEd Cashier.

Payment in checks should be made payable to DECS OSEC TRUST.

- b. The Bidding Documents fee may also be paid through bank deposit or bank transfer to the DECS OSEC Trust Fund Account by signifying their intent to purchase the Bidding Documents through the email **depedcentral.bacsecretariat@deped.gov.ph** and attaching the fully accomplished BIS (**Annex "A"**). Upon receipt of the BIS, the BAC V Secretariat will send through email the DECS OSEC TRUST Fund Account Number and other instructions for payment. Upon payment, the interested bidder should send the proof of payment through email on or before the deadline for submission of bids. Upon receipt of proof of payment, the BAC Secretariat will send the electronic copy of the bidding documents.

The Bidding Documents may also be downloaded free of charge from the website of the Philippine Government Electronic Procurement System (PhilGEPS) and the DepEd BAC Secretariat microsite <https://www.deped.gov.ph/bac-secretariat/>, provided that bidders shall pay the applicable fee for the Bidding Documents and submit the proof of payment to the BAC V Secretariat not later than the submission of their bids.

The amount of the Bidding Documents shall be ***Philippine Pesos Fifty Thousand and 00/100 (PhP50,000.00)***

- 8) The DepEd BAC V will hold a Pre-Bid Conference on **July 9, 2026, at 10:00 A.M. (Philippine Standard Time)** at the **Office Facility of the former Systems Division, DepEd Complex, Meralco Ave., Pasig City**, which shall be open to prospective bidders.

- 9) Bids must be duly received by the BAC V Secretariat through manual submission at the office address indicated below, on or before **10:00 A.M. (Philippine Standard Time) of July 22, 2026**, at the **Office Facility of the former Systems Division, DepEd Complex, Meralco Ave., Pasig City**.

Late bids shall not be accepted.

- 10) All bids must be accompanied by a bid security in any of the acceptable forms and in the amount stated in **ITB Clause 16.1**.
- 11) Bid opening shall be on or before **10:00 A.M. (Philippine Standard Time) of July 22, 2026**, at the **Office Facility of the former Systems Division, DepEd Complex, Meralco Ave., Pasig City**. Bids will be opened in the presence of the bidders' representatives who choose to attend the activity.

Only two (2) representatives per bidder will be allowed to enter inside the venue.

For purposes of determining a quorum, members of the BAC V, which include the Chairperson or the Vice-Chairperson, may be present, either in person or face-to-face through videoconferencing, webcasting, or similar technology pursuant to Section 42.2, IRR of R.A. No. 12009.

- 12) The DepEd reserves the right to reject any and all bids, declare a failure of bidding, or not award the contract at any time prior to contract award in accordance with Section 70¹ of R.A. No. 12009, without incurring any liability to the affected bidder or bidders.
- 13) For further information, please refer to:

JAMES RONALD G. YBIERNAS

Supervising Administrative Officer

BAC Secretariat Division

Procurement Management Service

Department of Education

Room M-512, 5th Floor, Mabini Building

DepEd Complex, Meralco Avenue, Pasig City

Telephone Nos. 8636-6542 or 8633-9343

Email address: depedcentral.bacsecretariat@deped.gov.ph

BACSD Microsite: <https://www.deped.gov.ph/bac-secretariat/>

BACSD Facebook Page: <https://www.facebook.com/ph.gov.deped.procms.bacsd>

¹ Reservation Clause

14) You may visit the following websites:

For downloading of Bidding Documents:

<https://notices.philgeps.gov.ph/>

<https://www.deped.gov.ph/bac-secretariat/>

Date of Issuance: ***July 2, 2026***

(SGD.)

DR. JEROME T. BUENVIAJE

Assistant Secretary and Chairperson

Section II. Instructions to Bidders

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A. General

1) Scope of Bid

- 1.1 The Procuring Entity, named in the **BDS** invites bids for the Project with Identification Number which shall be specified in the **BDS**.
- 1.2 The Project is composed of number of lots or items as provided in the **BDS**, the details of which are described in Section VII. Technical Specifications.

2) Source of Funds

The Procuring Entity has a budget or has received funds from the Funding Source named in the **BDS**, and in the amount indicated in the **BDS**. It intends to apply part of the funds received for this Project to cover eligible payments under the contract.

3) Corrupt, Fraudulent, Collusive, and Coercive Practices

- 3.1 Unless otherwise specified in the **BDS**, the Procuring Entity, as well as the Bidders and Suppliers, shall observe the highest standard of ethics during the procurement and execution of the contract. In pursuance of this policy, the Procuring Entity:
 - a) defines, for purposes of this provision, the following terms under existing laws, rules, and regulations:
 - i) “corrupt practice” means an act by which officials in the public or private sectors improperly and unlawfully enrich themselves, others, or induce others to do so, by misusing the position in which they are placed, and includes the offering, giving, receiving, or soliciting of anything of value to influence the action of any such official in the procurement process or in contract execution; entering, on behalf of the government, into any contract or transaction manifestly and grossly disadvantageous to the same, whether or not the public officer profited or will profit thereby, and similar acts as provided in RA No. 3019.
 - ii) “fraudulent practice” means a misrepresentation of facts for purposes of influencing a procurement process or the execution of a contract to the detriment of the Procuring Entity, which includes collusive practices among Bidders (prior to or after bid submission) designed to establish bid prices at artificial, non-competitive levels and to deprive the Procuring Entity of the benefits of free and open competition.
 - iii) “collusive practices” means a scheme or arrangement between two or more Bidders, with or without the

knowledge of the Procuring Entity, designed to establish bid prices at artificial, non-competitive levels.

- iv) “coercive practices” means harming or threatening to harm, directly or indirectly, persons, or their property to influence their participation in a procurement process, or affect the execution of a contract;
- v) “obstructive practice” is
 - a) deliberately destroying, falsifying, altering or concealing of evidence material to administrative proceedings or investigation or making false statements to investigators in order to materially impede administrative proceedings or investigation of the Procuring Entity or any foreign government/foreign or international financing institution relative to allegations of a corrupt, fraudulent, coercive, or collusive practice; and/or threatening, harassing, or intimidating any party to prevent the latter from disclosing its knowledge of matters relevant to the administrative proceedings or investigation or from pursuing such proceedings or investigation; or
 - b) acts intended to materially impede the exercise of the inspection and audit rights of the Procuring Entity or any foreign government/foreign or international financing institution herein.
- b) Undertakes to reject a proposal for award upon *prima facie* determination that the Bidder recommended for award has engaged in any of the prohibited practices mentioned in this Clause for purposes of competing for the contract.

3.2 Further, the Procuring Entity will seek to impose the maximum civil, administrative, and/or criminal penalties available under applicable laws on individuals and organizations deemed to be involved in any of the practices mentioned in **ITB Clause 3.1(a)**.

3.3 Furthermore, the Funding Source and the Procuring Entity reserve the right to inspect and audit records and accounts of a Bidder or Supplier in the bidding for and performance of a contract themselves or through independent auditors as reflected in the **GCC Clause 3**.

4) **Conflict of Interest**

4.1 All Bidders found to have conflicting interests shall be disqualified to participate in the procurement at hand, without prejudice to the imposition of appropriate administrative, civil, and criminal sanctions. A Bidder may be considered to have conflicting interests with another Bidder in any of the events described in paragraphs (a) through (c) below and a general conflict of interest in any of the circumstances set out in paragraphs (d) and (f) below:

- a) A Bidder has controlling shareholders or beneficial owners in common with another Bidder;
 - b) A Bidder receives or has received any direct or indirect subsidy from any other Bidder;
 - c) A Bidder has the same legally authorized representative as that of another Bidder for purposes of this bid;
 - d) A Bidder has a relationship, directly or through third parties, that puts them in a position to have access to information about or influence on the bid of another Bidder or influence the decisions of the Procuring Entity regarding this bidding process; This may include a firm or an organization that lends, or temporarily seconds, its personnel to firms or organizations that are engaged in consulting services for the preparation related to procurement for or implementation of the project, if the personnel would be involved in any capacity on the same project;
 - e) A Bidder who participated as a consultant in the preparation of the design or technical specifications of the Goods and related services that are the subject of the bid.
 - f) A Bidder who lends, or temporarily seconds, its personnel to firms or organizations which are engaged in consulting services for the preparation related to procurement for or implementation of the project, if the personnel would be involved in any capacity on the same project.
- 4.2 All Bidding Documents shall be accompanied by an omnibus sworn statement of the Bidder that it is not related, by consanguinity or affinity up to the third level, to the HoPE, Procurement Agent (if engaged), the head of the Project Management Office (PMO), the End-User or Implementing Unit or any members of the Bids and Awards Committee (BAC), Technical Working Group (TWG), and BAC Secretariat.
- 4.3 The Bidder shall also disclose the ultimate beneficial ownership of an entity. Failure to comply shall be a ground for the automatic disqualification of the bid in consonance with Section 59 of the IRR. For this reason, relation to the aforementioned persons within the third civil degree of consanguinity or affinity shall automatically disqualify the Bidder from participating in the procurement of contracts of the Procuring Entity notwithstanding the act of such persons inhibiting themselves from the procurement process. This Clause shall apply to the following persons and affiliates:
- a) In the case of individuals or sole proprietorships, to the Bidders and their spouses;

- b) In the case of partnerships, to the partnership itself and its partners;
- c) In the case of cooperatives, to the cooperative itself and members of the board of directors, general manager or chief executive officer;
- d) A partnership, joint venture or consortium which is blacklisted or which has blacklisted member/s or partner/s, as well as a person or entity who is a member of a blacklisted joint venture or consortium, are, likewise not allowed to participate in any government procurement during the period of suspension or blacklisting; and
- e) In the case of corporations, a single stockholder, together with their relatives up to the third civil degree of consanguinity or affinity, and their assignees, holding at least twenty percent (20%) of the shares therein, its chairperson and president, shall be blacklisted after they have been determined to hold the same controlling interest in a previously blacklisted corporation or in two corporations that have been blacklisted; the corporations of which they are part of shall also be blacklisted.

5) Eligible Bidders

5.1 Only Bids found to be legally, technically, and financially eligible will be evaluated. For procurement of Goods, the following persons shall be eligible to participate in this bidding:

- a) Duly-licensed Filipino citizens or sole proprietorships;
- b) Partnerships duly organized under the laws of the Philippines and of which at least sixty percent (60%) of the interest belongs to citizens of the Philippines;
- c) Corporations duly organized under the laws of the Philippines, and of which at least sixty percent (60%) of the outstanding capital stock belongs to citizens of the Philippines;
- d) Cooperatives duly organized under the laws of the Philippines; and
- e) Persons or entities forming themselves into a Joint Venture (JV), i.e., a group of two (2) or more persons or entities that intend to be jointly and severally responsible or liable for a particular contract: Provided, however, that Filipino ownership or interest of the JV concerned shall be at least sixty percent (60%). For this purpose, Filipino ownership or interest shall be based on the contributions of each of the members of the joint venture as specified in their Joint Venture Agreement (JVA); Provided, further, that the primary purpose of each member of the JV must be similar to or related with the requirements of the project to be bid out.

- 5.2 Foreign Bidders may be eligible to participate when any of the following circumstances exist, as specified in the **BDS**:
- a) When provided for under any treaty or international or executive agreement as provided in Section 4 of the IRR;
 - b) When the foreign supplier is a citizen, corporation, or association of a country, the laws or regulations of which grant reciprocal rights or privileges to citizens, corporations, or associations of the Philippines;
 - c) When the Goods sought to be procured are not available from local suppliers; or
 - d) When there is a need to prevent situations that defeat competition or restrain trade.
- 5.3 GOCCs may be eligible to participate only if they can establish that they (a) are legally and financially autonomous, (b) operate under commercial law, and (c) are not attached agencies of the Procuring Entity.
- 5.4 The Bidder must have completed, within a period of ten (10) years from the submission of the bid, **unless** a shorter period is indicated in the Invitation to Bid and **BDS**, a Single Largest Completed Contract (SLCC) that is similar to the procurement project to be bid, and whose value must be equivalent to at least fifty percent (50%) of the ABC, adjusted to current prices using the Philippine Statistics Authority (PSA) consumer price indices.
- 5.5 If the Procuring Entity determines that it is necessary to adopt a different SLCC requirement to ensure broader Bidder participation while establishing their technical capacity, it may allow Bidders to present a combination of contracts completed within the same period, provided their total value is at least fifty percent (50%) of the ABC, thus:
- a) The Bidder should have completed at least one (1) similar contract amounting to at least 25% of the ABC; and
 - b) The Bidder should have completed other contracts, whether similar or not, with an aggregate amount of at least 25% of the ABC.

For this purpose, the Procuring Entity may clarify in the **BDS** the definition or description of what it considers to be a similar project, which must be germane to the kind, class, or genus of goods or services to be procured, guided by the principle of proportionality and fit-for-purpose approach.

- 5.6 The Bidder must submit a computation of its Net Financial Contracting Capacity (NFCC), which must be at least equal to the ABC to be bid, calculated as follows:

NFCC = [(Current assets minus current liabilities) (15)] minus the value of all outstanding or uncompleted portions of the projects under ongoing contracts, including awarded contracts yet to be started coinciding with the contract to be bid.

The values of the domestic Bidder's current assets and current liabilities shall be based on the latest Audited Financial Statements (AFS) submitted to the BIR not earlier than two (2) years prior to date of bid submission.

For purposes of computing the foreign Bidders' NFCC, the value of the current assets and current liabilities shall be based on their latest AFS prepared in accordance with International Financial Reporting Standards.

If the Bidder opts to submit a committed Line of Credit, it must be at least equal to ten percent (10%) of the ABC to be bid. Provided that, if issued by a foreign bank, it shall be confirmed or authenticated by a local bank.

6) Bidder's Responsibilities

- 6.1 The Bidder or its duly authorized representative shall submit an omnibus sworn statement, in the form prescribed in Section VIII. Philippine Bidding Document Related Forms, as required in ITB Clause 12.1(viii).
- 6.2 Before submitting their bids, the Bidder is deemed to be knowledgeable with all existing laws, decrees, ordinances, acts and regulations of the Philippines which may affect this Project in any way.
- 6.3 The Bidder undertook the following responsibilities:
 - a) Took steps to carefully examine and ensure full understanding and comprehension of the Bidding Documents, its requirements, clauses, and provisions;
 - b) Acknowledged all conditions, local, or otherwise, affecting the implementation of the contract;
 - c) Made an estimate of the facilities available and needed for the contract to be bid, if any;
 - d) Complied with the responsibility to inquire, or secure the Supplemental Bid Bulletin(s) as provided under **ITB Clause 10.4**;
 - e) Ensured that it is not "blacklisted" or barred from bidding by the Government of the Philippines (GoP) or any of its agencies, offices, corporations, or LGUs, including foreign government, or foreign or international financing institutions whose blacklisting rules have been recognized by the GPPB; by itself

or by reason of its relation, membership, association, affiliation, or controlling interest with another blacklisted person or entity;

- f) Ensured that each of the documents submitted in satisfaction with the bidding requirements is an authentic copy of the original, complete, and that all statements and information provided therein are true and correct;
- g) Authorized the HoPE or its duly authorized representative/s to verify all the documents submitted;
- h) Ensured that the signatory is the duly authorized representative of the Bidder, and granted full power and authority to do, execute, and perform any and all acts necessary to participate, submit the bid, to sign, and execute the ensuing contract, accompanied by the duly-notarized Special Power of Attorney, Board, or Partnership Resolution, or Secretary's Certificate, whichever is applicable;
- i) Complied with the disclosure provision under Section 81 and 82 of RA No. 12009 and its IRR, in relation to other provisions of RA 3019;
- j) Complied with existing labor laws and standards, in the case of procurement of services. Moreover, the Bidder undertakes to:
 - i) Ensure the entitlement of workers to wages, hours of work, safety and health and other prevailing conditions of work as established by national laws, rules and regulations; or Collective Bargaining Agreement (CBA); or arbitration award, if and when applicable.

In case there is a finding by the Procuring Entity or the Department of Labor and Employment (DOLE) of underpayment or non-payment of workers' wages and wage-related benefits, the Bidder agrees that the performance security or portion of the contract amount shall be withheld in favor of the complaining workers pursuant to appropriate provisions of RA No. 12009, without prejudice to the institution of appropriate actions under the Labor Code, as amended, and other social legislations.

- ii) Comply with Occupational Safety and Health Standards (OSHS) and correct deficiencies, if any.

In case of imminent danger, injury, or death of the worker, the Bidder undertakes to suspend contract implementation pending clearance to resume from the DOLE Regional Office, in compliance with the Work Stoppage Order; and

- iii) Inform the workers of their conditions of work, labor clauses under the contract specifying wages, hours of

work, and other benefits under prevailing national laws, rules and regulations; or CBA; or arbitration award, if and when applicable, through posting in two (2) conspicuous places in the establishment's premises.

- k) Ensured that it did not give or pay, directly or indirectly, any commission, amount, fee, or any form of consideration, pecuniary or otherwise, to any person or official, personnel, or representative of the government in relation to any procurement project or activity.
- l) Examined all instructions, forms, terms, and specifications in the Bidding Documents.
- m) Determined and complied with all matters pertaining to the contract to be bid, including but not limited to: (i) the location and the nature of this Project; (ii) climatic conditions; (iii) transportation facilities; and (iv) other factors that may affect the cost, duration, and execution or implementation of this Project.
- n) Ensured that all information in the Bidding Documents, including bid or supplemental bid bulletin/s issued, are correct and consistent. The Procuring Entity shall not assume any responsibility regarding erroneous interpretations or conclusions by the prospective or eligible Bidder out of the data furnished by the Procuring Entity.

Failure to observe any of the above responsibilities shall be at the risk of the Bidder concerned.

- 6.4 Further, the Bidder shall bear all costs associated with the preparation and submission of its Bid, and the Procuring Entity shall in no case be responsible or liable for those costs, regardless of the conduct or outcome of the bidding process.

In case of failure of bidding, the Bidding Documents fee may be applied in the re-bidding for the same Project.

- 6.5 Furthermore, the Bidder should be aware that the Procuring Entity will accept bids only from those that have paid the applicable fee for the Bidding Documents at the office indicated in the **Invitation to Bid**.

7) Origin of Goods

Unless otherwise indicated in the **BDS**, there is no restriction on the origin of Goods other than those prohibited by a decision of the United Nations (UN) Security Council taken under Chapter VII of the Charter of the UN.

8) Subcontracts

- 8.1 Unless otherwise specified in the **BDS**, the Bidder may subcontract portions of the Goods to an extent as may be approved by the HoPE

and as stated in the **BDS**. However, the subcontracted portion shall not exceed twenty percent (20%), or a different percentage of the ABC, on a per project basis, as approved by the GPPB.

- 8.2 Subcontracting of any portion of this Project shall not relieve the Bidder from any liability or obligation that may arise from the contract.
- 8.3 Subcontractors must meet the eligibility criteria and submit the same eligibility documents as the general contractor. Failure of a subcontractor to meet the eligibility criteria does not affect the eligibility of the general contractor for the Project. In such case, the portion intended to be subcontracted to the ineligible subcontractor shall be assumed by the general contractor.
- 8.4 Subcontracting arrangement, if allowed, including the time of submission of the eligibility documents of the subcontractor, shall be disclosed in the **BDS**.

B. Contents of Bidding Documents

9) Pre-Bid Conference

- 9.1 If so specified in the **BDS**, a pre-bid conference shall be held either at the Procuring Entity's physical address and/or online through videoconferencing, webcasting, or similar technology, or a combination thereof, on the date indicated therein, to clarify and address the Bidders' questions on the technical and financial components of this Project.
- 9.2 The pre-bid conference shall be held at least twelve (12) calendar days before the deadline for the submission and receipt of bids, but not earlier than seven (7) calendar days from the posting of the **Invitation to Bid** and other bidding documents in the PhilGEPS.
- 9.3 Bidders are highly encouraged to attend the pre-bid conference to fully understand the Procuring Entity's requirements. While non-attendance of the Bidder will in no way prejudice its bid. The Bidder is deemed to know any changes and/or amendments to the Bidding Documents, as may be provided in the Supplemental Bid Bulletin.

The proceedings of the pre-bid conference shall be recorded, and the corresponding minutes shall be prepared not later than five (5) calendar days after the pre-bid conference. The minutes shall be made available to prospective Bidders not later than five (5) days upon written request.

- 9.4 Decisions of the BAC amending any provision of the Bidding Documents shall be issued in writing through a Supplemental Bid Bulletin at least seven (7) calendar days before the deadline for the submission and receipt of bids.

10) Clarification and Amendment of Bidding Documents

- 10.1 Prospective Bidders may request for clarification on and/or interpretation of any part of the Bidding Documents. Such request must be in writing and submitted to the BAC of the Procuring Entity at the address or electronic mail indicated in the **BDS** or through the electronic bidding facility of PhilGEPS, as may be applicable, at least ten (10) calendar days before the deadline set for the submission and receipt of Bids.
- 10.2 The BAC shall respond to the said request by issuing a Supplemental Bid Bulletin duly signed by the BAC Chairperson. It shall be made available to all those who have properly secured the Bidding Documents, at least seven (7) calendar days before the deadline for the submission and receipt of Bids.
- 10.3 Supplemental Bid Bulletins may also be issued upon the Procuring Entity's initiative for purposes of clarifying or modifying any provision of the Bidding Documents not later than seven (7) calendar days before the deadline for submission and receipt of Bids. Any modification to the Bidding Documents shall be identified as an amendment.
- 10.4 Any Supplemental Bid Bulletin issued by the BAC shall also be posted in the PhilGEPS, in any conspicuous place in the premises of the Procuring Entity, and on the website or social media platforms of the Procuring Entity, if available, or such other channels as may be authorized by the GPPB. It shall be the responsibility of all prospective Bidders, including those who have properly secured the Bidding Documents, to inquire and secure Supplemental Bid Bulletins that may be issued by the BAC. However, Bidders who have submitted bids before the issuance of the Supplemental Bid Bulletin must be accordingly informed by the BAC and be allowed to modify or withdraw their bids prior to the deadline for the submission and receipt of bids in accordance with **ITB Clause 21**.

C. Preparation of Bids

11) Language of Bids

The eligibility requirements or statements, the bids, and all other documents to be submitted to the BAC must be in English. If the eligibility requirements or statements, the bids, and all other documents submitted to the BAC are in foreign language other than English, it must be accompanied by a translation of the documents in English. The documents shall be translated by the relevant foreign government agency, the foreign government agency authorized to translate documents, or a registered translator in the foreign Bidder's country. The Bidder shall cause the authentication of the translated documents and shall be authenticated by the appropriate Philippine foreign service establishment or post or the equivalent office having jurisdiction over the foreign Bidder's affairs in the Philippines. The English translation shall govern, for purposes of interpretation of the bid.

However, for Contracting Parties to the Apostille Convention, the documents shall be authenticated through an apostille by the Competent Authority, as defined in Section 20.9.2 of [the] IRR, except for countries identified by the DFA that will still require legalization (red ribbon) by the relevant Embassy or Consulate.

12) Documents Comprising the Bid: Technical and Financial Components

12.1 The first bid envelope shall contain the following technical documents, including the eligibility documents:

- i) PhilGEPS Certificate of Registration (Platinum Membership);
- ii) Statement of SLCC;
- iii) NFCC Computation or committed Line of Credit (LoC);
- iv) Statement of all its ongoing government and private contracts, including contracts awarded but not yet started, if any, whether similar or not similar in nature and complexity to the contract to be bid;
- v) *[if applicable]* JVA) or in the absence of a JVA, duly notarized statements from all potential JV partners stating that they will enter into and abide by the provisions of the JVA in the event that the bid is successful;
- vi) Bid Security in the prescribed form and amount in accordance with **ITB Clause 16**, and validity period under **ITB Clause 15**;
- vii) Technical Specifications, which may include production or delivery schedule, manpower requirements, or after-sales service or parts, if applicable;
- viii) Omnibus Sworn Statement; and
- ix) For foreign Bidders claiming eligibility by reason of their country's extension of reciprocal rights to Filipinos, a certification from the relevant government office of their country stating that Filipinos are allowed to participate in their government procurement activities for the same item or product.

12.2 The second bid envelope shall contain the following financial documents:

- a) Bid Form which includes the Bid price;
- b) Price Schedules in accordance with **ITB Clause 13.1**; and
- c) *[if applicable]* Certificate of Domestic Preference, in accordance with **ITB Clause 25**.

12.3 Whenever necessary, modifications may be made to the foregoing components specifically for major and specialized procurement to suit the particular needs of the Procuring Entity, subject to the approval of the GPPB.

12.4 All bids that exceed the ABC shall not be accepted, unless otherwise indicated in the **BDS**. For foreign-funded procurement, the ABC shall be applied as the ceiling to bid prices provided the following conditions are met:

- a) Bidding Documents are obtainable free of charge on a freely accessible website. If payment of Bidding Documents is required by the Procuring Entity, payment could be made upon the submission of bids.
- b) The Procuring Entity has procedures in place to ensure that the ABC is based on recent estimates made by the responsible unit of the Procuring Entity and that the estimates reflect the quality, supervision and risk, and inflationary factors, as well as prevailing market prices, associated with the types of works or goods to be procured.
- c) The Procuring Entity has trained cost estimators in estimating prices and analyzing bid variances.
- d) The Procuring Entity has established a system to monitor and report bid prices relative to ABC and engineer's/procuring entity's estimate.
- e) The Procuring Entity has established a monitoring and evaluation system for contract implementation to provide feedback on actual total costs of goods and works.

However, the GoP and the foreign government, or foreign or international financing institutions may agree to waive the foregoing conditions.

13) Bid Prices

13.1 The Bidder shall accomplish the Price Schedule Form as prescribed by the Procuring Entity, which may include the following details:

- a) For Goods offered from within the Philippines:
 - i) The price of the Goods quoted EXW (ex works, ex factory, ex warehouse, ex showroom, or off-the-shelf, as applicable);
 - ii) The cost of all customs duties and sales and other taxes already paid or payable;
 - iii) The cost of transportation, insurance, and other costs incidental to delivery of the Goods to their final destination; and

- iv) The price of other (incidental) services, if any, listed in the **BDS**.
 - b) For Goods offered from abroad:
 - i) Unless otherwise stated in the **BDS**, the price of the Goods shall be quoted Delivery Duty Paid (DDP) with the place of destination in the Philippines as specified in the **BDS**. In quoting the price, the Bidder shall be free to use transportation through carriers registered in any eligible country. Similarly, the Bidder may obtain insurance services from any eligible source country.
 - ii) The price of other (incidental) services, if any, listed in the **BDS**.
 - c) For Services, based on the form which may be prescribed by the Procuring Entity, in accordance with existing laws, rules and regulations.
- 13.2 The Bidder shall accomplish the appropriate Price Schedule included herein, stating the unit prices, total price per item, the total amount and the expected countries of origin of the Goods to be supplied under this Project. The Bidder shall fill in rates and prices for all items of the Goods described in the Price Schedule, which shall be presented and computed using up to two (2) decimal places, unless otherwise indicated in the **BDS**.
- 13.3 If the Instructions to Bidders specifically allow partial bids, bids not addressing or providing all of the required items in the Bidding Documents including, where applicable, the Price Schedule, shall be considered non-responsive and shall be automatically disqualified. However, when no price or a zero (0) or a dash (-) is indicated in a required item in the bid form, the same shall be construed that it is being offered for free to the Government, except those required by law or regulations to be provided for.
- The terms Ex Works (EXW), Cost, Insurance and Freight (CIF), Cost and Insurance Paid to (CIP), (DDP), and other trade terms used to describe the obligations of the parties, shall be governed by the rules prescribed in the current edition of the International Commercial Terms (INCOTERMS) published by the International Chamber of Commerce, Paris.
- 13.4 Prices quoted by the Bidder shall be fixed during the Bidder's performance of the contract and not subject to variation or price escalation on any account. A bid submitted with an adjustable price quotation shall be treated as non-responsive and shall be rejected.

14) Bid Currencies

- 14.1 Prices shall be quoted in the following currencies:

- a) For Goods that the Bidder will supply from within the Philippines, the prices shall be quoted in Philippine Peso.
 - b) For Goods that the Bidder will supply from outside the Philippines, the prices may be quoted in the local or tradeable currency/ies accepted by the *Bangko Sentral ng Pilipinas* (BSP), as stated in the **BDS**. However, for purposes of bid evaluation, bids denominated in foreign currencies shall be converted to Philippine currency based on the exchange rate published in the BSP Daily Reference Exchange Rate Bulletin on the day of the bid opening.²
- 14.2 If so allowed in accordance with **ITB Clause 14.1**, the Procuring Entity, for purposes of bid evaluation and comparing the bid prices, will convert the amounts in various currencies in which the bid price is expressed to Philippine Peso at the foregoing exchange rates.
- 14.3 Unless otherwise specified in the **BDS**, payment of the contract price shall be made in Philippine Peso.

15) Bid Validity

- 15.1 Bids shall remain valid for the period specified in the **BDS** which shall not exceed one hundred twenty (120) calendar days from the date of the opening of bids.
- 15.2 Should it become necessary to extend the validity of the bids and the bid securities beyond one hundred twenty (120) calendar days, the Procuring Entity concerned shall request in writing all those who submitted bids for such extension before the expiration date therefor. Bidders, however, shall have the right to refuse to grant such extension without forfeiting their Bid Security.

16) Bid Security

- 16.1 The Bidder shall at its option, submit a Bid Security in the form and amount as stated in the **BDS**, which may include the following:

Form of Bid Security	Amount of Bid Security (Not less than the required percentage of the ABC)
a) Cash or cashier's or manager's check issued by a bank. <i>For biddings conducted by LGUs, the Cashier's or Manager's check may be issued by other banks certified by the BSP as authorized to issue such financial instrument.</i>	Two Percent (2%)

² RA No. 8183, Act to assure uniform value of Philippine coin and currency

Form of Bid Security	Amount of Bid Security (Not less than the required percentage of the ABC)
b) Bank draft/guarantee or irrevocable LoC issued by a bank: Provided, however, that it shall be confirmed or authenticated by a local bank, if issued by a foreign bank. <i>For biddings conducted by LGUs, Bank Draft/ Guarantee, or Irrevocable Letter of Credit may be issued by other banks certified by the BSP as authorized to issue such financial instrument.</i>	Five Percent (5%)
c) Surety bond callable upon demand issued by a surety or insurance company duly certified by the Insurance Commission as authorized to issue such security.	Five Percent (5%)
d) Bid Securing Declaration	Not Applicable

The Bid Security shall be denominated in Philippine Peso and posted in favor of the Procuring Entity.

- 16.2 The Bid Security should be valid for the period specified in the **BDS**. Any bid not accompanied by an acceptable Bid Security shall be considered as non-responsive and rejected by the Procuring Entity.
- 16.3 In no case shall the Bid Security be returned later than the expiration of the bid validity period indicated in the **BDS**, unless it has been extended. In case the Bidder is required to extend its bid validity, the Bidder may, at its discretion, substitute a Bid Securing Declaration for the extended period as a replacement of its Bid Security; Provided, that the option to substitute is indicated in the **BDS**.
- 16.4 Upon signing and execution of the contract pursuant to **ITB Clause 30**, and the posting of the performance security pursuant to **ITB Clause 31**, the Bid Security of the successful Bidder will be discharged, but in no case later than its validity period as indicated in the **ITB Clause 16.2**.
- 16.5 The Bid Security may be forfeited based on any of the following grounds, as provided under Rule VIII, X, XI, and XXI of the IRR.
 - a) if a Bidder:
 - i) Withdraws its bid during the period of bid validity specified in **ITB Clause 15**;

- ii) Does not accept the correction of errors pursuant to **ITB Clause 26.5(b)** (arithmetical error);
 - iii) Has a finding against the veracity of any of the documents submitted as stated in **ITB Clause 27.2**;
 - iv) Submits eligibility requirements containing false information or falsified documents;
 - v) Submits bids that contain false information or falsified documents, or the concealment of such information in the bids to influence the outcome of eligibility screening or any other stage of the public bidding;
 - vi) Allows the use of one's name, or uses the name of another for purposes of public bidding;
 - vii) Refuses to accept an award or enter into contract with the Government without justifiable cause, after the Bidder had been adjudged as having submitted the Lowest Calculated Responsive Bid (LCRB), Most Economically Advantageous Responsive Bid (MEARB), or Most Advantageous Responsive Bid (MARB);
 - viii) Refuses or fails to post the required performance security within the prescribed time;
 - ix) Refuses to clarify or validate in writing its bid during post-qualification within a period of seven (7) calendar days from receipt of the request for clarification;
 - x) Has any documented attempt by a Bidder to unduly influence the outcome of the bidding in its favor; or
 - xi) Commits other acts that tend to defeat the purpose of the competitive bidding, Competitive Dialogue, Unsolicited Offer with Bid Matching and Limited Source Bidding, such as but not limited to habitually withdrawing from bidding, submitting late Bids or patently insufficient bid, for at least three (3) times within a year, except for valid reasons.
- b) If a winning Bidder:
- i) Fails to sign the contract in accordance with **ITB Clause 30**;
 - ii) Fails to furnish performance security in accordance with **ITB Clause 31**; or
 - iii) Fails to enter into joint venture after the bid is declared successful, in the case of potential JV partners.

17) Format and Signing of Bids

- 17.1 Bidders shall submit their bids through their duly authorized representative using the appropriate forms provided in **Section VIII. Philippine Bidding Document Related Forms** on or before the deadline specified in **ITB Clause 19** in two (2) separate sealed bid envelopes which shall be submitted simultaneously, whether through manual or online submission. The first shall contain the technical component of the bid, including the eligibility requirements under **ITB Clause 12**, and the second shall contain the financial component of the bid. This shall also be observed for each lot in the case of lot procurement.
- 17.2 Forms as mentioned in **ITB Clause 17.1** must be completed without any alterations to their format. No substitute form shall be accepted.
- 17.3 Each and every page of the Bid Form, including the Price Schedule, under **Section VIII** hereof, shall be signed by the duly authorized representative/s of the Bidder. Failure to do so shall be a ground for the rejection of the bid.
- 17.4 Any insertions, erasures, or overwriting shall be valid only if they are signed or initialed by the duly authorized representative/s of the Bidder.

18) Sealing and Marking of Bids

- 18.1 Bidders shall enclose their technical documents described in **ITB Clause 12** in one sealed envelope marked “TECHNICAL COMPONENT”, and the financial component in another sealed envelope marked “FINANCIAL COMPONENT”, sealing them all in an outer envelope marked “BID”.
- 18.2 The Bid as indicated in the Bidding Documents shall be typed or written in ink and shall be signed by the Bidder or its duly authorized representative/s.
- 18.3 All envelopes shall:
- a) contain the name of the contract to be bid in capital letters;
 - b) bear the name and address of the Bidder in capital letters;
 - c) be addressed to the Procuring Entity’s BAC in accordance with **ITB Clause 1.1**;
 - d) bear the specific identification of this bidding process indicated in the **ITB Clause 1.1**; and
 - e) bear a warning “DO NOT OPEN BEFORE...” the date and time for the opening of bids, in accordance with **ITB Clause 19**.
- 18.4 For manually submitted bid envelopes that are not properly sealed and marked, as required in the Bidding Documents, the same shall be accepted; Provided, That the Bidder or its duly authorized representative shall acknowledge such condition of the bid as

submitted. On the other hand, unsealed or unmarked bid envelopes, or bids that cannot be opened or corrupted in case of online submission, shall be rejected.

The BAC shall assume no responsibility for misplaced or lost contents of the improperly sealed or marked bid, or for its premature opening.

D. Submission and Opening of Bids

19) Deadline for Submission of Bids

Bids must be received by the Procuring Entity's BAC at the address indicated in the **Invitation to Bid**, or through the e-bidding facility of the PhilGEPS on or before the date and time indicated in the **BDS**.

20) Late Bids

Bids, including the eligibility requirements, submitted after the deadline shall be rejected by the BAC. The BAC shall record in the Minutes of the Meeting the submission and opening of bids, the Bidder's name, its representative, and the time the late bid was submitted.

21) Modification and Withdrawal of Bids

21.1 Bidders may modify their bids before the deadline for the submission and receipt of bids.

- a) For manual submission and receipt of bids, the Bidders shall not be allowed to retrieve their original bid but shall only be allowed to submit the bid modification by sending another bid, equally sealed, properly identified, linked to their original bid, marked as a "modification," thereof, and stamped "received" by the BAC. Bid modifications received after the applicable deadline shall not be considered and shall be returned to the Bidder unopened.
- b) For online submission of bids, the Bidders shall not be allowed to retrieve their original Bid, but shall only be allowed to submit the bid modification, send another Bid equally secured, properly identified labelled as a "modification" of the one previously submitted. The time indicated in the latest bid receipt page generated shall be the official time of submission. Bids modification submitted after the applicable deadline shall not be accepted.

21.2 Bidders may withdraw their bids in writing before the deadline for submission and receipt of bids. Withdrawal of bids after the applicable deadline shall be subject to appropriate sanctions as prescribed in the IRR.

Bidders may also express their intention not to participate in the bidding in writing, which should be received by the BAC before the deadline for submission and receipt of bids. Bidders that withdraw

their bids shall no longer be allowed to submit another bid for the same contract, directly or indirectly.

- 21.3 No bid may be modified after the deadline for submission and receipt of bids. Further, no bid may be withdrawn in the interval between the deadline for submission and receipt of bids, and the expiration of bid validity specified by the Bidder in the Financial Bid Form. Withdrawal of bid during this interval shall result in the forfeiture of the Bidder's Bid Security pursuant to **ITB Clause 16.5**, and the imposition of administrative sanctions as prescribed by RA No. 12009, and without prejudice to the imposition of civil and criminal sanctions as provided under applicable laws.
- 21.4 Alternative Bids shall be rejected. For this purpose, Alternative Bid shall pertain to an offer made by a Bidder in addition or as a substitute to its original bid, which may be included as part of its original bid or submitted separately. A bid with options shall likewise be considered an Alternative Bid regardless of whether said bid proposal is contained in a single envelope or submitted in two (2) or more separate bid envelopes.
- 21.5 Each Bidder shall submit only one Bid, either individually or as a partner in a JV. Bidder who submits or participates in more than one bid (other than as a subcontractor if a subcontractor is permitted to participate in more than one bid) will cause all the proposals with the Bidder's participation to be disqualified. This shall be without prejudice to any applicable criminal, civil, and administrative penalties that may be imposed upon the persons and entities concerned.

22) Opening and Preliminary Examination of Bids

- 22.1 The BAC shall open the bids in public, immediately after the deadline for submission and receipt of bids, as specified in the **BDS**. In case the Bids cannot be opened as scheduled due to justifiable reasons, the BAC shall take custody of the submitted Bids and reschedule the opening of Bids on the next working day or at the soonest possible time, through the issuance of a notice of postponement to be posted on the PhilGEPS website and the website of the Procuring Entity concerned.
- 22.2 The manner of opening of the bids for Goods shall depend on the award criterion to be adopted as follows:
- a) For LCRB and MEARB, the BAC shall open the technical and financial proposals on the same day; and
 - b) For MARB, only the technical proposals shall be opened on the same day while the financial proposals shall remain unopened and shall be kept securely by the BAC until the specified time of their opening as indicated in the **BDS**. Only the financial

proposals of the Bidders who have met the highest technical score for Most Advantageous Bid (MAB) shall be opened.

- 22.3 The Procuring Entity shall prepare the minutes of the proceedings of the bid opening that shall include, as a minimum: (a) names of Bidders, their bid price (per lot, if applicable, and/or including discount, if any), bid security, findings of preliminary examination, and whether there is a withdrawal or modification; and (b) attendance sheet. The BAC members shall sign the abstract of bids as read.
- 22.4 The Bidders or their duly authorized representatives may attend the opening of bids. The BAC shall ensure the integrity, security, and confidentiality of all submitted bids. The Abstract of Bids, as read, and the minutes of the bid opening shall be made available to the public, upon written request and payment of a specified fee to recover the cost of materials.
- 22.5 To ensure transparency and accurate representation of the bid submission, the BAC Secretariat, shall notify in writing all Bidders whose bids it has received through its PhilGEPS-registered physical address or official e-mail address. The said notice shall be issued within seven (7) calendar days from the date of the bid opening.

E. Evaluation and Comparison of Bids

23) Process to be Confidential

- 23.1 Members of the BAC, its staff and personnel, Secretariat, and TWG, as well as Observers, are prohibited from making or accepting any communication with any Bidder regarding the evaluation of their bids until the issuance of the Notice of Award, unless otherwise allowed in **ITB Clause 24**.
- 23.2 Any effort by a Bidder to influence the Procuring Entity in its decision in respect of bid evaluation, bid comparison or contract award will result in the rejection of the bid.

24) Clarification of Bids

To assist in the evaluation, comparison, and post-qualification of the bids, the Procuring Entity may ask in writing any Bidder for a clarification of its bid. All responses to requests for clarification shall be in writing. Any clarification submitted by a Bidder in respect to its bid that is not in response to the request of the Procuring Entity shall not be considered.

25) Domestic Preference

- 25.1 The Procuring Entity shall give priority and preference to Philippine products and services. The preference and priority for Philippine products shall be guaranteed at all levels of the procurement process, including raw materials, ingredients, supplies, or fixtures.

- 25.2 For a period of ten (10) years from the effectivity of RA No. 11981 or the “*Tatak Pinoy* (Proudly Filipino) Act,” and for Philippine products and services in sectors and economic activities covered by the prevailing *Tatak Pinoy* Strategy, the Procuring Entity is mandated to award the contract to the domestic Bidder for Philippine products and services in sectors and economic activities covered by the prevailing *Tatak Pinoy* Strategy (TPS).

Domestic Bidder, for purposes of this provision, refers to any person or entity offering unmanufactured articles, materials, or supplies grown or produced in the Philippines, or manufactured articles, materials, or supplies manufactured or to be manufactured in the Philippines substantially from articles, materials, or supplies that are or will be produced or manufactured in the Philippines, as the case may be.

- 25.3 After the said ten-year period, the domestic preference shall be subject to a margin of preference to be determined by the *Tatak Pinoy* Council which shall not be lower than fifteen percent (15%).
- 25.4 For products and services governed by the TPS, the domestic preference in procurement shall be in accordance with the IRR or guidelines issued for the *Tatak Pinoy Act*.
- 25.5 The Procuring Entity shall award the Project to the domestic Bidder if the bid is not more than twenty-five percent (25%) in excess of the lowest foreign bid. The margin of preference provided herein shall be subject to periodic review and adjustment by the GPPB, as may be necessary.
- 25.6 A Domestic Bidder can only claim preference if it secures from the appropriate agency a certification that the articles forming part of its bid are substantially composed of articles, materials, or supplies grown, produced, or manufactured in the Philippines.
- 25.7 The preference herein established may be waived should any of the following conditions be present as provided in the **BDS**:
- a) Where domestic production is insufficient or unavailable in the required commercial quantities;
 - b) Where the specific or desired quality is not met;
 - c) Where domestic preference will result in inconsistencies with the Philippines’ obligations under treaty or international or executive agreements; or
 - d) Other analogous circumstances.

26) Detailed Evaluation and Comparison of Bids

- 26.1 The Procuring Entity’s evaluation of bids shall be based on the bid price quoted in the Bid Form, which includes the Price Schedule.

26.2 The Procuring Entity will undertake the detailed evaluation and comparison of the bids which have passed the opening and preliminary examination of bids, pursuant to **ITB Clause 22**, to determine the Lowest Calculated Bid (LCB), Most Economically Advantageous Bid (MEAB), and MAB.

26.3 The award criterion shall be determined as follows:

- a) For LCB
 - i) The detailed evaluation of the financial component of the bids, to establish the correct calculated prices of the bids; and
 - ii) The ranking of the total bid prices as so calculated from the lowest to the highest, where the bid with the lowest price shall be identified as the LCB.
- b) For MEAB, the BAC shall evaluate the quality and price proposals to determine the Most Economically Advantageous Bid (MEAB) using the following steps:
 - i) The quality proposal together with the price proposal shall be considered in the evaluation of bids. The quality proposals shall be evaluated first using the criteria in the **BDS**. The price proposals of the bids that meet the minimum quality score shall then be opened.
 - ii) The price and quality proposals shall be given corresponding weights with the price proposal given a minimum weight of fifteen percent (15%) up to a maximum of forty percent (40%). The weight of the quality criteria shall be adjusted accordingly such that their total weight in percent together with the weight given to the price proposal shall be equal to one hundred percent (100%).
 - iii) To further promote green public procurement, the sustainability of products, or materials with green specifications shall be given greater weight in the evaluation of bids. As approved by the BAC, the exact weights shall be indicated in the **BDS**. The BAC shall rank the Bidders in descending order based on the combined numerical ratings of their quality and price proposals. The Bidder with the best overall score using the quality-price ratio shall be referred to as the MEAB.
 - iv) The HoPE shall approve or disapprove the recommendations of the BAC within two (2) calendar days after receipt of the results of the evaluation from the BAC.
- c) For MAB

- i) BAC shall evaluate the quality proposals to determine the MAB using the quality components. The quality components shall be assessed on the basis of the criteria with corresponding numerical weights indicated in the **BDS** to determine the Bidder with the highest technical rating.
- ii) The second bid envelope of the Bidder obtaining the highest technical rating shall be opened. If the financial proposal is equal to or lower than the ABC, the bid shall be accepted and determined as the MAB; otherwise, the same shall be rejected and the Bidder will be disqualified.

26.4 In order to eliminate bias in evaluating the quality proposals, it is recommended that the highest and lowest scores for each Bidder for each criterion shall not be considered in determining the average scores of the Bidders, except when the evaluation is conducted in a collegial manner.

26.5 The BAC shall immediately conduct a detailed evaluation of all bids using non-discretionary criteria in considering the following:

- a) Completeness of the bid. Unless the **BDS** allows partial bids, bids not addressing or providing all of the required items in the **BDS**, shall be considered non-responsive and, thus, automatically disqualified.

However, when no price or a zero (0) or a dash (-) is indicated in a required item in the bid form, the same shall be construed that it is being offered for free to the Government, except those required by law or regulations to be provided for; and

- b) Arithmetical corrections. The BAC shall apply arithmetical corrections on computational errors and omissions to enable proper comparison of all eligible bids. Bid corrections may also be considered if expressly allowed in the **BDS**. Any adjustment shall be calculated in monetary terms to determine the calculated prices.

26.6 Based on the detailed evaluation of bids, those that comply with the abovementioned requirements shall be ranked in the ascending order of their total calculated bid prices, as evaluated and corrected for computational errors, discounts and other modifications, to identify the LCB, MEAB, or MAB. Total calculated bid prices, as evaluated and corrected for computational errors, discounts and other modifications, which exceed the ABC shall not be considered, unless otherwise indicated in the **BDS**.

26.7 The BAC shall evaluate all bids on an equal footing to ensure fair and competitive bid comparison. For this purpose, all Bidders shall be required to include in their bids the cost of all taxes, such as, but not limited to, value added tax (VAT), income tax, local taxes, and other fiscal levies and duties, whichever is applicable, as itemized in the bid form and reflected in the detailed estimates. Such bids,

including said taxes, shall be the basis for bid evaluation and comparison.

- 26.8 If so indicated pursuant to **ITB Clause 1.2**, bids may be submitted for individual lots or for any combination thereof, provided that all bids and combinations of bids shall be received by the same deadline and opened and evaluated simultaneously so as to determine the Bid or combination of Bids offering the lowest calculated cost to the Procuring Entity. Bid prices quoted shall correspond to all items specified for each lot and to all quantities specified for each item of a lot. Bid Security as required by **ITB Clause 16** shall be submitted for each contract (lot) separately. The basis for evaluation of lots is specified in **BDS Clause 26.5**.
- 26.9 In order to eliminate bias in evaluating the quality proposals, it is recommended that the highest and lowest scores for each Bidder for each criterion shall not be considered in determining the average scores of the Bidders, except when the evaluation is conducted in a collegial manner.

27) Post-Qualification

- 27.1 The BAC shall determine to its satisfaction whether the Bidder that is evaluated as having submitted the LCB, MEAB, or MAB as the case may be, complies with and is responsive to all the requirements and conditions specified in **ITB Clauses 5, 12.1, and 12.2**. The Bidder, within five (5) calendar days from receipt of notice from the BAC that it submitted the LCB, MEAB, or MAB shall submit all the eligibility documents supporting its PhilGEPS Certificate of Registration (Platinum Membership), its latest income and business tax returns filed for the preceding quarter which should not be earlier than two (2) quarters from the date of submission and receipt of bid, and other appropriate licenses and permits required by law and stated in the **BDS**.
- 27.2 Failure to submit any of the post-qualification requirements on time, or a finding against the veracity thereof, shall disqualify the Bidder for award; Provided, That in the event that a finding against the veracity of any of the documents submitted is made, it shall cause the forfeiture of the Bid Security.
- 27.3 The determination shall be based upon an examination of the documentary evidence of the Bidder's qualifications submitted pursuant to **ITB Clauses 12.1 and 12.2**, as well as other information as the Procuring Entity deems necessary and appropriate, using a non-discretionary "pass/fail" criterion, which shall be completed within a period of twelve (12) calendar days.
- 27.4 If the BAC determines that the Bidder with the LCB, MEAB, or MAB fails to meet the post-qualification criteria, it shall immediately notify the said Bidder in writing of its post-disqualification and the grounds for such determination.

- 27.5 Immediately after the BAC has notified the first Bidder of its post-disqualification, and notwithstanding any pending request for reconsideration thereof, the BAC shall initiate and complete the same post-qualification process on the Bidder with the second LCB, MEAB, or MAB. If the second Bidder passes the post-qualification and the request for reconsideration of the first Bidder has been denied, the second Bidder shall be post-qualified as the Bidder with the LCB, MEAB, or MAB.
- 27.6 If the second Bidder, however, fails the post-qualification, the procedure for post-qualification shall be repeated for the Bidder with the next LCB, MEAB, or MAB and so on, until the LCRB, MEARB, MARB, as the case may be, is determined for award, subject to the procedure of Notice and Execution of Award.
- 27.7 If the BAC determines that the Bidder with the LCB, MEAB, or MAB passes all the criteria for post-qualification, it shall declare the said bid as the LCRB, MEARB, MARB, Single Calculated Responsive Bid (SCRB), Single Economically Advantageous Responsive Bid (SEARB), or Single Advantageous Bid (SARB).
- 27.8 Within a period not exceeding ten (10) calendar days from the determination and declaration through a resolution by the BAC of the LCRB, MEARB, MARB, SCRБ, SEARB, or SARB, as the case may be, and the recommendation of the award, the HoPE or its duly authorized representative shall approve or disapprove the said recommendation.
- 27.9 In case of approval, the HoPE or its duly authorized representative shall immediately issue the Notice of Award to the Bidder with the LCRB, MEARB, MARB, SCRБ, SEARB, or SARB, as the case may be.

In the event that the approving authority shall disapprove the resolution on the award of the contract, such disapproval shall be based only on valid, reasonable, and justifiable grounds to be expressed in writing. A copy of the decision disapproving the resolution shall be furnished to the BAC and the Bidder.

28) Reservation Clause

- 28.1 Notwithstanding the eligibility or post-qualification of a Bidder and without incurring any liability, the HoPE or its duly authorized representative at any stage of the procurement, reserves the right to review its qualifications, reject any and all bids, declare a failure of bidding or not award the contract in the following situations:
- a) If it has reasonable grounds to believe that a misrepresentation has been made by the said Bidder, or that there has been a change in the Bidder's capability to undertake the project from the time it submitted its eligibility requirements.
 - b) Should such review uncover any misrepresentation made in the eligibility and bidding requirements, statements or documents, or any changes in the situation of the Bidder which will

adversely affect its capability to undertake the Project so that it no longer meets the prescribed eligibility or bid evaluation criteria, the Procuring Entity shall consider the said Bidder as ineligible and disqualify it from participating further in the bidding process or being awarded the contract.

28.2 Based on any of the following grounds, the Procuring Entity reserves the right to reject any and all bids, declare a Failure of Bidding at any time prior to the contract award, or not to award the contract, without thereby incurring any liability, and make no assurance that a contract shall be entered into as a result of the bidding:

- a) If there is *prima facie* evidence of collusion between appropriate public officers or employees of the Procuring Entity, or between the BAC and any of the Bidders, or if the collusion is between or among the Bidders themselves, or between a Bidder and a third party, including any act which restricts, suppresses or nullifies, or tends to restrict, suppress or nullify competition or influences or tends to influence the bidding process;
- b) If the BAC is found to have failed in complying with the applicable law or in following the prescribed bidding procedures; or
- c) If there are any justifiable and reasonable ground where the award of the contract will not redound to the benefit of the government, in instances where (i) the physical and economic conditions have significantly changed so as to render the Project no longer economically, financially, or technically feasible as determined by the HoPE; (ii) the Project is no longer necessary as determined by the HoPE; and (iii) the source of funds for the Project has been withheld or reduced through no fault of the Procuring Entity.

F. Award of Contract

29) Contract Award

- 29.1 Subject to **ITB Clause 27**, the HoPE or its duly authorized representative shall award the contract to the Bidder whose bid has been determined to be the LCRB, MEARB, MARB, SCRB, SEARB, or SARB, as the case may be.
- 29.2 Prior to the expiration of the period of bid validity, the Procuring Entity shall notify the successful Bidder in writing that its bid has been accepted, through a Notice of Award duly received by the Bidder or its representative personally or sent by registered mail or electronically, receipt of which must be confirmed in writing within two (2) days by the Bidder with the LCRB, MEARB, MARB, SCRB, SEARB, or SARB, as applicable and submitted personally or sent by registered mail or electronically to the Procuring Entity.

- 29.3 Within ten (10) calendar days from receipt by the winning Bidder of the Notice of Award, the following conditions should be complied with before the contract may be awarded:
- a) Submission of the following documents:
 - i) Valid JVA, if applicable; or
 - ii) The SEC Certificate of Registration of the foreign corporation, if applicable.
 - b) Posting of the performance security in accordance with **ITB Clause 31**; and
 - c) Signing of the contract as provided in **ITB Clause 30**.
- 29.4 At the time of contract award, the Procuring Entity shall not increase or decrease the quantity of goods originally specified in **Section VI. Schedule of Requirements**.

30) Signing of the Contract

- 30.1 Within ten (10) calendar days from receipt of the Notice of Award, the winning Bidder shall (i) post the required performance security, sign and date the contract, and return it to the Procuring Entity.
- 30.2 The Procuring Entity shall enter into a contract with the successful Bidder within the same ten (10) calendar day period, provided that all the documentary requirements are complied with.
- 30.3 The following documents shall form part of the contract:
- a) Contract Agreement;
 - b) Bidding Documents;
 - c) Winning Bidder's bid, including the technical and financial proposals, and all other documents/statements submitted (*e.g.*, Bidder's response to request for clarifications on the bid), including corrections to the bid, if any, resulting from the Procuring Entity's bid evaluation;
 - d) Performance Security;
 - e) Notice of Award of Contract; and
 - f) Other contract documents that may be required by existing laws and/or specified in the **BDS**.

31) Performance Security

- 31.1 To guarantee the faithful performance of its obligations under the contract, the winning Bidder shall post a performance security prior

to the signing of the contract. Furthermore, the successful Bidder shall be required to update the performance security posted before the issuance of an amendment to order if any.

- 31.2 Sectors enumerated under Section 76.1³ of the IRR may be allowed to post a Performance Securing Declaration (PSD) as specified in the **BDS**.
- 31.3 The performance security shall be in any form selected by the Procuring Entity in the amount indicated in the **BDS**, which shall not be less than the percentage of the total contract price in accordance with the following price schedule:

Form of Performance Security	Amount of Performance Security (Not less than the Percentage of the Total Contract Price)
a. Cash or Cashier's or Manager's check issued by a bank. <i>For biddings conducted by LGUs, the Cashier's or Manager's check may be issued by other banks certified by the BSP as authorized to issue such financial instrument.</i>	Five percent (5%)
b. Bank draft or guarantee or irrevocable Letter of Credit issued by a local bank. If issued by a foreign bank, it shall be confirmed or authenticated by a local bank.	Five percent (5%)
c. Surety bond callable upon demand issued by a surety or insurance company duly certified by the IC as authorized to issue such security.	Thirty Percent (30%)

³ Section 76.1 The GPPB, once data is available from relevant agencies, shall maintain a registry of entities belonging to the following sectors:

- a) Farmers, as certified by the Department of Agriculture (DA);
- b) Fisherfolk as certified by the Bureau of Fisheries and Aquatic Resources (BFAR);
- c) Persons with disabilities as certified by the National Council for Disability Affairs (NCDA) pursuant to RA No. 7277, otherwise known as the Magna Carta for Disabled Persons, as amended;
- d) Solo parents as certified by the Department of Social Welfare and Development (DSWD);
- e) Microenterprises and social enterprises as certified by the MSMED Council;
- f) Startups, Spin-offs, and other forms of entity involved in Science, Technology, and Innovation (DOST), as may be applicable;
- g) Cooperatives duly registered with the CDA pursuant to RA No. 6938, otherwise known as the Cooperative Code of the Philippines, as amended; and
- h) Other relevant sectors as may be determined by the GPPB to ensure inclusivity and diversity in the procurement process.

- 31.4 The performance security shall be denominated in Philippine Peso and posted in favor of the Procuring Entity, which shall be forfeited in the event it is established that the winning Bidder is in default in any of its obligations under the contract.

32) Notice to Proceed

The Procuring Entity shall issue the Notice to Proceed to the winning Bidder not later than three (3) calendar days from the date of approval of the contract by the appropriate signatories. All notices called for by the terms of the contract shall be effective only at the time of receipt thereof by the successful Bidder.

33) Protest Mechanism

Decisions of the BAC in all stages of procurement may be protested to the HoPE in accordance with Section 83 of the IRR.

Section III. Bid Data Sheet

Bid Data Sheet

ITB Clause	
1.1	The Procuring Entity is the Department of Education, through its Information and Communications Technology Service – Solutions Development Division (ICTS-SDD). The Procurement Project title is Procurement of Human Resources Information System. The identification number of the Procurement Project is 2026C-ICTS2-002-B5-CB-034.
1.2	The Project is composed of one (1) Lot. The details of which are described in Section VII. Technical Specifications.
2	The Funding Source is the General Appropriations Act (GAA) Fiscal Year (FY) 2025 particularly, the allotment for the DepEd Computerization Program (DCP) - Strengthening Assistance for Government Infrastructure and Social Programs (SAGIP) 2025 (Continuing Fund), in the amount of Philippine Pesos Five Hundred Million and 00/100 (PhP500,000,000.00).
3.1	No further instructions.
5.2	Foreign Bidders, except those falling under ITB Clause 5.2(b) , may not participate in this Project.
5.4	The Bidder must have completed, within a period of ten (10) years from the submission of the bid, a Single Largest Completed Contract (SLCC) that is similar to the procurement project to be bid, and whose value must be equivalent to at least fifty percent (50%) of the ABC, adjusted to current prices using the Philippine Statistics Authority (PSA) consumer price indices.
5.5	A similar contract shall refer to: Development, Supply, Delivery, and Implementation of a Human Resources Information System (HRIS).
7	No further instructions.
8.1	Subcontracting is not allowed.
8.4	Not Applicable.
9.1	The Procuring Entity will hold a pre-bid conference for this Project on July 9, 2026, at 10:00 A.M. (Philippine Standard Time) at the Office Facility of the former Systems Division, DepEd Complex, Meralco Ave., Pasig City , which shall be open to prospective Bidders.

ITB Clause						
10.1	The Procuring Entity’s address is: ASec. Jerome T. Buenviaje Bids and Awards Committee V Department of Education Room M-512, 5th Floor, Mabini Building DepEd Complex, Meralco Avenue, Pasig City Telephone Numbers: 8636-6542 or 8633-9343 Email address: depedcentral.bacsecretariat@deped.gov.ph BACSD Microsite: https://www.deped.gov.ph/bac-secretariat/ BACSD Facebook Page: https://www.facebook.com/ph.gov.deped.procms.bacsd					
12.4	The ABC is Philippine Pesos Five Hundred Million and 00/100 (PhP500,000,000.00). Any bid with a financial component exceeding the ABC for each Lot shall not be accepted.					
13.1(a)(iv)	No incidental services are required.					
13.1(b)(i)	Not Applicable.					
13.1(b)(ii)	Not Applicable.					
13.2	No further instructions.					
14.1(b)	The Bid prices for Goods supplied from outside of the Philippines shall be quoted in Philippine Peso.					
14.3	No further instructions.					
15.1	Bids shall remain valid for one hundred twenty (120) calendar days from the date of the opening of bids.					
16.1	The Bid Security shall be in the form of a Bid Securing Declaration, or any of the following: <table><tr><th>FORM</th><th>AMOUNT</th></tr><tr><td>Cash or cashier’s check or manager’s check issued by a bank</td><td>2% of the ABC or PhP10,000,000.00</td></tr></table>		FORM	AMOUNT	Cash or cashier’s check or manager’s check issued by a bank	2% of the ABC or PhP10,000,000.00
FORM	AMOUNT					
Cash or cashier’s check or manager’s check issued by a bank	2% of the ABC or PhP10,000,000.00					

ITB Clause	
	Bank draft/guarantee or irrevocable letter of credit issued by a bank; Provided, however, that it shall be confirmed or authenticated by a local bank, if issued by a foreign bank 5% of the ABC or PhP25,000,000.00
	Surety bond callable upon demand issued by a surety or insurance company duly certified by the Insurance Commission as authorized to issue such security. If the bidder will choose this form, the certification issued by the Insurance Commission shall be submitted together with the surety bond. 5% of the ABC or PhP25,000,000.00
16.2	The Bid Security shall be valid for one hundred twenty (120) calendar days from bid opening.
16.3	Substitution of the bid security is not allowed.
18	Bidder shall submit three (3) hard/paper copies per bid component: one (1) original and two (2) copies; and two (2) USB Flash Drives containing electronic and/or scanned copies: one (1) Technical Component and one (1) Financial Component. Bidders are requested to provide tabs for easy identification of the documents. The electronic copy of the Price Schedule shall be both in MS Excel format (.xlsx) and scanned PDF/A format (.pdf). When there is any discrepancy between the hard/paper copies and the copies contained and as presented in the USB Flash Drives, the hard/paper copies shall prevail. Bidders shall enclose their original technical documents in a sealed envelope marked as "ORIGINAL – TECHNICAL COMPONENT". Two (2) additional copies thereof shall be similarly sealed in second and third envelopes marked as "COPY NO. 1 – TECHNICAL COMPONENT" and "COPY NO. 2 – TECHNICAL COMPONENT". In addition, a USB Flash Drive containing electronic and/or scanned copies of the original technical documents shall be submitted in a fourth similarly sealed envelope and marked as "USB FLASH DRIVE – TECHNICAL COMPONENT". The said four (4) envelopes containing the original, 2 copies, and the USB flash drive shall then be enclosed in one single envelope marked as "TECHNICAL COMPONENT".

ITB Clause	
	The original financial documents shall be enclosed another sealed envelope marked as “ORIGINAL – FINANCIAL COMPONENT”. Two (2) additional copies thereof shall be similarly sealed in second and third envelopes marked as “COPY NO. 1 – FINANCIAL COMPONENT” and “COPY NO. 2 – FINANCIAL COMPONENT”. The USB Flash Drive containing the electronic copies of the original financial documents shall be submitted in a fourth similarly sealed envelope and marked as “USB FLASH-DRIVE - FINANCIAL COMPONENT”. The said four (4) envelopes containing the original, 2 copies, and the USB flash drive shall then be enclosed in one single envelope marked as “FINANCIAL COMPONENT”. Bidders may opt to submit in advance three (3) hard copies and one (1) USB Flash Drive containing electronic and/or scanned copies of documents required under ITB Clause 27.1 and this BDS (Post-Qualification Documents). This does not disqualify bidders who will not submit post-qualification documents during bid submission. Enclose the post-qualification documents in four (4) sealed envelopes, all marked as "POST-QUALIFICATION DOCUMENTS". The said four (4) envelopes containing the 3 copies, and the USB flash drive shall then be enclosed in one single envelope marked as "POST-QUALIFICATION DOCUMENTS". All envelopes marked as “TECHNICAL COMPONENT”, “FINANCIAL COMPONENT”, and "POST-QUALIFICATION DOCUMENTS", if any, shall be enclosed and/or sealed in an outer envelope marked as “BID”. To facilitate the receipt and opening of bids, the outer envelope marked "BID" shall be RED, the inner envelope containing technical documents shall be BLUE, the inner envelope containing financial documents shall be GREEN, and the inner envelope containing Post-Qualification Documents shall be BROWN. Illustrations are provided in Section VIII. Philippine Bidding Document Related Forms (See Illustrations 1 and 2). Bid envelopes that are not properly sealed and marked as required in the Bidding Documents shall be accepted, provided that the Bidder or its duly authorized representative shall acknowledge such condition of the bid as submitted. The BAC shall assume no responsibility for misplaced or lost contents of the improperly sealed or marked bid, or for its premature opening. On the other hand, unsealed or unmarked bid envelopes shall be rejected. Due to the current technological difficulties, online submission of bids is not allowed.

ITB Clause											
19	The address for the submission of Bids is the Office Facility of the former Systems Division, DepEd Complex, Meralco Ave., Pasig City. The deadline for the submission of Bids is on or before 10:00 A.M. (Philippine Standard Time) of July 22, 2026.										
22.1	The place of the bid opening is the Office Facility of the former Systems Division, DepEd Complex, Meralco Ave., Pasig City. The date and time of bid opening is on or before 10:00 A.M. (Philippine Standard Time) of July 22, 2026.										
22.2(b)	Not Applicable.										
25.7	No further instructions.										
26.3	The award criterion to be followed is Lowest Calculated Responsive Bid.										
26.3(b)(i)	Not Applicable.										
26.3(b)(iii)	Not Applicable.										
26.3(c)(i)	Not Applicable.										
26.5(a)	Partial bid is not allowed. The goods are grouped in a single lot and the lot shall not be divided into sub-lots for the purpose of bidding, evaluation, and contract award.										
26.5(b)	Bid correction is not allowed.										
26.6	No further instructions.										
27.1	No additional requirements.										
30.3(f)	No additional requirements.										
31.2	Not Applicable.										
31.3	The Performance Security shall be in the form: <table><tr><th rowspan="2">Lot No.</th><th rowspan="2">REGIONAL CLUSTER</th><th colspan="2">Performance Security Form & Amount in PhP Not less than the Percentage of Contract Price per lot/item</th></tr><tr><th>Cash, Cashier's or Manager's Check, Bank Draft or Guarantee, Irrevocable Letter of Credit</th><th>Surety Bond</th></tr><tr><td>1 lot</td><td>Human Resources Information System</td><td>5%</td><td>30%</td></tr></table>	Lot No.	REGIONAL CLUSTER	Performance Security Form & Amount in PhP Not less than the Percentage of Contract Price per lot/item		Cash, Cashier's or Manager's Check, Bank Draft or Guarantee, Irrevocable Letter of Credit	Surety Bond	1 lot	Human Resources Information System	5%	30%
Lot No.	REGIONAL CLUSTER			Performance Security Form & Amount in PhP Not less than the Percentage of Contract Price per lot/item							
		Cash, Cashier's or Manager's Check, Bank Draft or Guarantee, Irrevocable Letter of Credit	Surety Bond								
1 lot	Human Resources Information System	5%	30%								

Section IV. General Conditions of Contract

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1) General Terms

In this Contract, the following terms shall be interpreted as indicated:

- a) “The Procuring Entity” means the organization purchasing the Goods, as named in the **SCC**.
- b) “The Supplier” means the individual contractor, manufacturer distributor, or firm supplying/manufacturing the Goods and Services under this Contract and named in the **SCC**.
- c) The “Funding Source” means the organization named in the **SCC**.
- d) “The Project Site” where applicable, means the place or places named in the **SCC**.

2) Corrupt, Fraudulent, Collusive, and Coercive Practices

Unless otherwise provided in the **SCC**, the Procuring Entity as well as the Bidders, Contractors, or Suppliers shall observe the highest standard of ethics during the procurement and execution of this Contract. Further the Funding Source, as appropriate, will seek to impose the maximum civil, administrative, and/or criminal penalties available under the applicable law on individuals and organizations deemed to be involved with any of the practices mentioned in **ITB Clause 3.1(a)**.

3) Inspection and Audit by the Funding Source

The Supplier shall allow the Funding Source to inspect its accounts and records related to the performance of its obligations. If the Funding Source requires a separate audit, it shall appoint its auditor and bear the cost thereof.

4) Governing Law and Language

- 4.1 This Contract shall be interpreted in accordance with the laws of the Republic of the Philippines.
- 4.2 This Contract has been executed in the English language, which shall be the binding and controlling language for all matters relating to the meaning or interpretation of this Contract. All correspondence and other documents pertaining to this Contract exchanged by the parties shall be written in English.

5) Notices

- 5.1 Any notice, request, or consent required or permitted to be given or made pursuant to this Contract shall be in writing. Any such notice, request, or consent shall be deemed to have been given or made when received by the concerned party, either in person or through an authorized representative of the Party to whom the communication is addressed, or when sent by registered mail or electronic mail, to such

Party at the address specified in the **SCC**, which shall be effective when delivered and duly received, as may be applicable.

- 5.2 A Party may change its address upon notice pursuant to the provisions listed in the **SCC**.

6) Scope of Contract

- 6.1 The Goods to be provided shall be as specified in **Section VI. Schedule of Requirements**.
- 6.2 This Contract shall include all such items, although not specifically mentioned, that can be reasonably inferred as being required for its completion as if such items were expressly mentioned herein. Any additional requirements for the completion of this Contract shall be provided in the **SCC**.

7) Subcontracting

- 7.1 For subcontracting arrangements, the following rules shall apply for both locally-funded projects and projects financed through Official Development Assistance, except those covered by treaty, or international, or executive agreements.

- a) The subcontracted portion of the contract shall be subject to the approval of the HoPE and the following conditions:
- i) The subcontracted portion shall not exceed twenty percent (20%) for Goods, or a different percentage on a per project basis, as approved by the GPPB. The threshold percentages fixed herein shall be subject to the periodic review and adjustments as may be deemed appropriate by the GPPB; and
 - ii) The subcontracted portion shall be limited to components that are not deemed "significant or material" to the Project, as determined by the Procuring Entity.
- b) Subcontracting arrangement, if allowed, including the time of submission of the eligibility documents of the subcontractor, shall be disclosed in the Bidding Documents;
- c) Subcontractors must meet the eligibility criteria and submit the same eligibility documents as the general contractor.

Failure of a subcontractor to meet the eligibility criteria does not affect the eligibility of the general contractor for the procurement project. In such case, the portion intended to be subcontracted to the ineligible subcontractor shall be assumed by the general contractor;

- d) The general contractor shall remain liable for the subcontractor's actions, defaults, delays, and negligence;

- e) The general contractor and the subcontractor are obliged to comply with the provisions of the contract and shall share liability, jointly and severally, in cases of violation of safety standards or other labor standards insofar as the subcontracted portion is concerned; and
- f) For purposes of post-qualification in accordance with its objective and process under the IRR, the value of the entire completed and accepted Project, including the subcontracted portion, shall be credited as experience of the general contractor. In the case of the subcontractor, the following rules shall apply:
 - i) The subcontractor shall get credit for one hundred percent (100%) of the value of the subcontracted portion of the project performed; and
 - ii) Subcontractors shall be eligible to concessional windows of GFIs that treat receivables from the government as loan security; the receivables of subcontractors due from their general contractor shall similarly be accepted as loan security by GFIs.

8) Procuring Entity's Responsibilities

- 8.1 Whenever the performance of the obligations in this Contract requires that the Supplier obtain permits, approvals, import, and other licenses from local public authorities, the Procuring Entity may assist the Supplier in complying with such requirements in a timely and expeditious manner.
- 8.2 The Procuring Entity shall pay all costs involved in the performance of its responsibilities in accordance with the Scope of Contract.

9) Prices

- 9.1 For goods and services covered under this Contract, as awarded, all bid prices shall be deemed fixed and not subject to price escalation during contract implementation, except as otherwise provided in the succeeding provisions.
- 9.2 Prices charged by the Supplier for Goods delivered and/or services performed under this Contract shall not vary from the prices quoted by the Supplier in its bid, unless there is a change in price resulting from Amendment to Order issued in accordance with **GCC Clause 28**.

10) Advance Payment

- 10.1 For Goods sourced from within the Philippines, advance payments may be made as follows:
 - a) A single advance payment not to exceed fifty percent (50%) of the contract amount shall be allowed for contracts entered into by a Procuring Entity for the following services where the requirement of down payment is a standard industry practice: 1) hotel and

restaurant services; 2) use of conference/seminar and exhibit areas; and 3) lease of office space;

- b) Advance payment not to exceed fifteen percent (15%) of the contract amount, unless otherwise directed by the President, shall also be allowed for procurement of goods required to address contingencies arising from natural or man-made calamities in areas where a “State of Calamity” has been declared by appropriate authorities; and
- c) Upon submission of an irrevocable Letter of Credit (LoC) or bank guarantee issued by local bank, advance payment not exceeding fifteen percent (15%) of the contract amount shall be allowed and paid to the Supplier within sixty (60) calendar days from the signing of the contract. The irrevocable LoC or bank guarantee, which must be for an equivalent amount, shall remain valid until the goods are delivered, and accompanied by a claim for advance payment.

10.2 For Goods supplied from abroad, unless otherwise indicated in the **SCC**, the terms of payment shall be as follows:

- a) Upon Contract Signing: Fifteen Percent (15%) of the Contract Price shall be paid within sixty (60) days from signing of the Contract and upon submission of a claim and a bank guarantee for the equivalent amount valid until the Goods are delivered and in the form provided in **Section VIII. Philippine Bidding Document Related Forms**.
- b) Upon Delivery: Sixty-five percent (65%) of the Contract Price shall be paid to the Supplier within sixty (60) days after the date of receipt of the Goods and upon submission of the documents (i) through (vi) specified in the **SCC** provision on Delivery and Documents.
- c) Upon Acceptance: The remaining twenty percent (20%) of the Contract Price shall be paid to the Supplier within sixty (60) days after the date of submission of the acceptance and inspection certificate for the respective delivery issued by the Procuring Entity’s authorized representative. In the event that no inspection or acceptance certificate is issued by the Procuring Entity’s authorized representative within forty-five (45) days of the date shown on the delivery receipt, the Supplier shall have the right to claim payment of the remaining twenty percent (20%) subject to the Procuring Entity’s own verification of the reason(s) for the failure to issue documents (vii) and (viii) as described in the **SCC** provision on Delivery and Documents.

10.3 All progress payments for Goods shall first be charged against the advance payment until the latter has been fully exhausted.

11) Payment

- 11.1 Payments shall be made only upon a certification by the HoPE that the Goods have been delivered in accordance with the terms of this Contract and have been duly inspected and accepted. Except with the prior approval of the President, no payment shall be made for services not yet rendered or for supplies and materials not yet delivered under the Contract.
- 11.2 The Supplier's request(s) for payment shall be made to the Procuring Entity in writing, accompanied by an invoice describing, as appropriate, the Goods delivered and/or Services rendered, and by documents submitted pursuant to the **SCC** provision for **GCC Clause 6.2**, and upon fulfillment of other obligations stipulated in this Contract;
- 11.3 Pursuant to **GCC Clause 11.2**, payments shall be made promptly by the Procuring Entity after submission of an invoice or claim by the Supplier. Payments shall be in accordance with the applicable accounting and auditing laws, rules and regulations.
- 11.4 Unless otherwise provided in the **SCC**, all payments to the Supplier under this Contract shall be in Philippine Peso;
- 11.5 Unless otherwise provided in the **SCC**, payments using LoC is allowed. For this purpose, the amount of provisional sum shall be indicated in the **SCC**. All charges for the opening of the LoC and/or incidental expenses thereto shall be for the account of the Supplier.

12) Taxes and Duties

The Supplier, whether local or foreign, shall be entirely responsible for all the necessary taxes, stamp duties, license and permit fees, and other such levies imposed for the completion of this Contract.

13) Performance Security

- 13.1 Within ten (10) calendar days from receipt of the Notice of Award from the Procuring Entity, but in no case later than the signing of the contract by both parties, the successful Bidder shall furnish the performance security in any the forms prescribed in the **ITB Clauses 31.2 and 31.3**.
- 13.2 The performance security posted in favor of the Procuring Entity shall be forfeited in the event it is established that the winning Bidder is in default in any of its obligations under the contract.
- 13.3 The performance security shall remain valid until issuance by the Procuring Entity of the Certificate of Final Acceptance.
- 13.4 The performance security may be released by the Procuring Entity and returned to the Supplier after the issuance of the Certificate of Final Acceptance, subject to the following conditions:
- a) There are no pending claims against the Supplier or the Surety Company filed by the Procuring Entity;

- b) The Supplier has no pending claims for labor and materials filed against it; and
- c) Other terms specified in the **SCC**.

13.5 The Procuring Entity shall allow a proportional reduction in the original performance security in case of a reduction in contract value, provided that any such reduction is more than ten percent (10%) and that the aggregate of such reductions is not more than fifty percent (50%) of the original performance security.

14) Use of Contract Documents and Information

14.1 The Supplier shall not, without the Procuring Entity's prior written consent, disclose this Contract or any specification, plan, drawing, pattern, sample, or information furnished by or on behalf of the Procuring Entity, except for purposes of performing the obligations therein. Any such disclosure shall be made in confidence and shall extend only as far as may be necessary for purposes of such performance.

14.2 Other than this Contract, any document enumerated in **GCC Clause 14.1** shall remain the property of the Procuring Entity. All copies shall be returned to the Procuring Entity upon completion of the Supplier's performance under this Contract, if so required by the Procuring Entity.

15) Standards

The Goods provided under this Contract shall conform to the standards mentioned in the **Section VII. Technical Specifications**. When no applicable standard is mentioned, the Goods shall comply with the latest authoritative standards appropriate to its country of origin.

16) Inspection and Tests

16.1 The Procuring Entity or its representative shall have the right to inspect and/or to test the Goods to confirm their conformity to the Contract specifications at no extra cost to the Procuring Entity, other than that specified under **Item 16.3 below**. The **SCC** and **Section VII. Technical Specifications** shall specify what inspections and/or tests the Procuring Entity requires and where they are to be conducted. The Procuring Entity shall notify the Supplier in writing, in a timely manner, of the identity of any representatives retained for these purposes.

16.2 If applicable, the inspections and tests may be conducted on the premises of the Supplier or its subcontractor(s), at point of delivery, and/or at the goods' final destination. If conducted on the premises of the Supplier or its subcontractor(s), all reasonable facilities and assistance, including access to drawings and production data, shall be furnished to the inspectors at no cost to the Procuring Entity. The Supplier shall provide the Procuring Entity with the results of such inspections and tests.

- 16.3 The Procuring Entity or its designated representative shall be allowed to attend the tests and/or inspections referred to in this Clause provided that the Procuring Entity shall bear all of its own costs and expenses incurred in connection with such attendance including, but not limited to, all traveling and board and lodging expenses.
- 16.4 The Procuring Entity shall reject the Goods or any part thereof that fail any test and/or inspection or do not conform to the specifications. The Supplier shall either rectify or replace such rejected Goods or parts thereof or make alterations necessary to meet the specifications at no cost to the Procuring Entity. Upon giving due notice to the Supplier pursuant to **GCC Clause 5**, the test and/or inspection may be repeated by the Procuring Entity, at no additional cost.
- 16.5 The Supplier agrees that neither the execution of a test and/or inspection of the Goods or any part thereof, nor the attendance by the Procuring Entity or its representative to the said test and/or inspection, shall release the Supplier from any warranties or other obligations under this Contract.

17) Warranty

- 17.1 The Supplier warrants that the Goods supplied under the Contract are new, unused, of the most recent or current models, and with all recent improvements in design and materials, except when the technical specifications required by the Procuring Entity provides otherwise.
- 17.2 The Supplier further warrants that all Goods supplied under this Contract shall have no defect, arising from design, materials, or workmanship or from any act or omission of the Supplier that may develop under normal use of the supplied Goods in the conditions prevailing in the country of final destination.
- 17.3 To ensure correction of manufacturing defects, the Supplier shall be required to provide a warranty for a minimum period specified in the **SCC**. At the option of the Procuring Entity, the obligation for the warranty shall be covered by:
- a) Retention money in an amount equivalent to at least one percent (1%) but not to exceed five (5%) of every progress payment; or
 - b) Special bank guarantee equivalent to at least one percent (1%) but not to exceed five (5%) of the total Contract Price; or
 - c) Other such amount, if so specified in the **SCC**.
- 17.4 The said amounts shall only be released by the Procuring Entity after the lapse of the warranty period as specified in the **SCC**, or in case of Expendable Supplies, after the consumption thereof; Provided, however, that the Supplies delivered are free from patent and latent defects and all the conditions imposed under this Contract have been fully met.

- 17.5 The Procuring Entity shall promptly notify the Supplier in writing of any claims arising under the warranty. Upon receipt of such notice, the Supplier shall, within the period specified in the **SCC**, repair or replace the defective Goods or parts thereof, at the soonest possible time, without cost to the Procuring Entity.
- 17.6 If the Supplier, after having been notified on the warranty claim, fails to remedy the defect(s) within the period specified in **GCC Clause 17.5**, the Procuring Entity may proceed to take such remedial action as may be necessary, at the Supplier's risk and expense, and without prejudice to any other rights which the Procuring Entity may have against the Supplier under the Contract and other applicable laws.

18) Delays in the Supplier's Performance

- 18.1 Delivery of the Goods and/or performance of Services shall be made by the Supplier in accordance with the time schedule prescribed by the Procuring Entity in **Section VI. Schedule of Requirements**.
- 18.2 If at any time during the performance of this Contract, the Supplier encounters conditions that may impede the timely delivery of the Goods and/or performance of Services, the Supplier shall promptly notify the Procuring Entity in writing of the fact of the delay, its likely duration and its cause(s). As soon as practicable after receipt of the Supplier's notice, and upon causes provided for under **GCC Clause 23**, the Procuring Entity shall evaluate the situation and, if warranted, extend the Supplier's time for performance, in which case the extension shall be ratified by the parties by amendment of Contract.
- 18.3 Except as provided under **GCC Clause 23**, any delay by the Supplier in the performance of its obligations shall render it liable to the imposition of liquidated damages pursuant to **GCC Clause 19**, unless an extension of time is agreed upon pursuant to **GCC Clause 28**.

19) Liquidated Damages

- 19.1 When the Supplier fails to satisfactorily deliver the Goods under the contract within the specified delivery schedule, inclusive of duly granted time extensions, if any, the Supplier, manufacturer, or distributor shall be liable for liquidated damages in an amount equal to one-tenth (1/10) of one percent (1%) of the cost of the delayed goods scheduled for delivery for every day of delay until such goods are finally delivered and accepted by the Procuring Entity.
- 19.2 The Procuring Entity need not prove that it has incurred actual damages to be entitled to liquidated damages. Such amount shall be deducted from any money due, or which may become due the supplier, manufacturer, or distributor, or collected from any securities or warranties posted by the supplier, manufacturer, or distributor, whichever is convenient to the Procuring Entity. In case the total sum of liquidated damages reaches ten percent (10%) of the total contract price, the Procuring Entity may rescind the contract and impose appropriate sanctions over and above the liquidated damages to be paid.

- 19.3 If delays are likely to be incurred beyond its control, the supplier, manufacturer, or distributor shall promptly notify the Procuring Entity in writing, providing details of the causes and duration of the expected delay. The Procuring Entity may, at its discretion, grant a time extension based on meritorious grounds, with or without the imposition of liquidated damages.

20) Settlement of Disputes

- 20.1 Any dispute arising from the implementation of a contract covered by the Act and the IRR shall primarily be resolved and settled amicably by mutual consultation or agreement.

- 20.2 In case of failure to settle dispute amicably, the parties may mutually agree in writing to resort to other modes of alternative dispute resolution (ADR) to promote efficiency in the procurement process. Accordingly, they are encouraged to select the most expeditious mode of ADR available.

If arbitration is chosen as the ADR method, this shall be incorporated as a provision in the contract and referred to the Arbitrator specified in the **SCC**.

- 20.3 In case of disagreement or after exhausting the remedies provided in the preceding Section, the dispute may be submitted to arbitration or other forms of ADR which includes mediation, conciliation, early neutral evaluation, mini-trial, or any combination thereof in accordance with the provisions of RA No. 9285, otherwise known as the "Alternative Dispute Resolution Act of 2004."

- 20.4 Should the Parties fail to resolve their dispute or difference by such mutual consultation or agreement after thirty (30) days, either the Procuring Entity or the Supplier may signify its intention to commence arbitration by giving notice to the other Party, as hereinafter provided, as to the matter in dispute, and no arbitration in respect of this matter may be commenced unless such notice is given.

- 20.5 Any dispute or difference in respect of which a notice of intention to commence arbitration has been given in accordance with this Clause shall be settled by arbitration. Arbitration may be commenced prior to or after delivery of the Goods under this Contract.

- 20.6 Notwithstanding any reference to arbitration herein, the Parties shall continue to perform their respective obligations under the Contract unless otherwise agreed upon in writing.

21) Liability of the Supplier

- 21.1 The Supplier's liability under this Contract shall be as provided by the laws of the Republic of the Philippines, subject to additional provisions, if any, set forth in the **SCC**.

- 21.2 Except in cases of criminal negligence or willful misconduct, and in the case of infringement of patent rights, if applicable, the aggregate liability of the Supplier to the Procuring Entity shall not exceed the total Contract Price, provided that this limitation shall not apply to the cost of repair or replacement of the defective Goods.

22) Termination for Breach of Contract

The Procuring Entity may terminate for breach of contract when the Supplier fails to deliver or perform any or all of the Goods within the period(s) specified in the contract, or within any extension thereof granted by the Procuring Entity, pursuant to a request made by the Supplier prior to the delay, and such failure amounts to at least ten percent (10%) of the contract price, consistent with the provision of this IRR on liquidated damages. The Procuring Entity may likewise impose appropriate sanctions therein.

23) Termination Due to Force Majeure

- 23.1 For purposes of this Contract, the terms “*force majeure*” and “fortuitous event” may be used interchangeably. In this regard, a fortuitous event or *force majeure* shall be interpreted to mean as an event which the Supplier could not have been foreseen, or though foreseen, was inevitable. It shall not include ordinary unfavorable weather conditions, and any other causes the effect/s of which could have been avoided with the exercise of reasonable diligence by the Supplier. Such events may include, but not limited to, acts of the Procuring Entity in its sovereign capacity, wars or revolutions, fires, floods, epidemics, quarantine restrictions, and freight embargoes.
- 23.2 The Procuring Entity may terminate this Contract and impose liquidated damages when, as a result of *force majeure*, the Supplier is unable to deliver or perform any or all of the Goods, amounting to at least ten percent (10%) of the Contract Price, for a period of not less than sixty (60) calendar days, or earlier, as deemed necessary by the Procuring Entity, after receipt of the written notice from the Procuring Entity stating that the circumstance of *force majeure* is deemed to have ceased.
- 23.3 The Supplier shall not be subject to forfeiture of its performance security, payment of liquidated damages, or contract termination due to *force majeure*, provided that the Supplier’s delay in performance or other failure to perform its obligations under this Contract is the result of a *force majeure*.
- 23.4 If a *force majeure* situation arises, the Supplier shall promptly notify the Procuring Entity in writing of such condition and the cause thereof. Unless otherwise directed by the Procuring Entity, the Supplier shall continue to perform its obligations under the Contract as far as may be practicable, when not prevented by the *force majeure*, and shall seek all reasonable alternative means in the performance of its obligation.

24) Termination for Convenience

24.1 The Procuring Entity, through a written notice sent to the Supplier, may terminate this Contract, in whole or in part, at any time, if it has determined the existence of any of the following conditions that make contract implementation economically, financially, or technically impractical or unnecessary:

- a) When physical and economic conditions have significantly changed so as to render the project no longer economically, financially, or technically feasible, as determined by the HoPE;
- b) When the HoPE has determined the existence of conditions that make project implementation impractical or unnecessary, such as, but not limited to, fortuitous event/s, changes in laws, and government policies;
- c) When funding for the Project has been withheld or reduced by higher authorities through no fault of the Procuring Entity; or
- d) Any circumstance analogous to the foregoing.

24.2 The Goods that have been performed or are ready to be delivered or performed within thirty (30) calendar days after the Supplier's receipt of Notice to Terminate shall be accepted by the Procuring Entity at the contract terms and prices thereof. For Goods not yet delivered, performed and/or ready to be delivered or performed, the Procuring Entity may elect:

- a) To have any portion delivered and/or performed and paid at the contract terms and prices thereof; or
- b) To cancel the remainder and pay to the Supplier an agreed amount for partially completed and/or performed goods and for materials and parts previously procured by the Supplier.

25) Termination for Unlawful Acts

25.1 The Procuring Entity may terminate this Contract in case it is determined *prima facie* that the Supplier, including any joint venture partner therein, has engaged, before or during the implementation of this Contract, in unlawful deeds and behaviors relative to contract acquisition and implementation. Unlawful acts include, but are not limited to, the following:

- a) Corrupt, fraudulent, collusive, and coercive practices as defined in **ITB Clause 3.1**;
- b) Drawing up or using forged documents;
- c) Using adulterated materials, means or methods, or engaging in production contrary to rules of science or the trade; and
- d) Any other act analogous to the foregoing.

26) Procedures for Termination of Contracts

26.1 The following provisions shall govern the procedures for termination of this Contract:

- a) **Verification** - Upon receipt of a written report of acts or causes which may constitute grounds for termination as aforementioned, or upon its own initiative, the End-User or Implementing Unit shall, within a period of seven (7) calendar days, verify the existence of such grounds and cause the execution of a Verified Report, with all relevant evidence attached.
- b) **Notice to Terminate** - Upon recommendation by the End-User or Implementing Unit, the HoPE shall terminate contracts only by written notice to the supplier conveying the termination of the contract. The notice shall state:
 - i) That the contract is being terminated for any of the grounds aforementioned, and a statement of the acts that constitute the grounds constituting the same;
 - ii) The extent of termination, whether in whole or in part;
 - iii) An instruction to the Supplier, to show cause as to why the contract should not be terminated; and
 - iv) Special instructions of the Procuring Entity, if any.

The Notice to Terminate shall be accompanied by a copy of the Verified Report.

- c) **Show Cause** - Within a period of seven (7) calendar days from receipt of the Notice of Termination, the Supplier shall submit to the HoPE a verified position paper stating why the contract should not be terminated. If the Supplier, fails to show cause after the lapse of the seven (7) day period, either by inaction or by default, the HoPE shall issue an order terminating the contract.
- d) **Rescission of Notice of Termination** - The Procuring Entity may, at any time before receipt of the Supplier's verified position paper, withdraw the Notice to Terminate if it is determined that certain items or works subject of the notice had been completed, delivered, or performed before the Supplier's receipt of the notice.
- e) **Decision** - Within a non-extendible period of ten (10) calendar days from receipt of the verified position paper, the HoPE shall decide whether or not to terminate the contract. It shall serve a written notice to the Supplier of its decision and, unless otherwise provided, the contract is deemed terminated from receipt of the Supplier of the notice of the decision. The termination shall only be based on the grounds stated in the Notice to Terminate.
- f) **Contract Termination Review Committee (CTRC)** - The HoPE may create a committee to assist in the discharge of its functions under the IRR. All decisions recommended by the CTRC shall be subject to the approval of the HoPE.

- g) **Take-over of Contracts** - If a Procuring Entity terminates the contract due to default, insolvency, or for a cause, it may enter into a Negotiated Procurement (Take-over of Contracts) pursuant to Section 35(c) of RA No. 12009.
- h) **Procuring Entity's Options in Termination for Convenience in Contracts for Goods** - The Goods that have been performed or are ready for delivery within thirty (30) calendar days after the supplier's receipt of Notice to Terminate shall be accepted by the Procuring Entity at the contract terms and prices. For Goods not yet performed or ready for delivery, the Procuring Entity may elect:
 - i) To have any portion delivered or performed and paid at the contract terms and prices; or
 - ii) To cancel the remainder and pay to the supplier an agreed amount for partially completed or performed goods and for materials and parts previously procured by the supplier.

27) Assignment of Rights

The Supplier shall not assign its rights or obligations under this Contract, in whole or in part, except upon prior written consent of the Procuring Entity.

28) Amendment to Order

No variation in or modification of the terms of this Contract shall be made except by written amendment signed by the parties in accordance with the provisions on Amendment to Order, subject to applicable laws, rules and regulations.

29) Application

These General Conditions shall apply to the extent that they are not suspended by the provisions from other parts of this Contract.

Section V. Special Conditions of Contract

Special Conditions of Contract

GCC Clause	
1(a)	The Procuring Entity is the Department of Education, through its Information and Communication Technology Service – Solutions Development Division (ICTS-SDD).
1(b)	The Supplier is <i>[to be inserted at the time of contract award]</i> .
1(c)	The Funding Source is the General Appropriations Act (GAA) Fiscal Year (FY) 2025, particularly the allocation for the DepEd Computerization Program (DCP) - Strengthening Assistance for Government Infrastructure and Social Programs (SAGIP) 2025 (Continuing Fund), in the amount of Philippine Pesos Five Hundred Million and 00/100 (PhP500,000,000.00) .
1(d)	The Project Site is DepEd Central Office, TechZone Building Malugay St., San Antonio, Makati City.
2	No further instructions.
5.1	The Procuring Entity’s address for Notices is: ATTY. MARCELINO G. VELOSO III Assistant Secretary Office of the Assistant Secretary for ICT 18th Floor TechZone Building Malugay St. San Antonio Makati Telephone Number: 8633-7256 Email address: oasict@deped.gov.ph The Supplier’s address for Notices is: <i>[Insert address including, name of contact, fax and telephone number]</i>.
5.2	No further instructions.
6.2	Delivery and Documents For purposes of this Contract, “EXW,” “FOB,” “FCA,” “CIF,” “CIP,” “DDP” and other trade terms used to describe the obligations of the parties shall have the meanings assigned to them by the current edition of INCOTERMS published by the International Chamber of Commerce, Paris. The Delivery terms of this Contract shall be as follows: The delivery terms applicable to this Contract are delivered to <u>DepEd Central Office – TechZone Makati City</u>. Risk and title will pass from the Supplier to the Procuring Entity upon receipt and final acceptance of the Goods at their final destination. Delivery of the Goods shall be made by the Supplier in accordance with the terms specified in Section VI. Schedule of Requirements. The details of shipping and/or other documents to be furnished by the Supplier are as follows: <u>For Goods supplied from within the Philippines:</u>

GCC Clause	
	Upon delivery of the Goods to the Project Site, the Supplier shall notify the Procuring Entity and present the following original documents to the Procuring Entity: i) Supplier's invoice showing the goods' description, quantity, unit price, and total amount; ii) Delivery receipt/note, railway receipt, or truck receipt; iii) Supplier's factory inspection report; iv) Manufacturer's and/or Supplier's warranty certificate; v) Certificate of origin (for imported Goods); vi) Delivery receipt detailing number and description of items received signed by the authorized receiving personnel; vii) Certificate of Acceptance/Inspection Report signed by the Procuring Entity's representative at the Project Site; and viii) Four copies of the Invoice Receipt for Property signed by the Procuring Entity's representative at the Project Site. For purposes of this Clause the Procuring Entity's Representative at the Project Site is <u>Mr. Noel E. Reyes, ICTS-SDD</u>. The Contract price for the goods shall include the prices charged by the Supplier for incidental services and shall not exceed the prevailing rates charged to other parties by the Supplier for similar services. Patent Rights The Supplier shall indemnify the Procuring Entity against all third-party claims of infringement of patent, trademark, or industrial design rights arising from use of the goods or any part thereof.
7	Subcontracting is not allowed.
10	Advance payment is not allowed.
10.2	Not Applicable.
10.3	Advance payment is not allowed.
11	Schedule of Payment The milestone payments are tied to accepted, functional, tested, documented, and deployable deliverables. DepEd shall not withhold acceptance or payment solely because the milestone was completed earlier than the stated window, provided that the milestone deliverables are complete,

GCC Clause																									
	functional, tested, documented, deployed to the agreed environment, traceable to the TOR or approved backlog, and accepted by the authorized DepEd Product Owner or process owner. If the Service Provider completes a milestone earlier than the applicable maximum delivery window, it may submit the milestone deliverables for DepEd review, acceptance, and payment processing. <u>Progress Payment</u> Progress Payment based on fixed milestones below: Payment processing for any milestone shall commence only after full completion and formal acceptance of all corresponding milestone deliverables. Payments shall be made on a milestone basis and shall be contingent upon completion, submission, review, and written acceptance of the required deliverables for the relevant milestone. <table><tr><th>Milestone</th><th>Maximum Delivery Window from NTP</th><th>Main Deliverable</th><th>Payment</th></tr><tr><td>M1</td><td>Upon NTP, not later than Day 30</td><td>Mobilization</td><td>10%</td></tr><tr><td>M2</td><td>Not later than Day 90</td><td>Project Inception, Product Proof, Technical Alignment, and Implementation Planning</td><td>20%</td></tr><tr><td>M3</td><td>Not later than Day 150</td><td>Release 1: Core HR Foundation</td><td>15%</td></tr><tr><td>M4</td><td>Not later than Day 190</td><td>Release 2: Payroll, Leave, Attendance, and Employee Self-Service</td><td>10%</td></tr><tr><td>M5</td><td>Not later than Day 235</td><td>Release 3: Strategic Talent, Learning, Wellness, Rewards, and Succession</td><td>15%</td></tr></table>	Milestone	Maximum Delivery Window from NTP	Main Deliverable	Payment	M1	Upon NTP, not later than Day 30	Mobilization	10%	M2	Not later than Day 90	Project Inception, Product Proof, Technical Alignment, and Implementation Planning	20%	M3	Not later than Day 150	Release 1: Core HR Foundation	15%	M4	Not later than Day 190	Release 2: Payroll, Leave, Attendance, and Employee Self-Service	10%	M5	Not later than Day 235	Release 3: Strategic Talent, Learning, Wellness, Rewards, and Succession	15%
Milestone	Maximum Delivery Window from NTP	Main Deliverable	Payment																						
M1	Upon NTP, not later than Day 30	Mobilization	10%																						
M2	Not later than Day 90	Project Inception, Product Proof, Technical Alignment, and Implementation Planning	20%																						
M3	Not later than Day 150	Release 1: Core HR Foundation	15%																						
M4	Not later than Day 190	Release 2: Payroll, Leave, Attendance, and Employee Self-Service	10%																						
M5	Not later than Day 235	Release 3: Strategic Talent, Learning, Wellness, Rewards, and Succession	15%																						

GCC Clause				
	M6	Not later than Day 270	Integrated Testing, Security Validation, Migration Readiness, and Payroll Parallel Run	10%
	M7	Not later than Day 300, or earlier upon completion and acceptance	Pilot Deployment, Capacity Building, Documentation, and SLA Readiness	10%
	M8	Not earlier than Day 335, not later than Day 365 from the NTP	Production Rollout, Final Handover, SLA Transition, and Final Acceptance	10%
	Early completion shall not remove any continuing warranty, support, documentation, turnover, maintenance, remediation, or post-deployment obligations required under the TOR or contract.			
Payment Conditions				
Payment processing shall not be deferred solely because the corresponding maximum delivery window has not fully elapsed. Once a milestone is completed, submitted, reviewed, and accepted, the Service Provider may bill for the corresponding milestone payment, subject to submission of complete billing documents and compliance with applicable budgeting, accounting, auditing, procurement, and contract rules.				
No payment shall be processed based solely on:				
1. passage of time;				
2. issuance of the NTP;				
3. submission of plans without acceptance;				
4. presentation of a vanilla or baseline HRIS without DepEd-specific validation;				
5. presentation of prototypes or mockups without working functionality;				
6. deployment without test evidence;				
7. configuration without accepted user stories;				

GCC Clause	
	8. unsupported claims of completion without sprint records, test logs, deployment evidence, documentation, or Product Owner sign-off.
11.4	No further instructions.
11.5	Payment using Letter of Credit is not allowed.
13.4(c)	No further instructions.
16.1	The inspections and tests that will be conducted shall be in accordance with Section VI. Schedule of Requirements, including the prescribed milestone deliverables, acceptance requirements, and Definition of Done.
17.3	Special bank guarantee equivalent to at least one percent (1%) but not to exceed five (5%) of the total Contract Price.
17.3 (c)	Not Applicable.
17.4	Warranty shall be covered by Special bank guarantee equivalent to at least one percent (1%) but not to exceed five (5%) of the total Contract Price with validity until the end of contract period.
17.5	No further instructions.
20.2	Not Applicable.
21.1	No further instructions.

Section VI. Schedule of Requirements

A. Delivery Schedule

The delivery schedule expressed below stipulates the date of delivery to the project site.

Lot No.	Description	Delivery Schedule
1 lot	Human Resources Information System	The HRIS shall be implemented within three hundred sixty-five (365) calendar days from receipt of the Notice to Proceed (NTP)

B. Contract Duration

Complete delivery shall be made within the one (1) year contract duration, from the date of receipt of the Notice to Proceed.

C. Deliverables and Delivery Period

1. Purpose

This document clarifies the deliverables, delivery period, acceptance requirements, and dependency rules for the Human Resource Information System (HRIS) project.

This clarification does not replace the TOR. It shall be read together with the TOR provisions on HRIS scope, modules, implementation plan, data governance, service level agreement, training, documentation, reporting, monitoring, and final acceptance.

2. Delivery Premise

The HRIS engagement is premised on the Service Provider having an existing, operational, and configurable HRIS platform or solution with substantially available modules relevant to DepEd's requirements.

However, regardless of whether the Service Provider begins from an existing baseline, standard, or "vanilla" HRIS, the final HRIS delivered to DepEd shall be fully turned over with all source code, configurations, scripts, templates, workflows, reports, APIs, database schemas, deployment artifacts, documentation, and other technical materials necessary for DepEd to operate, maintain, audit, modify, enhance, migrate, and continue the system.

Accordingly, the Service Provider shall ensure that it has the legal and technical right to turn over the complete HRIS source code and related technical assets to DepEd. A proprietary or closed-source baseline shall not be used if it prevents full

source code turnover, continuity, auditability, maintainability, or DepEd's independent operation of the system.

For avoidance of doubt:

1. a product demonstration is not equivalent to implementation;
2. a vanilla HRIS is not equivalent to an accepted DepEd HRIS;
3. staging deployment is not equivalent to production readiness;
4. configuration is not equivalent to user acceptance;
5. payroll readiness requires parallel-run validation;
6. Final acceptance requires full source code turnover, documentation, SLA transition, and closure of critical defects.

3. Delivery Period and Early Completion

The delivery windows below are maximum target periods counted from NTP. They shall not be treated as mandatory waiting periods.

4. Delivery Schedule

Milestone	Maximum Delivery Window from NTP	Main Deliverable
M1	Upon NTP, not later than Day 30	Mobilization Project Inception, Product Proof, Technical Alignment, and Implementation Planning
M2	Not later than Day 90	Release 1: Core HR Foundation
M3	Not later than Day 150	Release 2: Payroll, Leave, Attendance, and Employee Self-Service
M4	Not later than Day 190	Release 3: Strategic Talent, Learning, Wellness, Rewards, and Succession
M5	Not later than Day 235	Integrated Testing, Security Validation, Migration Readiness, and Payroll Parallel Run
M6	Not later than Day 270	Pilot Deployment, Capacity Building, Documentation, and SLA Readiness
M7	Not later than Day 300, or earlier upon completion and acceptance	Production Rollout, Final Handover, SLA Transition

Milestone	Maximum Delivery Window from NTP	Main Deliverable
M8	Not earlier than Day 335, not later than Day 365 from the NTP	Project Closure, SLA Compliance Verification, and Final Acceptance

The percentages above refer to billing milestones. Any retention money, warranty security, or substitute security instrument shall be governed by the contract and applicable procurement, budgeting, accounting, and auditing rules, and shall not be treated as an additional payment tranche.

5. Milestone Deliverables and Acceptance

M1. Project Inception, Product Proof, Technical Alignment, and Implementation Planning

Maximum Delivery Window: Not later than Day 30 from NTP

M1 shall cover project inception, stakeholder alignment, demonstration of the baseline HRIS, confirmation of the delivery approach, technical alignment, and approval of the implementation controls necessary to proceed.

At minimum, M1 shall include:

1. issuance of the NTP or contract effectivity;
2. submission and DepEd acceptance of the required irrevocable standby letter of credit, bank guarantee, or equivalent security instrument;
3. submission of initial mobilization details, including assigned project manager, principal technical contact, implementation team roster, and initial work schedule.
4. signed-off Inception Report;
5. approved Implementation Plan;
6. Agile Team Charter identifying Service Provider and DepEd counterparts;
7. initial Product Backlog covering all HRIS modules;
8. Pre-Built Module Capability Matrix;
9. baseline HRIS product capability demonstration report;
10. fit-gap validation approach;
11. configuration and customization blueprint;
12. development, staging, and production environment plan;
13. initial data migration plan;
14. initial integration and API plan;
15. initial security, privacy, access-control, and audit-log plan;
16. risk register and dependency register;

- 17.sprint cadence and reporting protocol;
- 18.draft acceptance criteria for Release 1.

M1 shall be accepted upon DepEd approval of the inception, product proof, governance, technical alignment, and implementation planning outputs.

M1 acceptance shall not constitute acceptance of the baseline or vanilla HRIS as the final DepEd HRIS.

M2. Release 1: Core HR Foundation

Maximum Delivery Window: Not later than Day 90 from NTP

M2 shall cover the first accepted HRIS release, prioritizing the foundational modules and workflows necessary to establish core HR records and recruitment processes.

At minimum, M2 shall include configured, customized, tested, and documented Release 1 functionality for:

1. Personnel Information Management;
2. employee 201 file records;
3. Personal Data Sheet-related records;
4. Applicant Portal;
5. Recruitment, Selection, and Placement;
6. Appointment Processing;
7. New Hire Processing;
8. related recruitment, appointment, and personnel reports;
9. role-based access control for Release 1 users;
- 10.audit logging for Release 1 transactions;
- 11.initial sample data migration for employee and applicant records;
- 12.release notes;
- 13.updated user and administrator guides;
- 14.Sprint Review Reports;
- 15.signed-off user stories meeting the Definition of Done;
- 16.Release 1 test results and defect closure report.

M2 shall be accepted only upon deployment to the agreed staging or approved release environment, completion of applicable tests, closure of critical defects, submission of documentation, and written sign-off by the authorized DepEd Product Owner or process owner.

M3. Release 2: Payroll, Leave, Attendance, and Employee Self-Service

Maximum Delivery Window: Not later than Day 150 from NTP

M3 shall cover the second HRIS release, focusing on payroll-related and employee-facing functions.

At minimum, M3 shall include configured, customized, tested, and documented Release 2 functionality for:

1. Payroll and Remittance;
2. General Payroll;
3. Special Payroll;
4. Personnel Voucher-related processing;
5. Leave Management;
6. Attendance Management;
7. Employee Self-Service functions, including payslip access, leave balance viewing, leave filing, employee requests, and employee record access, as applicable;
8. payroll computation test results;
9. remittance report templates;
10. leave and attendance rule configuration;
11. API, file exchange, or data synchronization validation, where applicable;
12. payroll parallel-run test plan;
13. updated user and administrator guides;
14. Sprint Review Reports;
15. signed-off user stories meeting the Definition of Done.

M3 shall be accepted upon completion of Release 2 testing, documentation, and Product Owner or process-owner sign-off.

Full operational reliance on payroll shall still require the accepted payroll parallel-run accuracy report under M5.

M4. Release 3: Strategic Talent, Learning, Wellness, Rewards, and Succession

Maximum Delivery Window: Not later than Day 190 from NTP

M4 shall cover the third HRIS release, focusing on strategic HR, employee development, and employee welfare modules.

At minimum, M4 shall include configured, customized, tested, and documented Release 3 functionality for:

1. Performance Management, including SPMS, IPCR, and OPCR;
2. Learning and Development;
3. Rewards and Recognition;
4. Employee Wellness and Welfare;
5. Health Profile;
6. Succession Planning and career progression;
7. related dashboards and reports;
8. privacy controls for sensitive and health-related data;
9. statistical reporting controls for health and wellness data;
10. backlog refinement logs;

11. updated user and administrator guides;
12. Sprint Review Reports;
13. user story sign-offs by DepEd process owners.

M4 shall be accepted upon completion of Release 3 testing, documentation, and Product Owner or process-owner sign-off.

Individual-level access to health-related or sensitive data shall be subject to applicable law, approved roles, access controls, and DepEd data governance requirements.

M5. Integrated Testing, Security Validation, Migration Readiness, and Payroll Parallel Run

Maximum Delivery Window: Not later than Day 235 from NTP

M5 shall cover integrated validation of the HRIS releases prior to pilot deployment and phased production rollout.

At minimum, M5 shall include:

1. integrated User Acceptance Testing logs;
2. system integration test results;
3. regression test results;
4. performance or load test results appropriate to the approved implementation scope;
5. security validation report;
6. access-control validation report;
7. audit-log validation report;
8. data privacy controls validation report or checklist;
9. mock migration report;
10. data reconciliation report;
11. defect register and defect closure report;
12. payroll parallel-run accuracy report;
13. pilot Go/No-Go recommendation signed by authorized DepEd Product Owners or process owners;
14. updated technical, user, administrator, and operational documentation.

Security validation shall include, at minimum:

1. review of user roles and permissions;
2. validation of privileged access controls;
3. testing of authentication and session controls;
4. verification of audit-log generation and retrieval;
5. review of sensitive data protections;
6. validation of backup and restoration procedures;
7. review of secure configuration settings;

8. vulnerability scanning or equivalent internal security assessment;
9. remediation tracking for identified findings;
10. documented risk treatment for residual findings accepted by DepEd.

Independent third-party penetration testing shall not be required for milestone acceptance. Internal security testing, vulnerability assessment, secure code review, dependency scanning, access-control testing, and remediation of critical findings shall be sufficient for M5 acceptance.

Payroll shall not be treated as ready for full operational reliance unless the payroll parallel-run accuracy report has been accepted by authorized DepEd payroll, finance, and HR process owners.

M6. Pilot Deployment, Capacity Building, Documentation, and SLA Readiness

Maximum Delivery Window: Not later than Day 270 from NTP

M6 shall cover pilot deployment, capacity building, operational readiness, and preparation for production rollout.

At minimum, M6 shall include:

1. pilot deployment report covering agreed Central Office, Regional Office, Schools Division Office, and school-level users or representatives;
2. production-readiness checklist;
3. training completion report for pilot users, administrators, HR personnel, ICTS support personnel, and identified trainers;
4. knowledge-transfer materials;
5. updated user manuals;
6. updated administrator guides;
7. updated technical maintenance documentation;
8. training decks, job aids, FAQs, or video tutorials;
9. helpdesk scripts;
10. incident escalation matrix;
11. SLA readiness report;
12. pilot issue register and resolution report;
13. phased rollout plan.

Pilot deployment shall validate:

production readiness;
user access and role assignments;
core HR workflows;
recruitment and appointment workflows;
payroll and leave/attendance readiness, where applicable;
data accuracy;
system performance;

helpdesk readiness;
training effectiveness;
defect handling and escalation.

Phased production rollout shall proceed only after pilot completion, closure of critical pilot defects, completion of required training, and approval of the Go/No-Go recommendation.

M7. Production Rollout, Final Handover, and SLA Transition

Maximum Delivery Window: Not later than Day 300 from NTP, or earlier upon completion and acceptance

M7 shall cover phased production rollout, final handover, operational transition, and full source code turnover.

At minimum, M7 shall include:

1. production deployment report;
2. phased rollout evidence;
3. final accepted release deliverables for all required modules;
4. final data migration and reconciliation report;
5. final payroll parallel-run accuracy report;
6. final security and access-control validation report;
7. final audit-log validation report;
8. final performance or load test report;
9. final defect closure report;
10. final training completion report;
11. final user manuals;
12. final administrator guides;
13. technical maintenance manuals;
14. operational runbook;
15. as-built system architecture;
16. data dictionary;
17. API documentation;
18. configuration documentation;
19. deployment documentation;
20. backup and restoration procedure;
21. access credentials and administrative account turnover;
22. complete source code turnover;
23. version-controlled repository turnover;
24. database schema and migration scripts;
25. build, deployment, and rollback scripts;
26. environment configuration templates;
27. custom reports, forms, workflow definitions, templates, and rule configurations;

- 28.integration source code, API connectors, middleware, adapters, and data exchange scripts;
- 29.test scripts, automated test suites, and test data templates, where applicable;
- 30.dependency list, package manifests, libraries, third-party components, and license inventory;
- 31.system installation and local development setup guide;
- 32.System Turnover Report;
- 33.SLA transition report;
- 34.warranty and post-deployment support confirmation;

Full source code turnover shall be a condition for payment of M7.

The Service Provider shall turn over the complete, buildable, deployable, and documented source code for the HRIS, including all modules, customizations, configurations, integrations, reports, scripts, templates, utilities, and deployment artifacts required to operate and maintain the system.

The source code turnover shall be made through a DepEd-controlled or DepEd-accessible version-controlled repository, together with sufficient documentation to allow DepEd or its authorized technical personnel to build, deploy, inspect, maintain, modify, and continue the HRIS without dependence on the Service Provider beyond the contracted support period.

M8. Project Closure, SLA Compliance Verification, and Final Acceptance

Maximum Delivery Window: Not earlier than Day 335, not later than Day 365 from the NTP

M8 shall cover the post-deployment stabilization and SLA compliance monitoring period following production rollout and final handover under M7

Final acceptance shall not be issued if the source code, repository access, deployment artifacts, configuration files, database schema, technical documentation, or administrative credentials necessary for system continuity remain incomplete or inaccessible.

At minimum, M8 shall include:

1. Final SLA Compliance Report including but not limited to system uptime logs and availability monitoring records as evidence
2. Final Defect Closure Report
3. Notarized Certificate of Data Return and/or Destruction
4. Certificate of Final Acceptance

For avoidance of doubt:

1. deployment to a staging or production environment shall not, by itself, constitute completion;
2. demonstration of a baseline HRIS shall not constitute acceptance of DepEd-specific requirements;
3. user story completion shall require compliance with the Definition of Done;
4. Product Owner or process-owner sign-off shall be required for each accepted release;
5. critical defects must be closed before the relevant milestone may be accepted;
6. high-severity defects must either be closed or covered by a DepEd-approved remediation plan;
7. documentation must be updated with each release;
8. data privacy, security, access-control, and audit-log requirements must be validated before pilot and production rollout;
9. payroll shall not be considered ready for full operational reliance unless the payroll parallel-run accuracy report has been accepted by DepEd;
10. final acceptance shall require completion of turnover, documentation, access arrangements, warranty transition, and SLA activation.

6. Inspection and Testing Requirements

1. Pre-Delivery Inspection

Pre-Delivery Inspection refers to testing and validation conducted prior to the formal submission of milestone deliverables to DepEd for acceptance.

2. Post Delivery Inspection

Post-Delivery Inspection refers to testing and validation conducted by Procuring Entity upon submission of milestone deliverables by the Service Provider.

Delivery of each milestone under this contract shall be subject to post-delivery inspection and testing in accordance with the Pre- and Post-Delivery Testing Parameters attached as Annexes to Section VII – Technical Specifications.

7. Definition of Done

No module, user story, sprint increment, release, configuration item, customization, integration, report, migration utility, workflow, or milestone shall be considered complete for acceptance or payment unless it is:

1. traceable to a TOR requirement, approved backlog item, accepted user story, approved configuration item, or approved change item;
2. configured, customized, integrated, implemented, or otherwise delivered in the appropriate HRIS environment;
3. deployed to the agreed environment;

4. tested by the Service Provider;
5. validated through sprint review, system integration testing, UAT, payroll parallel run, migration test, security validation, or other applicable test procedure;
6. supported by test evidence, defect records, and deployment evidence;
7. free from unresolved critical supplier-controlled defects;
8. covered by a DepEd-approved remediation plan for any unresolved high-severity defects;
9. documented in the applicable user, administrator, technical, configuration, or process guide;
10. integrated with prior accepted increments without material regression;
11. compliant with applicable data privacy, security, audit trail, access-control, and records requirements;
12. accepted in writing by the authorized DepEd Product Owner or process owner based on agreed acceptance criteria.

A milestone shall not be deemed incomplete solely because a DepEd-controlled or third-party dependency remains pending, provided that the Service Provider has completed the supplier-controlled components and properly documented the dependency.

Third-party VAPT certification is not part of the Definition of Done unless expressly required by the contract, procurement documents, or a subsequent written DepEd directive.

8. Agile Governance and Release Management

The Service Provider shall implement the HRIS through structured releases and sprint cycles, subject to DepEd governance and acceptance requirements.

At minimum, the Service Provider shall:

1. maintain a Product Backlog covering all required HRIS modules;
2. conduct sprint planning, sprint review, and sprint retrospective activities;
3. submit Sprint Review Reports every two (2) weeks or at another DepEd-approved cadence;
4. identify completed user stories, pending user stories, defects, risks, blockers, and dependencies;
5. obtain written sign-off from the authorized DepEd Product Owner or process owner for accepted user stories;
6. update user guides, administrator guides, and technical documentation with each release;
7. maintain a consolidated defect register;
8. maintain a backlog refinement log;
9. maintain traceability between TOR requirements, backlog items, test cases, and accepted deliverables.

Agile delivery shall not waive the requirement for formal milestone acceptance, documentation, security validation, data migration validation, payroll parallel run validation, SLA transition, or final acceptance.

9. Data Migration and Reconciliation Requirements

Data migration shall be treated as a continuous implementation workstream beginning during project inception and continuing through pilot and production rollout.

The Service Provider shall submit and maintain:

1. data inventory;
2. source system mapping;
3. data cleansing rules;
4. data migration templates;
5. extraction, transformation, and loading procedures;
6. mock migration reports;
7. exception logs;
8. reconciliation reports;
9. production migration report;
10. final data migration completion report.

At minimum, migration planning shall cover employee master data, PDS records, employment history, plantilla information, leave balances, salary and payroll-related data, appointment records, training records, performance records, and other HR records required for the agreed module rollout.

No production migration shall be accepted without reconciliation reports and written acceptance by the designated DepEd data owners or process owners.

10. Payroll Parallel Run Requirement

The Payroll and Remittance module shall undergo parallel run testing prior to full implementation or full operational reliance.

The payroll parallel run shall include:

1. identification of pilot payroll population;
2. loading of payroll-relevant employee, salary, deduction, benefit, tax, and remittance data;
3. payroll computation using the HRIS;
4. comparison against existing payroll computation or reference payroll output;
5. variance analysis;
6. correction of configuration, computation, or data errors;
7. issuance of a Payroll Parallel-Run Accuracy Report;

8. written acceptance by authorized DepEd payroll, finance, and HR process owners.

Payroll shall not be treated as finally accepted for full operational reliance unless the parallel-run accuracy report is accepted and all critical payroll defects are closed.

11. Security, Privacy, and Audit Requirements

Security, privacy, and audit controls shall be implemented throughout the project and shall not be deferred to final deployment.

The Service Provider shall provide evidence of:

1. role-based access control configuration;
2. privileged access control;
3. audit-log activation and retrieval;
4. user activity logging;
5. transaction history and data-change tracking;
6. encryption or other approved safeguards for sensitive data;
7. secure data transmission;
8. data privacy controls for sensitive personal information and health-related data;
9. internal vulnerability assessment, vulnerability scanning, configuration review, or equivalent security validation;
10. remediation or risk acceptance of identified vulnerabilities;
11. breach notification and incident response procedures;
12. backup, restoration, and disaster recovery procedures;
13. compliance with DepEd's security, privacy, and data governance requirements.

Pilot deployment and production rollout shall not proceed unless material security and privacy risks have been closed or formally accepted by DepEd through the appropriate governance process.

Third-party VAPT certification shall not be required as a standard deliverable. Where DepEd later determines that independent testing is necessary for a specific release, module, integration, or production exposure, such requirement shall be separately directed and scheduled, and shall not be implied from this clarification.

12. Training, Knowledge Transfer, and Documentation

The Service Provider shall provide training and documentation in line with each release and deployment phase.

Training shall cover, at minimum:

1. Central Office process owners;
2. Regional Office HR and administrative users;
3. Schools Division Office HR and administrative users;
4. school-level users or designated school HR/admin users, where applicable;
5. ICTS administrators and technical support personnel;
6. helpdesk and support personnel;
7. trainers under the train-the-trainer model;
8. end-users through self-paced guides, videos, FAQs, and job aids.

Documentation shall include, as applicable:

1. user manuals;
2. administrator guides;
3. technical maintenance manuals;
4. operational runbooks;
5. troubleshooting guides;
6. process guides;
7. training decks;
8. video tutorials;
9. data dictionary;
10. API documentation;
11. configuration documentation;
12. as-built system architecture;
13. deployment and environment documentation;
14. backup and restoration documentation;
15. release notes.

Updated guides shall be submitted with each system release. One final manual at the end of the project shall not be sufficient.

13. Pilot Deployment and Phased Rollout

The HRIS shall not proceed directly from UAT to full nationwide rollout.

The Service Provider shall conduct a pilot deployment covering agreed representatives from:

1. Central Office;
2. selected Regional Offices;
3. selected Schools Division Offices;
4. selected schools or school-level users, where applicable.

The pilot deployment shall validate:

1. production readiness;
2. user access and role assignments;
3. core HR workflows;

4. recruitment and appointment workflows;
5. payroll and leave/attendance readiness, where applicable;
6. data accuracy;
7. system performance;
8. helpdesk readiness;
9. training effectiveness;
10. defect handling and escalation.

Phased rollout shall proceed only after pilot completion, closure of critical pilot defects, completion of required training, and approval of the Go/No-Go recommendation.

14. Dependency and Non-Supplier Delay Rule

Milestone acceptance and payment shall be based on completion of supplier-controlled deliverables.

The Service Provider shall not be considered in delay, and milestone payment shall not be withheld, where non-completion is caused by matters outside the Service Provider's reasonable control, including delayed access to DepEd data, delayed approval of counterpart decisions, delayed availability of third-party systems, delayed issuance of credentials, delayed confirmation of integration endpoints, or delayed action by external agencies.

In such cases, the Service Provider shall proceed with unaffected workstreams and, where appropriate, use interim mechanisms such as:

1. representative data;
2. masked data;
3. synthetic data;
4. sample data;
5. sandbox integrations;
6. mock services;
7. file-based data exchange;
8. configurable placeholders;
9. documented manual workarounds.

The Service Provider shall return to close the pending dependency once the required DepEd or third-party action is completed.

This rule shall not excuse the Service Provider from completing deliverables that are within its control.

15. Final Handover and Acceptance

Final acceptance shall require completion and written acceptance of all required deliverables, including:

1. accepted release deliverables for all required modules;
2. final production deployment report;
3. final data migration and reconciliation report;
4. final payroll parallel-run accuracy report;
5. final security and access-control validation report;
6. final audit-log validation report;
7. final performance or load test report;
8. final defect closure report;
9. final training completion report;
10. final user and administrator manuals;
11. technical maintenance manuals;
12. operational runbook;
13. as-built system architecture;
14. data dictionary;
15. API documentation;
16. configuration documentation;
17. complete source code turnover;
18. version-controlled repository turnover;
19. database schema and migration scripts;
20. build, deployment, and rollback scripts;
21. environment configuration templates;
22. custom reports, forms, workflow definitions, templates, and rule configurations;
23. integration source code, API connectors, middleware, adapters, and data exchange scripts;
24. test scripts, automated test suites, and test data templates, where applicable;
25. dependency list, package manifests, libraries, third-party components, and license inventory;
26. system installation and local development setup guide;
27. access credentials and administrative account turnover;
28. System Turnover Report;
29. SLA transition report;
30. warranty and maintenance support confirmation;
31. Signed Certificate of Final Acceptance.

The Service Provider shall turn over all source code and technical assets necessary for DepEd to operate, maintain, audit, enhance, migrate, and continue the HRIS.

The source code turnover shall include the complete source code of the HRIS application, including all modules, customizations, configurations, extensions, integrations, reports, forms, workflow definitions, scripts, database schemas, migration scripts, deployment scripts, build files, test scripts, and technical documentation.

The source code shall be turned over in a complete, buildable, deployable, and version-controlled form. The Service Provider shall provide repository access,

commit history where available, dependency documentation, environment setup instructions, and build/deployment procedures.

The Service Provider shall also disclose and document all third-party libraries, frameworks, packages, services, and dependencies used in the HRIS, including applicable licenses and any restrictions affecting DepEd's continued use, maintenance, modification, or deployment of the system.

A proprietary, closed-source, or restricted component shall not be used if it prevents DepEd from receiving, inspecting, building, deploying, maintaining, modifying, or continuing the HRIS source code and system operations after turnover.

Final acceptance shall not be issued unless DepEd has received and validated the complete source code, repository access, deployment artifacts, database schema, technical documentation, administrative credentials, and continuity materials required under this section.

16. Source Code Ownership, Turnover, and Continuity

All source code, configurations, scripts, database schemas, reports, forms, templates, workflow definitions, integrations, APIs, deployment artifacts, technical documentation, and other system materials developed, configured, customized, or delivered for the HRIS shall be turned over to DepEd.

The Service Provider shall ensure that all such materials are complete, readable, organized, documented, buildable, deployable, and sufficient for DepEd or its authorized technical personnel to operate, maintain, audit, modify, enhance, migrate, and continue the HRIS.

The source code turnover shall include, at minimum:

1. complete application source code;
2. module source code;
3. custom extension source code;
4. API and integration source code;
5. middleware, connectors, adapters, and data exchange scripts;
6. database schema;
7. database migration scripts;
8. seed, reference, and configuration data required for deployment;
9. report templates;
10. form templates;
11. workflow definitions;
12. business rule configurations;
13. build scripts;
14. deployment scripts;
15. rollback scripts;
16. environment configuration templates;
17. automated test scripts, where applicable;

18. manual test scripts and test cases;
19. package manifests and dependency files;
20. third-party library and license inventory;
21. repository access credentials;
22. administrator credentials;
23. system setup and installation guide;
24. local development environment setup guide;
25. production deployment guide;
26. troubleshooting and maintenance guide.

The Service Provider shall not include any component, dependency, license, or proprietary restriction that would prevent DepEd from receiving, inspecting, building, deploying, maintaining, modifying, enhancing, migrating, or continuing the HRIS.

Where third-party libraries, frameworks, packages, or services are used, the Service Provider shall disclose them fully and ensure that their use does not impair DepEd's rights to operate, maintain, and continue the HRIS.

Full source code turnover shall be a condition for final acceptance and final milestone payment.

17. Data Return and Destruction

Data return and destruction obligations shall apply upon contract expiration, termination, non-renewal, transition to another provider, or as otherwise required by DepEd.

The ordinary implementation closure milestone shall require turnover of DepEd data, configuration records, migration artifacts, documentation, account access, and system access credentials.

A notarized certificate of data destruction shall be required when DepEd data must be returned and deleted from the Service Provider's systems in accordance with the contract, data governance provisions, and applicable law.

Data destruction shall not be interpreted to require deletion of data from DepEd-controlled environments, official repositories, approved backups, or production systems that DepEd continues to use.

STATEMENT OF COMPLIANCE

I hereby commit to provide the above specified requirements in compliance with the Schedule of Requirements for the Project: **Procurement of Human Resources Information System.**

Name and Signature of Bidder's Authorized Representatives

Section VII. Technical Specifications

Technical Specifications

Item	Specification	Statement of Compliance
		Bidders must state “Comply” or “Not Comply” for each specification and provide the corresponding performance parameters for offered equipment. Each response must be supported by a clear documentary support in the bid and properly cross-referenced. Acceptable evidence includes unaltered manufacturer sales brochures, official specification sheets, product samples, independent test results, and similar documents. Claims should be backed by documentary support. If the evidence contradicts the claim, the bid may be rejected. Any false statement—whether in the compliance form or supporting documents—found during evaluation, post-qualification, or contract implementation may be considered fraudulent in accordance with <u>ITB Clause 3.1(a)(ii)</u> and without prejudice to the imposition of appropriate administrative, civil, and criminal penalty in accordance with law.

Detailed Specifications

Description	End-User's Terms of Reference
1. Project Title	Human Resources Information System (HRIS).
2. Objective	2.1. The Supplier shall provide DepEd with a modern, integrated, and scalable Human Resources Information System (HRIS). 2.2. It shall include payroll and human capital management functionalities, ensure compliance with government regulations, improve data accuracy, and enhance employee services across the entire Department.
3. Scope	3.1. The system shall cover all organizational levels of DepEd, including: 3.1.1. Central Office (CO) 3.1.2. Regional Offices (RO) 3.1.3. Schools Division Offices (SDO) 3.1.4. District Offices 3.1.5. Schools (elementary, junior high school, and senior high school). 3.2. The HRIS will serve over one million employees, covering plantilla, contract of service (COS), job order (JO), and other employment categories. Specifications shall cater to teaching, related-teaching, and non-teaching personnel. 3.3. Key functional areas to be included in phased implementation are: 3.3.1. Personnel Information Management 3.3.2. Applicant Portal 3.3.3. Recruitment, Selection, and Placement (RSP) 3.3.4. Employee Self-Service Portal 3.3.5. Leave and Attendance Management 3.3.6. Payroll (General, Special, Personnel Voucher) 3.3.7. Performance Management (SPMS, IPCR, OPCR) 3.3.8. Learning and Development 3.3.9. Rewards and Recognition 3.3.10. Employee Wellness and Welfare including Health Profile 3.3.11. Succession Planning (to include career progression) 3.4. The first three functional areas — Personnel Information Management, Applicant Portal, and Recruitment, Selection, and Placement (RSP) — are presented in detail within this document, with technical specifications describing their processes, workflows, and reporting requirements. 3.5. The remaining functional areas — Employee Self-Service, Leave and Attendance Management, Payroll, Performance Management, Learning and Development, Rewards and Recognition, and Employee Wellness and Welfare including Health Profile — shall be finalized through further consultations with the concerned offices, process owners, and user groups

Description	End-User's Terms of Reference
	within the Department. The design and implementation of these modules will be guided by existing DepEd policies, CSC and DBM requirements, and established government standards. 3.6. It is understood that the delivery of these additional modules forms part of the service commitment under the Implementation Plan, with specifications to be confirmed and refined during the inception and business process validation stages. The Service Provider shall ensure that the system accommodates these modules in accordance with DepEd's operational requirements and the phased rollout strategy.
4. General Specifications	4.1. Integration and Data Exchange. 4.1.1. The system shall ensure that all modules are seamlessly integrated, utilizing a centralized and common database. 4.1.2. The system shall support full interoperability, enabling the secure exchange and sharing of information with other organizational systems through standardized Application Programming Interfaces (APIs). 4.1.3. The technologies employed shall facilitate integration with current and future platforms used by the Department and its oversight bodies. 4.2. Electronic Approval Workflow. 4.2.1. The system shall provide a fully electronic, highly customizable approval workflow that enables the routing, processing, and storage of transactions to authorized recipients, supervisors, and managers. 4.2.2. The approval process shall accommodate varying levels of reviewers and approvers depending on employee rank, position, or request type. 4.2.3. The system shall support digital signatures and allow for future integration with the Department's e-signature initiatives through APIs or similar mechanisms. 4.3. Built-in Internal Controls and Business Rules Integration. 4.3.1. The system shall enforce compliance with applicable policies and regulations through embedded program validation controls. 4.3.2. Transactions shall only proceed in accordance with defined rules, ensuring adherence to the standards of government oversight bodies and internal policies. 4.3.3. The system shall include automated checks to prevent errors, redundancies, or violations of established business rules. 4.4. Online Forms and Audit Controls. 4.4.1. The system shall provide electronic forms across all modules and submodules that can be filled out online and submitted with

Description	End-User's Terms of Reference
	documentary attachments that can accommodate all file types. 4.4.2. The system shall support process integration, allowing relevant data from previously submitted forms to automatically carry over to subsequent processes, thereby eliminating manual re-encoding. 4.4.3. The system shall automatically generate and assign control numbers to requests, forms, records, and reports, as applicable, for audit trail and tracking purposes. 4.5. Compliance with Inter-Agency Standards and Updates. 4.5.1. The system shall remain compliant with policies, protocols, and requirements issued by relevant government oversight and regulatory bodies, including but not limited to the Department of Information and Communications Technology (DICT), the Civil Service Commission (CSC), the Department of Budget and Management (DBM), the National Privacy Commission (NPC), and other applicable agencies. 4.5.2. The Service Provider shall ensure the following: 4.5.2.1. Adaptability to Updates – The system is capable of accommodating changes, updates, or enhancements required by such inter-agency issuances (e.g., new compliance protocols, reporting formats, security standards, or HR process guidelines). 4.5.2.2. Implementation Timeline – All necessary adjustments shall be developed, tested, and deployed within ninety (90) calendar days from the date of issuance of the relevant regulation or directive, unless otherwise specified by the Department. 4.5.2.3. Consultation and Validation – The Service Provider shall consult with the Department and concerned agencies, as necessary, to validate the implementation of changes and ensure full compliance. 4.5.2.4. Documentation and Training – Updated user manuals, process guides, and orientation/training sessions shall be provided to ensure that both administrators and end-users are properly equipped to implement the updated compliance protocols. 4.5.2.5. Security Policy - Ensure immediate settlement of any possible Information and Communications Technology security issues to prioritize securing HR Data, especially those confidential in nature. 4.5.2.6. Failure to comply with these requirements shall render the Service Provider in breach of its contractual obligations and subject to appropriate penalties.

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5. Functional Detailed Specifications of Identified Modules	5.1. External Applications Portal. 5.1.1. The system shall categorize and display job postings under either the Central Office (CO) or the Regional Offices (RO). Once an application is submitted by an external applicant, the appropriate Recruitment Officer (CO or RO) shall be automatically notified. 5.1.2. The system shall require external applicants to create a secure account prior to submitting any job application. 5.1.3. The system shall allow external applicants to: 5.1.3.1. View available job openings; 5.1.3.2. Submit applications; and 5.1.3.3. Save job listings for future reference. 5.1.4. The system shall enable external applicants to complete application details in the prescribed Personal Data Sheet (PDS) format. 5.1.5. The system shall allow applicants to upload supporting documents, including but not limited to: 5.1.5.1. Profile picture, 5.1.5.2. Application letter, and 5.1.5.3. Notarized Personal Data Sheet. 5.1.6. The system shall allow Recruitment Officers (CO or RO) to reopen applications that were previously withdrawn by the applicant. 5.1.7. The system shall provide external applicants with real-time access to their application status. 5.1.8. The system shall automatically notify external applicants, via email, six (6) months after account creation to update their Personal Data Sheet and Work Experience records. 5.1.9. The system shall generate and send acknowledgment emails to applicants upon successful submission of an application. 5.1.10. The system shall display the current application status to external applicants using the following categories: 5.1.10.1. Draft 5.1.10.2. Submitted 5.1.10.3. Ongoing 5.1.10.4. Appointed 5.1.10.5. Not Chosen 5.2. Job Posting. 5.2.1. The system shall allow the Central Office (CO) Recruitment Officer or Regional Office (RO) Recruitment Officer to create and post job openings based on the approved Civil Service Commission (CSC)

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	Form 9. 5.2.2. The system shall provide functionality for the CO or RO Recruitment Officer to generate CSC Form 9 directly within the platform. 5.2.3. The system shall allow RO Recruitment Officers to independently post job openings specific to their Regional Office. 5.2.4. The system shall enable the CO Recruitment Officer to tag a job posting as either: 5.2.4.1. Publication (external media), or 5.2.4.2. Internal Posting (Agency Website, Bulletin Board, and Social Media Accounts). 5.2.5. The system shall provide a facility for setting submission deadlines for applications and shall generate reminders for Recruitment Officers of upcoming deadlines. 5.2.6. Recruitment Officers may be allowed to view submitted applications for monitoring and administrative preparation, while formal evaluation or processing shall commence only after the lapse of the prescribed submission period, unless the process owner determines otherwise 5.2.7. For Plantilla job postings, the system shall automatically set the following tabs as required fields, with the option to add additional tabs as necessary: 5.2.7.1. Personal Information 5.2.7.2. Educational Background 5.2.7.3. Work Experience 5.2.7.4. Learning and Development 5.2.7.5. Eligibility 5.2.7.6. References 5.2.8. For Non-Plantilla (Casual) job postings, the system shall automatically set the following tabs as required fields, with the option to add additional tabs as necessary: 5.2.8.1. Personal Information 5.2.8.2. Educational Background 5.2.8.3. Work Experience 5.2.8.4. Learning and Development 5.2.8.5. References 5.2.9. The system shall allow the CO Recruitment Officer to encode the Qualification Standards (QS) for each position. 5.2.10. The system shall allow the CO or RO Recruitment

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	Officer to: 5.2.10.1. unpublish a job posting when necessary; 5.2.10.2. upload multiple job postings in bulk using a system-provided template; 5.2.10.3. define the minimum educational requirement for each job posting; 5.2.10.4. specify documentary requirements for each job posting; 5.2.10.5. post and process job openings in relation to Job Order (JO) positions; 5.2.10.6. manage and update Qualification Standards in accordance with the QS Manual. 5.2.11. The system shall enforce submission deadlines by disallowing applicants from submitting applications after 5:00 PM on the deadline date. 5.2.12. Once a job posting is published, the system shall automatically notify all relevant personnel of the available job opening. 5.3. Job Opportunities. 5.3.1. The system shall provide users with access to a secure self-service portal where they can view all available job opportunities. 5.3.2. The system shall display all active job openings on the users dashboard, regardless of whether the posting originates from the Central Office or a Regional Office. 5.3.3. The system shall allow users to view the complete details of each job posting. 5.3.4. The system shall enable personnel to apply directly for any job opening through the portal. 5.3.5. 5.3.5. The system shall validate the users' Personal Data Sheet (PDS) and Work Experience Sheet (WES) against the required tabs of the job opening. If the PDS/WES is incomplete or outdated, the system shall prompt the users to update and resubmit within the prescribed application period and before final submission or evaluation, subject to the recruitment rules set by the process owner prior to completing the application 5.3.6. The system shall allow users to monitor and track the status of their submitted applications in real time. 5.3.7. The system shall allow users to cancel an application at any stage prior to final processing. 5.3.8. The system shall allow users to submit multiple applications without restriction.

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	5.4. Applicant Management. 5.4.1. The system shall allow the Central Office (CO) Recruitment Officer or Regional Office (RO) Recruitment Officer to access and manage the complete list of applicants—both internal and external—for each job posting. 5.4.2. The system shall provide functionality for the generation of a Personal Data Sheet (PDS) and Work Experience Sheet (WES) for applicants. 5.4.3. The system shall enable Recruitment Officers to process applications in accordance with applicable requirements and workflows, including separate provisions for Non-Plantilla and Plantilla positions. 5.4.4. Non-Plantilla Applications (Internal and External) 5.4.4.1. Pre-Screening 5.4.4.1.1. The system shall allow the Recruitment Officer to tag applicants as either Qualified or Not Qualified. 5.4.4.1.2. The system shall allow tagging of documentary requirements with the following statuses: 5.4.4.1.2.1. Complete 5.4.4.1.2.2. Incomplete 5.4.4.1.2.3. For Compliance 5.4.4.1.2.4. For Resubmission 5.4.4.2. Endorsement by Office 5.4.4.2.1. The system shall allow recruitment officers to endorse qualified applicants for further processing. 5.4.4.3. Issuance of Resolution 5.4.4.3.1. Once endorsement is completed, the system shall generate a congratulatory email notification to the applicant. 5.4.4.4. Preparation and Processing of Appointment Papers 5.4.4.4.1. The system shall provide tools to facilitate the preparation and processing of appointment-related documentation. 5.4.4.5. Submission to CSC 5.4.4.5.1. The system shall automatically set a default number of days after the assumption date for the submission of required documents to the Civil Service Commission (CSC). 5.4.4.5.2. The system shall still allow the Recruitment

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	Officer to process the applicant even after the prescribed period has lapsed. 5.4.5. Plantilla Applications (Internal and External) 5.4.5.1. Pre-Screening (Initial) 5.4.5.1.1. The system shall allow the Recruitment Officer to tag applicants as either: 5.4.5.1.1.1. Qualified; or 5.4.5.1.1.2. Not Qualified. 5.4.5.1.2. The system shall send an email notification to all applicants informing them of their status (qualified or not qualified). 5.4.5.1.3. The system shall allow tagging of documentary requirements as: 5.4.5.1.3.1. Complete 5.4.5.1.3.2. Incomplete 5.4.5.1.3.3. For Compliance 5.4.5.1.3.4. For Resubmission 5.4.5.1.4. The system shall notify the applicant once each step has been completed. 5.4.5.2. Pre-Screening (Review) 5.4.5.2.1. The same tagging and notification functionality as the initial screening shall apply. 5.4.5.3. Competency-Based and IQ Examination Posting 5.4.5.3.1. The system shall allow Recruitment Officers to encode details such as: 5.4.5.3.1.1. Online meeting link (if applicable) 5.4.5.3.1.2. Examination date and time 5.4.5.3.1.3. Examination venue 5.4.5.3.2. The system shall notify the applicant once details are posted. 5.4.5.4. Examination Administration 5.4.5.4.1. The system shall automatically display examination schedules based on encoded details. 5.4.5.4.2. The system shall allow tagging of applicant attendance (Present/Not Present). 5.4.5.4.3. The system shall notify the applicant once the step is completed. 5.4.5.5. Background Investigation

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	5.4.5.5.1. The system shall allow Recruitment Officers to record findings from background checks. 5.4.5.6. Notice of Panel Interview 5.4.5.6.1. The system shall allow encoding of interview details (date, time, venue, onsite/online). 5.4.5.6.2. The system shall notify applicants once this step is completed. 5.4.5.7. Panel Interview 5.4.5.7.1. The system shall allow tagging of whether the interview was conducted. 5.4.5.7.2. The system shall allow the step to be completed by the Recruitment Officer. 5.4.5.8. Board Deliberation 5.4.5.8.1. The system shall allow tagging of applicants who are within the top five ranking. 5.4.5.8.2. If qualified, the process shall proceed to the Psychometric Examination step. 5.4.5.8.3. If not qualified, the system shall allow the Recruitment Officer to send regret letters to non-selected candidates. 5.4.5.9. Notice of Psychometric Examination 5.4.5.9.1. The system shall notify applicants of examination details once posted. 5.4.5.10. Evaluation of Psychometric Examination Results 5.4.5.10.1. The system shall allow Recruitment Officers to tag whether results have been submitted. 5.4.5.10.2. The system shall notify applicants once evaluation is completed. 5.4.5.11. HR Endorsement 5.4.5.11.1. The system shall allow tagging of applicant status as For Review, Return to RO, For Compliance, or For Endorsement. 5.4.5.11.2. The system shall notify applicants once the status is updated. 5.4.5.12. Endorsement of Qualified Candidates 5.4.5.12.1. The system shall allow Recruitment Officers to encode the date of endorsement. 5.4.5.12.2. The system shall allow uploading of supporting documents.

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	5.4.5.12.3. The system shall generate an official Endorsement Report. 5.4.6. Schedule. 5.4.6.1. The system shall display a calendar view of the current month, reflecting all scheduled recruitment-related activities. 5.4.6.2. The system shall automatically update the calendar to include any additions, changes, or rescheduling of interviews, examinations, or related activities entered through the Manage Applicant process. 5.4.6.3. The system shall utilize predefined legends or markers in the calendar to clearly distinguish between different types of activities such as examinations, interviews, deliberations, or endorsements. 5.4.6.4. The system shall automatically tally and display the number of applicants scheduled for each type of activity (e.g., interviews, examinations, deliberations, endorsements). 5.4.6.5. The system shall allow users to view applicant details—including name, position applied for, and activity venue—when selecting a specific date in the calendar. 5.4.7. Candidates. 5.4.7.1. The system shall display categorized lists of applicants, including but not limited to: 5.4.7.1.1. Applicants who have passed the examination, 5.4.7.1.2. Applicants who were not appointed, and 5.4.7.1.3. Applicants for whom no regret letter has been sent. 5.4.7.2. The system shall allow the Central Office (CO) Recruitment Officer or Regional Office (RO) Recruitment Officer to send email notifications directly through the system to applicants as required. 5.4.7.3. The system shall allow the Recruitment Officer to generate a Matrix of Applicants for use in evaluation and decision-making processes. 5.4.7.4. The system shall allow the Recruitment Officer to generate a Rating Evaluation Sheet, with functionality to sort applicant records based on: 5.4.7.4.1. Total Points (with performance rating), or 5.4.7.4.2. Total Points (without performance rating). 5.4.7.5. The system shall allow the Recruitment Officer to generate a List of Qualified Applicants for endorsement and

Description	End-User's Terms of Reference
	appointment purposes. 5.4.7.6. The system shall allow the Recruitment Officer to generate Demographic Reports per Position, including applicant distribution by relevant categories (e.g., education, experience, gender, age). 5.4.8. Application Assessment 5.4.8.1. The system shall display a complete list of all applicants, including both external and internal candidates. 5.4.8.2. The system shall display applicant data together with all related recruitment activities conducted. 5.4.8.3. The system shall allow the Central Office (CO) Recruitment Officer or Regional Office (RO) Recruitment Officer to generate a Rating Evaluation Sheet. 5.4.8.4. The system shall allow sorting of applicant reports based on: 5.4.8.4.1. Total Points (with performance rating), or 5.4.8.4.2. Total Points (without performance rating). 5.4.8.5. The system shall display the list of assessment criteria and enable definition of ratings for each criterion. 5.4.8.6. The system shall automatically calculate the average interview rating based on defined criteria. 5.4.8.7. The system shall allow the Recruitment Officer to designate an interviewer for each applicant. 5.4.8.8. The system shall allow the Recruitment Officer to save the assessment record as a draft or post it immediately. 5.4.8.9. Once posted, the system shall allow the Recruitment Officer to generate an official Applicant Assessment Form. 5.4.8.10. The system shall allow the Personnel Selection Board (PSB) Secretariat to rate applicants, with the system automatically computing the average score per criterion. 5.4.8.11. The system shall display converted points within the Rating Evaluation Sheet for reference. 5.4.8.12. The system shall allow the PSB Secretariat to save ratings as a draft or post them immediately. 5.4.8.13. Once posted, the system shall allow the PSB Secretariat to generate the Applicant Assessment Form. 5.4.8.14. The system shall allow the Recruitment Officer to encode details of the Background Investigation conducted on applicants. 5.4.8.15. The system shall display the highest background investigation rating within the Rating Evaluation Sheet.

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	5.4.8.16. The system shall allow the Recruitment Officer to conduct and record findings from three (3) or more background investigations. 5.4.8.17. The system shall allow the Recruitment Officer to encode results gathered from external informants during the background investigation process. 5.4.8.18. For internal applicants, the system shall automatically apply the latest performance rating. 5.4.8.19. For external applicants and applicants from other government agencies, the system shall provide functionality to: 5.4.8.19.1. Allow applicants to encode their ratings based on submitted documents; 5.4.8.19.2. Allow the PSB Secretariat to review and modify the ratings as necessary; and 5.4.8.19.3. Capture both numerical and adjectival ratings in the system. 5.4.8.20. Once all required steps are completed and posted, the system shall allow the Recruitment Officer or the PSB Secretariat to generate the final Applicant Assessment Form. 5.5. Appointment Process. 5.5.1. The system shall allow the Central Office (CO) Recruitment Officer or Regional Office (RO) Recruitment Officer to validate whether the selected appointee complies with all required appointment documentary requirements. 5.5.2. The system shall allow the Recruitment Officer to generate a Report on Appointments Issued. 5.5.3. The system shall allow the Recruitment Officer to tag whether the appointment paper or resolution has been released. Once released, the system shall automatically notify the appointee via email. 5.5.4. The system shall automatically send an email to the appointee containing the list of appointment requirements that must be submitted. 5.5.5. The system shall allow the CO Recruitment Officer to generate the CSC Form 33A – Appointment Form (Regulated). 5.5.6. The system shall allow the Recruitment Officer to generate the Oath of Office form. 5.5.7. The system shall allow the Recruitment Officer to generate a Certificate of Erasures/Alterations. 5.5.8. The system shall allow the Recruitment Officer to generate the HRMPSB Endorsement Report. 5.5.9. The system shall allow the Recruitment Officer to set and

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	record the official Orientation Date for the appointee. 5.5.10. The system shall allow the Recruitment Officer to define and record the Probationary Period for the new employee. 5.5.11. The system shall allow the Recruitment Officer to post and finalize the appointment details within the system. 5.5.12. The system shall allow the Recruitment Officer to select an alternate appointee in the event that the first appointee withdraws from the appointment. 5.5.13. The system shall require the Recruitment Officer to upload a formal Withdrawal Letter from the original appointee in order to complete the reassignment process. 5.6. New Hire Processing. 5.6.1. The system shall allow the HR Records Officer to access the complete list of appointees requiring new hire processing. 5.6.2. The system shall allow the HR Records Officer to generate the Personal Data Sheet (PDS) for each appointee. 5.6.3. The system shall allow the HR Records Officer to assign a unique Employee Number to the new hire. 5.6.4. The system shall allow the HR Records Officer to input and assign a Biometric PIN for timekeeping and attendance tracking purposes. 5.6.5. The system shall allow the HR Records Officer to assign the work schedule of the new hire. 5.6.6. The system shall allow the HR Records Officer to designate the official work location of the new hire. 5.6.7. The system shall allow the HR Records Officer to record and transfer any carried-over leave balances of the new hire, particularly for those transferring from other government agencies. 5.6.8. The system shall allow the HR Records Officer to add compensation and benefits over and above the default package applicable to plantilla or non-plantilla personnel. 5.6.9. The system shall allow the HR Records Officer to add deductions beyond the standard default deductions applied to plantilla or non-plantilla personnel. 5.6.10. For internal applicants, the new hire processing shall be skipped. Instead, once the Assumption Date has been set in the Appointment Module, the system shall automatically create a new work experience record in the Core > Personnel Management module. 5.7. Reports Generation. 5.7.1. The system shall have the capability to generate, export, and print the following reports and forms to support recruitment, selection, appointment, and related HR processes:

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	5.7.1.1. Request for Publication of Vacant Positions 5.7.1.2. Personal Data Sheet 5.7.1.3. Work Experience Sheet 5.7.1.4. Report on Appointments Issued 5.7.1.5. CSC Form 33A - Appointment Form Regulated 5.7.1.6. Oath of Office 5.7.1.7. Certificate of Erasures Alteration 5.7.1.8. HRMPSB Endorsement Report 5.7.1.9. Matrix of Applicants 5.7.1.10. Rating Evaluation Sheet 5.7.1.11. List of Qualified Applicants Demographics per Position 5.7.1.12. Endorsement Report 5.7.1.13. Profile of Applicants 5.7.1.14. List of Applicant per Job Posting 5.7.1.15. Applicant Assessment Summary Form 5.7.1.16. Applicant for Plantilla Position 5.7.1.17. Appointment Form 5.7.1.18. Certificate of Assumption to Duty List of Applications Received 5.7.1.19. List of Appointments 5.7.1.20. Certificate of the Absence of a Qualified Eligible 5.7.1.21. List of Pooling Candidates 5.7.1.22. List of Qualified Applicants 5.7.1.23. List of Vacant Positions 5.7.1.24. Recruitment Aging and Processing Report 5.7.1.25. Status of the Recruitment and Selection Process 5.7.1.26. Talent Sourcing 5.7.1.27. Interview Rating Sheet 5.7.1.28. Reporting to Office of the Appointee Background Investigation 5.8. Personnel Information Management. 5.8.1. The system shall provide authorized Human Resource (HR) personnel with the capability to maintain, update, and manage comprehensive employee records (201 files) for all personnel. 5.8.2. It shall serve as the central repository of employee information, supporting report generation, compliance with government

Description	End-User's Terms of Reference
	standards, and integration with payroll and other HR processes. 5.8.3. Employee Record Management 5.8.3.1. The system shall allow authorized HR personnel to maintain complete 201 files of employees. 5.8.3.2. The system shall store and manage data including, but not limited to: 5.8.3.2.1. Office/Regional Office 5.8.3.2.2. Division 5.8.3.2.3. Salary Grade and Salary Tranches 5.8.3.2.4. Position Title 5.8.3.2.5. Eligibility 5.8.3.2.6. Employment Status 5.8.3.2.7. Job Level 5.8.3.2.8. Plantilla/Non-Plantilla designation 5.8.3.2.9. Account Codes 5.8.4. Personal Data Sheet (PDS) Management 5.8.4.1. The system shall provide a customizable Personal Data Sheet (PDS) aligned with the Civil Service Commission (CSC) prescribed format. 5.8.4.2. The PDS shall include, and be capable of updating, the following details at any time: 5.8.4.2.1. Personal Details 5.8.4.2.2. Employment and Work Experience 5.8.4.2.3. Family Background 5.8.4.2.4. Educational Background 5.8.4.2.5. Eligibility 5.8.4.2.6. Voluntary Work 5.8.4.2.7. Training and Seminars Attended 5.8.4.2.8. Awards and Other Information; and 5.8.4.2.9. References 5.8.5. Employee History Tracking 5.8.5.1. The system shall maintain the complete history of job-related information for each employee, including: 5.8.5.1.1. Employee ID 5.8.5.1.2. Date of Assumption 5.8.5.1.3. Position Title and Item Number

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	5.8.5.1.4. Salary Grade and Step 5.8.5.1.5. Office/Division/Section assignment 5.8.5.1.6. Employment Status 5.8.5.1.7. Salary (monthly/quarterly/annually) 5.8.5.1.8. Salary Adjustments and Step Increments 5.8.5.1.9. Allowances (RATA, PERA, others) 5.8.5.1.10. Separation Date 5.8.5.1.11. Nature of Separation 5.8.6. Compliance Support 5.8.6.1. The system shall support the Personnel Services Itemization and Plantilla of Personnel (PSIPOP) requirements of the Department of Budget and Management (DBM). 5.8.6.2. The system shall enable Payroll Officers to process salary differentials, step increments, and loyalty pay. 5.8.6.3. The system shall allow recording of administrative cases and disciplinary actions for employees. 5.8.7. Reports and Certifications 5.8.7.1. The system shall generate reports and documents using prescribed formats, including but not limited to: 5.8.7.1.1. Service Record 5.8.7.1.2. Distribution of Employees by Sector/Office/Division 5.8.7.1.3. Updated Personnel Statistics and demographic listings (filled/unfilled positions, age, sex, educational background, civil status, etc.) 5.8.7.1.4. Certificate of Employment and other employee-related certifications 5.8.7.1.5. Agency Plantilla of Personnel 5.8.7.1.6. Employee Masterlist 5.8.7.1.7. Notice of Salary Adjustment 5.8.7.1.8. Notice of Step Increment 5.8.7.1.9. List of Employees entitled to Loyalty or Step Increment 5.8.8. Forms Management 5.8.8.1. The system shall display and process forms prescribed by HRD and relevant agencies (CSC, DBM, GSIS, PhilHealth, Pag-IBIG, SSS, BIR), including: 5.8.8.1.1. Personal Data Sheet (PDS)

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	5.8.8.1.2. Application for Leave of Absence 5.8.8.1.3. Application for Monetization of Vacation/Sick Leave Credits 5.8.8.1.4. Statement of Assets, Liabilities, and Net Worth (SALN) 5.8.8.1.5. Application for Compensatory Time-Off (CTO) 5.8.8.1.6. Performance Management Forms (Individual Performance Commitment and Review Form (IPCRF), Office Performance Commitment and Review Form (OPCRF), Performance Monitoring and Coaching Form, Performance Calibration Form, Certificate of Performance Assessment) 5.8.8.1.7. Work Experience Sheet (WES) 5.8.8.1.8. Permission Slips and Official Business Passes 5.8.8.1.9. Membership forms (GSIS, Pag-IBIG, PhilHealth, SSS, BIR) 5.8.8.1.10. Loan and Claims forms (GSIS, Pag-IBIG, PhilHealth, SSS, BIR) 5.8.8.1.11. Other applicable government forms 5.8.9. Analytics and Visualization 5.8.9.1. The system shall generate HR dashboards, charts, graphs, and statistical reports for analysis 5.8.10. HR Actions and Appointments 5.8.10.1. The system shall support the recording, processing, and issuance of appointments and HR actions, including but not limited to: 5.8.10.1.1. Promotion, Transfer, Reemployment, Reinstatement 5.8.10.1.2. Demotion (voluntary or disciplinary) 5.8.10.1.3. Reclassification, Reassignment, Detail, Designation 5.8.10.1.4. Probationary Period assignment 5.8.10.1.5. Change in Item Number 5.8.10.1.6. Step Increment or Salary Adjustment 5.8.10.1.7. Reinstatement to same position/item 5.8.10.1.8. Coterminous appointments 5.8.11. Employee Feedback

Description	End-User's Terms of Reference
	5.8.11.1. The system shall be capable of capturing and displaying collected feedback and reviews from employees as part of HR monitoring.
6. Generic Specifications of Additional Modules	6.1. In addition to the detailed specifications for Personnel Information Management, Applicant Portal, and the sub--modules involving Recruitment, Selection and Placement (RSP), the HRIS shall also include additional functional key areas. These shall be designed and implemented based on further consultations with the Department's process owners and aligned with applicable government rules and regulations. The Service Provider shall ensure that these modules are integrated seamlessly with the core HRIS and shall form part of the overall service commitment. 6.2. Employee Self-Service Portal. 6.2.1. The system shall provide employees with secure self-service access to their HR information and transactions. At a minimum, the portal shall allow employees to: 6.2.1.1. Update and view their Personal Data Sheet (PDS) and employment records. 6.2.1.2. Access payslips, leave balances, and benefits. 6.2.1.3. Submit requests such as leave, travel authority, official business, time-off, and monetization of leave credits. 6.2.1.4. View records of training, performance evaluations, and recognition received. 6.3. Leave and Attendance Management 6.3.1. The system shall automate the filing, routing, approval, and tracking of employee leave and attendance. At a minimum, it shall support: 6.3.1.1. Filing, routing, and approval of leave applications in compliance with Civil Service rules. 6.3.1.2. Attendance logging, with integration to biometric devices and/or online attendance systems. 6.3.1.3. Leave credit accrual and monitoring. 6.3.1.4. Filing and approval of compensatory time-off (CTO) and overtime requests. 6.3.1.5. Compliance with Civil Service Commission (CSC) leave administration policies. 6.4. Payroll (General, Special, Personnel Voucher) 6.4.1. The system shall generate payroll in compliance with government rules, ensuring accuracy, transparency, and accountability. At a minimum, it shall support: 6.4.1.1. Payroll generation for plantilla and non-plantilla personnel. 6.4.1.2. Computation of taxes, GSIS, Pag-IBIG, PhilHealth, and SSS contributions.

Description	End-User's Terms of Reference
	6.4.1.3. Inclusion of allowances, overtime pay, and other deductions. 6.4.1.4. Generation of payroll vouchers, disbursement schedules, and remittance reports. 6.4.1.5. Full audit trail of payroll transactions and support for parallel run testing prior to full implementation. 6.5. Performance Management (SPMS, IPCR, OPCR) 6.5.1. The system shall support the Strategic Performance Management System (SPMS) and related DepEd performance processes. At a minimum, it shall include: 6.5.1.1. Encoding of individual, office, and organizational performance commitments (IPCR, OPCR). 6.5.1.2. Performance monitoring, coaching, review and evaluation workflows. 6.5.1.3. Automatic computation and consolidation of summary of performance data and ratings including ratings on Objectives and Key Result Areas (KRAs), demonstrated DepEd Competencies (i.e., Core, Functional and Leadership) with data segregation by rating period or performance cycle, office and improvement development plan, and individual development plan 6.5.1.4. Linkage of performance results to rewards and recognitions, promotions, career development, and learning and development interventions 6.5.1.5. Compliance with CSC SPMS guidelines and DepEd internal performance frameworks. 6.6. Learning and Development. 6.6.1. The system shall support the management of employee capacity-building and L&D programs. At a minimum, it shall provide: 6.6.1.1. Tools for L&D need identification, planning, and scheduling. 6.6.1.2. Training records management, including completed courses, certifications, and participation history. 6.6.1.3. Tracking of Individual Development Plans (IDPs). 6.6.1.4. Evaluation of L&D outcomes and effectiveness. 6.6.1.5. Posting, Update, and Administration of L&D intervention and Scholarship opportunities and availment procedures. 6.6.1.6. Administration of Service Obligation Contracts 6.6.1.7. Tools for designing, submitting, reviewing and approving PD programs, including alignment with PPST/PPSSH/PPSS competency standard

Description	End-User's Terms of Reference
	6.6.1.8. Management of PD authorized providers, specifically their performance in terms of the no. of quality assured/recognized programs and the no. of submission of completion reports. 6.6.1.9. Monitoring of program implementation, attendance, outputs and completion 6.6.1.10. Learning Management System for NEAP core programs 6.7. Rewards and Recognition. 6.7.1. The system shall enable transparent and systematic management of employee incentives and recognition programs. At a minimum, it shall support: 6.7.1.1. Administration of awards and incentives, including commendations and citations. To include consolidating mechanisms and features to manage nomination forms and documents for DepEd Central Office or External Award giving body (i.e. CSC, CESB, Metrobank etc.) 6.7.1.2. Processing of loyalty awards, step increments, and related recognitions. Automation of processing of eligible personnel of such loyalty incentive given the integration of the module with the service records of employees 6.7.1.3. Integration with performance management results to ensure merit-based recognition. 6.8. Employee Wellness and Welfare. 6.8.1. The system shall support monitoring and management of employee wellness and welfare initiatives. At a minimum, it shall include: 6.8.1.1. Tracking of wellness programs (health, counseling, fitness activities). 6.8.1.2. Management of welfare services (insurance, emergency assistance, employee aid programs). 6.8.1.3. Monitoring of employee participation and evaluation of program impact. 6.8.1.4. Capture the health profile (basic health information, medical and family history, HMO/Health Insurance coverage) following a strict data privacy protocol for health related records. 6.8.1.5. Generate ONLY statistical data reports and analysis of the health and wellness information of the employees needed for review/development of related policies and programs.
7. Implementation	7.1. Within thirty (30) calendar days from issuance of the Notice to Proceed (NTP), the Service Provider shall submit a detailed Implementation Plan for

Description	End-User's Terms of Reference
Plan Requirement	approval by the Department. 7.2. The Implementation Plan shall include, at a minimum: 7.2.1. Project Work Plan and Schedule – Detailed timelines, milestones, and deliverables covering all phases of development, configuration, data migration, testing, training, and rollout. 7.2.2. Module Deployment Roadmap – Clear sequencing of the deployment of all HRIS modules, including Personnel Information Management, Applicant Portal, Recruitment, Selection and Placement (RSP), Employee Self-Service, Leave and Attendance, Payroll, Performance Management, Learning and Development, Rewards and Recognition, and Employee Wellness and Welfare. 7.2.3. Resource Allocation – Identification of technical and functional teams, their roles and responsibilities, and required Department counterparts. 7.2.4. Risk Management Plan – Identification of risks, mitigation strategies, and contingency measures. 7.2.5. Acceptance Criteria – Defined success indicators, test scripts, and quality assurance mechanisms for each module and phase. 7.3. The Service Provider shall ensure that all modules required under the HRIS scope are included in the plan and scheduled for deployment in accordance with the Implementation Roadmap, with full completion no later than the agreed final project delivery date. 7.4. Failure to submit the Implementation Plan within the prescribed thirty (30) days, or failure to incorporate all modules into the plan, shall constitute a breach of contract and may be grounds for the imposition of penalties or contract termination, subject to existing government procurement rules and regulations.
8. Data Governance	8.1. Confidentiality of Data. 8.1.1. Compliance with Data Privacy Laws. The Service Provider shall strictly comply with the provisions of the Data Privacy Act of 2012 (Republic Act No. 10173), its Implementing Rules and Regulations (IRR), and all other applicable laws and issuances pertaining to data privacy and protection. 8.1.2. Non-Disclosure Obligations. All personnel of the Service Provider assigned to the project shall be required to execute a Non-Disclosure Agreement (NDA) prior to engagement. Such obligation shall survive and remain in force even after the termination or expiration of the contract, regardless of cause. 8.1.3. Personnel Changes. In the event of personnel changes, including replacements, reassignments, or new deployments, the Service Provider shall: 8.1.3.1. Ensure that incoming personnel execute the same NDA prior to engagement; 8.1.3.2. Promptly notify DepEd in writing of such changes;

Description	End-User's Terms of Reference
	and 8.1.3.3. Guarantee the continuity of confidentiality obligations for personnel who are no longer assigned to the project. 8.1.4. Confidential Information. All information, records, reports, data, communications, and materials, whether technical or non-technical, including but not limited to platform data, links, engagement metrics, dashboards, charts, and any derivative works thereof, shall be deemed Confidential Information owned exclusively by DepEd. 8.2. Obligations of the Service Provider. The Service Provider covenants and agrees to: 8.2.1. Hold all Confidential Information in the strictest confidence; 8.2.2. Refrain from reproducing, transmitting, or disclosing said information, in whole or in part, to any third party without prior written consent of DepEd; 8.2.3. Implement reasonable and appropriate organizational, physical, and technical security measures, consistent with industry-recognized standards (e.g., ISO/IEC 27001:2013, ISO/IEC 27701:2019, NIST Cybersecurity Framework, and related best practices), to protect the confidentiality, integrity, and availability of DepEd data; 8.2.4. Ensure that confidentiality and data protection obligations extend to its subcontractors, affiliates, technology providers, and any third parties engaged in the project; 8.2.5. Permit DepEd or its authorized representatives to audit and monitor compliance, including inspections of facilities, systems, and processes, during the term of the contract; and 8.2.6. Be held jointly and severally liable for any breach of confidentiality committed by its officers, employees, agents, or subcontractors. 8.3. Breach Notification. In the event of any unauthorized disclosure, use, access, loss, or processing of Confidential Information, the Service Provider shall: 8.3.1. Immediately contain the incident 8.3.2. Notify DepEd within twenty-four (24) hours of discovery, 8.3.3. Submit a full incident report within forty-eight (48) hours, and 8.3.4. Cooperate fully with DepEd in mitigation, reporting to the NPC, and remediation. 8.4. Liability. Any unauthorized disclosure, use, or processing of Confidential Information shall subject the Service Provider to administrative, civil, and/or criminal liability under RA 10173, RA 8293 (Intellectual Property Code), RA 8792 (E-Commerce Act), and other applicable laws, without prejudice to DepEd's right to recover actual, moral, exemplary, and consequential damages, as well as to pursue termination of contract, forfeiture of performance security, and blacklisting in accordance

Description	End-User's Terms of Reference
	with government procurement regulations. 8.5. Data Return and Destruction upon Termination or Expiration. 8.5.1. Return of Data. 8.5.1.1. Upon expiration or termination of this Agreement, regardless of the cause, unless renewed, the Service Provider shall, within fifteen (15) calendar days from the effective date of termination or expiration, return to DepEd all Confidential Information, including but not limited to: 8.5.1.1.1. Raw and processed data; 8.5.1.1.2. Reports, dashboards, and analytics; 8.5.1.1.3. Communication logs, call recordings, and ticketing records; 8.5.1.1.4. Any derivative works or outputs generated during the engagement. 8.5.1.2. All returned data shall be provided in the format specified by DepEd (e.g., Excel, CSV, SQL dump, or other structured formats), in both the raw schema and desired schema, and delivered via secure, encrypted channels or physical media, as instructed by DepEd. 8.5.2. Certification of Destruction. Within thirty (30) calendar days following the return of data and confirmation of the successful transfer of data, the Service Provider shall submit a notarized Certificate of Destruction confirming that: 8.5.2.1. All copies of DepEd data, including backups, archives, and temporary files, have been permanently deleted from all systems, storage devices, and third-party platforms under the Service Provider's control; 8.5.2.2. No data has been retained, transferred, or disclosed to any unauthorized party. 8.5.3. Third-Party Compliance. The Service Provider shall ensure that all subcontractors, affiliates, and technology providers engaged in the project fully comply with the data return and destruction obligations. Proof of compliance from such third parties shall be submitted together with the Service Provider's certification. 8.5.4. Audit Rights. DepEd reserves the right to audit the Service Provider's compliance with this clause, including inspection of facilities, systems, and destruction logs, within sixty (60) calendar days from the termination or expiration of the Agreement, unless the Agreement is renewed. 8.5.5. Liability. Any failure to comply with the obligations set forth in this clause shall constitute a material breach of the Agreement and may subject the Service Provider to penalties, including but not limited to the forfeiture of performance security, blacklisting, and legal action under the Data Privacy Act of 2012 (RA 10173) and other applicable laws.

Description	End-User's Terms of Reference
9. Service Level Agreement (SLA)	9.1. This Service Level Agreement (SLA) defines the minimum performance and service delivery standards expected of the Service Provider in implementing and maintaining the DepEd Human Resources Information System (HRIS). 9.2. Implementation Commitments 9.2.1. Implementation Plan: The Service Provider shall submit a comprehensive Implementation Plan within thirty (30) calendar days from the issuance of the Notice to Proceed (NTP). 9.2.2. Module Deployment: All modules identified under the Implementation Roadmap (Personnel Information Management, Applicant Portal, Recruitment, Selection and Placement, Employee Self-Service, Leave and Attendance, Payroll, Performance Management, Learning and Development, Rewards and Recognition, and Employee Wellness and Welfare) shall be included in the Implementation Plan, with full delivery within the agreed project completion date. 9.2.3. Milestone Adherence: The Service Provider shall strictly comply with agreed timelines and milestones. Delays beyond fifteen (15) calendar days without justifiable cause shall be subject to liquidated damages under procurement rules. 9.3. System Availability and Performance 9.3.1. System Uptime: The HRIS shall maintain a minimum availability of 99% uptime, excluding scheduled maintenance periods. 9.3.2. Scheduled Maintenance: Any system downtime for maintenance shall be conducted outside of regular working hours and with at least 72 hours prior notice to the Department. 9.3.3. Performance Standards: Core transactions (e.g., login, record retrieval, form submission) shall be processed within 3 seconds under normal operating conditions. 9.4. Compliance with Regulatory Updates 9.4.1. Adaptability to Policy Changes: The system shall be updated to comply with new or revised issuances from DICT, CSC, DBM, and other oversight agencies within ninety (90) calendar days of issuance. 9.4.2. Interim Compliance: Where system changes cannot be deployed within the prescribed period, the Service Provider shall provide interim compliance mechanisms (e.g., ad hoc reporting, manual workarounds) acceptable to the Department. 9.5. Data Confidentiality, Ownership, and Custodianship 9.5.1. Data Ownership: All data shall remain the exclusive property of DepEd. The Service Provider acts only as custodian. 9.5.2. Confidentiality: Service Provider personnel must sign NDAs;

Description	End-User's Terms of Reference																				
	confidentiality obligations survive for 3 years post-contract. 9.5.3. Security Controls: The Service Provider shall apply industry-standard security frameworks (e.g., ISO/IEC 27001, ISO/IEC 27701, NIST) to safeguard DepEd data. 9.5.4. Breach Notification SLA: 9.5.4.1. Containment: Immediate. 9.5.4.2. Initial Notification: Within 24 hours of discovery. 9.5.4.3. Full Report: Within 72 hours of discovery. 9.5.4.4. Full cooperation with DepEd and NPC is mandatory. 9.5.5. Data Return: Within 30 calendar days of termination or expiration, the Service Provider shall return all data in formats specified by DepEd. 9.5.6. Data Destruction: Within 30 calendar days after data return, the Service Provider shall issue a notarized Certificate of Data Destruction, including proof from subcontractors/third parties. 9.5.7. Audit Rights: DepEd may audit compliance within 60 calendar days of contract end. 9.6. Support and Issue Resolution. 9.6.1. The Service Provider shall provide a helpdesk and technical support team with the following service levels: <table><tr><th>Severity Level</th><th>Description</th><th>Response Time</th><th>Resolution Time</th></tr><tr><td>Critical (P1)</td><td>System-wide outage, payroll failure, or data breach</td><td>1 hour</td><td>24 hours</td></tr><tr><td>High (P2)</td><td>Module unavailability, errors affecting majority of users</td><td>2 hours</td><td>48 hours</td></tr><tr><td>Medium (P3)</td><td>Functional errors with workaround available</td><td>4 hours</td><td>5 working days</td></tr><tr><td>Low (P4)</td><td>Minor issues, cosmetic defects, user queries</td><td>1 working day</td><td>Next release/patch cycle</td></tr></table>	Severity Level	Description	Response Time	Resolution Time	Critical (P1)	System-wide outage, payroll failure, or data breach	1 hour	24 hours	High (P2)	Module unavailability, errors affecting majority of users	2 hours	48 hours	Medium (P3)	Functional errors with workaround available	4 hours	5 working days	Low (P4)	Minor issues, cosmetic defects, user queries	1 working day	Next release/patch cycle
Severity Level	Description	Response Time	Resolution Time																		
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Medium (P3)	Functional errors with workaround available	4 hours	5 working days																		
Low (P4)	Minor issues, cosmetic defects, user queries	1 working day	Next release/patch cycle																		
10. Training and Documentation	10.1. User Training: The Service Provider shall conduct training for end-users, HR personnel, and administrators in line with each deployment																				

Description	End-User's Terms of Reference
	phase. 10.2. Documentation: Updated user manuals, administrator guides, and process documentation shall be provided with each system release or enhancement.
11. Reporting and Monitoring	11.1. Progress Reports: The Service Provider shall submit monthly progress reports during implementation, and quarterly operational reports thereafter. 11.2. Audit Logs: The system shall maintain audit trails of all user activities, data changes, and transactions, retrievable upon request by the Department.
12. Structured Service and Incident Management Capability	12.1. The solution shall include a dedicated Structured Service and Incident Management capability to formalize employee inquiries and manage service delivery. This capability must enforce specific HR governance and compliance standards: 12.1.1. Mandatory Capture: All employee inquiries, requests for service, or incidents related to HR functions (e.g., payroll, benefits, leave, policy clarification, and grievances) must be logged, tracked, and managed exclusively as structured records within this component. 12.1.2. Confidentiality and Data Masking: The system must enforce robust, granular, role-based access controls to ensure that only authorized HR personnel can view specific, highly sensitive data elements (e.g., disciplinary records, medical information, and performance review details) within the service request record. 12.1.3. Data Integration and Context: The Service Request records must be fully integrated with the core HRIS data (Personnel Information Management) to automatically access and present comprehensive employee context relevant to the inquiry (e.g., location, status, job group). 12.1.4. Auditable Workflows: The system shall support the configuration of complex, multi-stage, and dynamic resolution workflows. These workflows must maintain a complete, immutable audit trail for legally-mandated and compliance-critical processes (e.g., formal grievance procedures and workplace investigations). 12.1.5 SLAs and Reporting: The system must support the definition, tracking, and detailed reporting of Service Level Agreements (SLAs) specific to HR service delivery.
13. Structured Service and Incident Management	13.1. The solution must be designed to facilitate the structured management of technical defects and guarantee future interoperability with dedicated support tools.

Description	End-User's Terms of Reference
Capability	13.1.1. Internal Technical Defect Logging: The system must provide an auditable function for HR staff to formally log, classify, and track all verified technical defects (bugs, integration failures) within the Service Management component. This function must support dedicated tracking fields, prioritization (e.g., P1, P2), and reporting of technical issues. 13.1.2. Bi-directional API Support Mandate: The Service and Incident Management component must expose and utilize a RESTful API capable of bi-directional synchronization with any future external technical support platform acquired by the Department. This API capability is mandatory for guaranteeing future integration. 13.1.3. Data Export for Transfer: The system must provide a function to easily export all relevant data (summary, description, attachments, and affected employee ID) from a technical defect record in a structured format (e.g., XML, JSON, or CSV) for transfer to any current or future external support mechanism. 13.1.4 Status Synchronization Readiness: The system must be designed to receive and reflect automated status updates from an external technical support mechanism via the API, maintaining end-to-end transparency on the original HR service request record. 13.1.5 Root Cause Analysis Linkage: The system must include fields and tracking capability to link a Recurring Incident (Bug) to a formal Root Cause Analysis (RCA) record that will be managed by the technical team, supporting continuous service improvement.

STATEMENT OF COMPLIANCE

I hereby commit to provide the above specified requirements in compliance with the Technical Specifications for the Project: **Procurement of Human Resources Information System.**

Name and Signature of Bidder's Authorized Representative

Section VIII. Philippine Bidding Document Related Forms

Notes to the Philippine Bidding Document Related Forms

The Bidder shall complete and submit with its Bid the **Bid Form** and **Price Schedules** in accordance with ITB Clause 13 with the requirements of the Bidding Documents and the format set out in this Section.

When requested in the BDS, the Bidder should provide the **Bid Security**, either in the form included hereafter or in another form acceptable to the Procuring Entity, pursuant to ITB Clause 16.

The **Contract Form** should incorporate any correction or modification to the accepted Bid resulting from price corrections when it is finalized at the time of contract award. The Price Schedule and Schedule of Requirements which form part of the contract should be modified accordingly.

The **Omnibus Sworn Statement** must be completed by all Bidders in accordance with ITB Clause 4.2. Failure to submit it with the Bid shall result in the rejection of the Bid and the Bidder's disqualification.

The **Performance Securing Declaration, if allowed and Bank Guarantee Form for Advance Payment** shall be completed only by the successful Bidder in accordance with one of the forms indicated herein by the Procuring Entity, and pursuant to **GCC** Clause 13 and its corresponding SCC provision.

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Bid Form for Procurement of Goods

[Note: The duly accomplished form shall be submitted with the Bid]

BID FORM

Project Identification No.: 2026C-ICTS2-002-B5-CB-034

To: *[Name of Procuring Entity]*

Having examined the Philippine Bidding Documents (PBD) including the Supplemental Bid Bulletin Numbers *[insert numbers]*, the receipt of which is hereby duly acknowledged, we, the undersigned, declare that:

- a) I/We have no reservation to the PBD, including the Supplemental Bid Bulletins, for the Procurement Project *[Project Title]*;
- b) Select one, delete the other
 - I/We undertake to deliver the Goods in accordance with the delivery schedule in the Schedule of Requirements;
 - I/We offer to execute the Works for this Contract in accordance with the PBD;
- c) The total price of our Bid in words and figures, excluding any discount offered below, is *[insert information]*
- d) The discounts offered and the methodology for their application, if any, are: *[insert information]; or indicate N/A if no discount offered]*
- e) The total bid price in words and figures, after applying the applicable discount, includes the cost of all taxes, such as, but not limited to *[specify the applicable taxes, e.g. (i) value added tax (VAT), (ii) income tax, (iii) local taxes, and (iv) other fiscal levies and duties]*, which are itemized in the *[Select one, delete the other: the Price Schedules/ Detailed Estimates]*.
- f) This Bid shall remain valid within a period stated in the PBD, and it shall be binding upon me/us at any time before the expiration of that period;
- g) If our bid is accepted, I/we commit to enter to a contract and provide a performance security in the form, amounts, and within the times prescribed in the PBD, and hereby acknowledge the consequences under the IRR of RA No. 12009 on forfeiture of Bid Security or enforcement of Bid Securing Declaration and on Blacklisting.

Until a formal Contract is prepared and executed, this Bid, together with your written acceptance thereof and your Notice of Award, shall be binding upon the Bidder.

I/We understand that you are not bound to accept the Lowest Calculated Bid or any Bid you may receive.

I/We certify/confirm that we comply with the eligibility requirements pursuant to the PBD.

The undersigned is authorized to submit the bid on behalf of [Name of the Bidder] as evidenced by the attached [State the Written Authority].

I/We acknowledge that failure to sign each and every page of this Bid Form, including the attached Schedule of Prices, shall be a ground for the rejection of our bid.

Duly authorized to sign the Bid for and behalf of:

[Insert Bidder's Name]

[Signature over Printed Name]

[Position/ Designation]

[Date]

Price Schedule for Goods Offered from Within the Philippines

Name of Bidder _____. Project ID No. _____. Page _ of ____

Pricing Details for Goods Offered from Within the Philippines

1	2	3	4	5	6	7	8	9	10
Lot No.	Description	Source of Domestic Product, as certified by the Relevant Agency	Quantity	Unit price exw per item	Transportation and all other costs incidental to delivery, per item	Sales and other taxes payable if Contract is awarded, per item	Cost of Incidental Services, if applicable, per item	Total Price, per unit (col 5+6+7+8)	Total Price delivered Final Destination (col 9) x (col 4)
1 lot	Human Resources Information System		1 lot						

Summary of Bid Prices

The Procuring Entity may modify the table below as necessary to comply with the requirements of the Procurement Project.

1	2	3	4
Item No.	Item	Particulars / Description	Total Amount

Name: _____

Signature: _____

Duly authorized to sign the Bid for and behalf of: _____

Price Schedule for Goods Offered from Abroad

Name of Bidder _____ . Project ID No. ____ . Page _ of ____

Pricing Details for Goods Offered from Abroad

1	2	3	4	5	6	7	8	9
Item	Description	Country of origin	Quantity	Unit price CIF port of entry (specify port) or CIP named place (specify border point or place of destination)	Total CIF or CIP price per item (col. 4 x 5)	Unit Price Delivered Duty Unpaid (DDU)	Unit price Delivered Duty Paid (DDP)	Total Price delivered DDP (col 4 x 8)

Summary of Bid Prices

The Procuring Entity may modify the table below as necessary to comply with the requirements of a specific Project.

1	2	3	4
Item No.	Item	Particulars / Description	Total Amount

Name: _____

Signature: _____

Duly authorized to sign the Bid for and behalf of: _____

Section VIII. Philippine Bidding Document Related Forms

LIST OF ALL ONGOING GOVERNMENT & PRIVATE CONTRACTS INCLUDING CONTRACTS AWARDED *BUT* NOT YET STARTED

Business Name : _____ *Business Address* : _____

Contact No. : _____ *Email Address* : _____

Name of Contract/ Project Cost	Owner's Name a. Address b. Telephone Nos.	Nature of Work	Bidder's Role		Date Awarded a. Date Started b. Date of Completion	% of Accomplishment		Value of Outstanding Works/ Undelivered Portion
			Description	%		Planned	Actual	
<u>Government</u>								
<u>Private</u>								

Note: (In case of no ongoing contract, the bidder shall submit this duly signed form and indicate **"No ongoing contracts" or "None" or "Not Applicable (N/A)"** under the Column for Name of Contract (first column from left)

Submitted by: _____

Printed Name and Signature of Authorized Representative

Designation: _____

Date: _____

STATEMENT IDENTIFYING THE SINGLE LARGEST COMPLETED CONTRACT

Business Name : _____ *Business Address* : _____

Contact No. : _____ *Email Address* : _____

Name of Contract	a. Owner's Name b. Address c. Telephone Nos.	Nature of Work	Bidder's Role		a. Amount at Award b. Amount at Completion c. Duration	a. Date Awarded b. Contra ct Effectivity c. Date Completed d. Contract Performance certified by End User
			Description	%		
<u>Government</u>						
<u>Private</u>						

Submitted by : _____

(Printed Name and Signature) Designation

Date : _____

: _____

Joint Venture Agreement Form

KNOW ALL MEN BY THESE PRESENTS:

That this JOINT VENTURE AGREEMENT is entered into By and Between _____, of legal age, (civil status), owner/proprietor of _____ and a resident of _____.

- and -

_____, of legal age, (civil status), owner/proprietor of _____ and a resident of _____.

THAT both parties agree to join together their manpower, equipment, and what is needed to facilitate the Joint Venture to participate in the Eligibility, Bidding and Undertaking of the hereunder stated project to be conducted by the (Name of the Procuring Entity).

NAME OF PROJECT	CONTRACT AMOUNT

That both parties agree to be jointly and severally liable for the entire assignment.

That both parties agree that _____ and _____ own the share and interest of _____ and _____ [indicate percentage of shares] respectively

That both parties agree that _____ and/or _____ shall be the Official Representative of the Joint Venture, and is granted full power and authority to do, execute and perform any and all acts necessary and/or to represent the Joint Venture in the bidding as fully and effectively and the Joint Venture may do and if personally present with full power of substitution and revocation.

THAT this Joint Venture Agreement shall remain in effect only for the above stated Projects until terminated by both parties.

Done this _____ day of _____, in the year of our Lord _____.

SIGNED IN THE PRESENCE OF:

WITNESS

WITNESS

REPUBLIC OF THE PHILIPPINES) S.S.
PASIG CITY, METRO MANILA)

A C K N O W L E D G M E N T

BEFORE ME, a Notary Public in and for Pasig City, Metro Manila, Philippines, this _____ day of _____, 201_ personally appeared:

GOVERNMENT-ISSUED
IDENTIFICATION CARD

NAME

Number

Issued on

Issued at

_____	_____	_____	_____
_____	_____	_____	_____
_____	_____	_____	_____

Known to me and to me known to be the same persons who executed the foregoing instrument and acknowledged to me that same is the free and voluntary act and deed of the entities which they respectively represent.

The foregoing instrument is a JOINT VENTURE AGREEMENT consisting of__ pages (exclusive of attachments), including this page on which this acknowledgment is written and signed by the parties hereto and their instrument witnesses on the left hand margin of each and every page hereof.

WITNESS MY HAND AND SEAL on the date and place first above written.

NOTARY PUBLIC
Until December 31, 20__

Doc. No. ____
Page No. ____
Book No. ____
Series of 20____

NET FINANCIAL CONTRACTING CAPACITY (NFCC) FORM

- A. Summary of the Applicant Supplier's/Distributor's/Manufacturer's assets and liabilities.

		Year 20__
1.	Total Assets	
2.	Current Assets	
3.	Total Liabilities	
4.	Current Liabilities	
5.	Net Worth (1-3)	
6.	Net Working Capital (2-4)	

- B. The Net Financial Contracting Capacity (NFCC) based on the above data is computed as follows:

NFCC = K (current asset – current liabilities) minus value of all outstanding works under ongoing contracts including awarded contracts yet to be started

NFCC = P _____

K = 15 regardless of contract duration

Submitted by:

Name of Supplier / Distributor / Manufacturer

Signature of Authorized Representative

Date : _____

Contract Form

[Note: The duly accomplished form is not required to be submitted with the Bid but shall be submitted within ten (10) days after receiving the Notice of Award]

CONTRACT FOR [Insert Project Title]

This CONTRACT executed on the ____ day of _____ 20____ by and between:

[Name of Procuring Entity], a government agency of the Republic of the Philippines, hereinafter called “the Entity”;

-and-

[Name of Supplier / Contractor/ Consultant] a company duly organized and existing under the laws of [city and country], with principal office at [insert address], hereinafter called “the Supplier”.

WHEREAS, the Entity invited Bids for certain goods and services/works/consulting services, particularly *[Brief description of Project]*;

WHEREAS, the Supplier/Contractor/Consultant submitted a responsive bid and was awarded the contract for the procurement in the total amount of *[Contract price in words and figures, including currency]*, hereinafter referred to as the “Contract Price.”

NOW, THEREFORE, for and in consideration of the foregoing premises, the parties hereby agree as follows:

1. Unless otherwise stated, terms and expressions used in this Contract shall have the same meanings as those assigned to them in the Conditions of Contract, which form an integral part of this Contract.
2. The following documents as required by the Implementing Rules and Regulations of Republic Act No. 12009 shall form part and be read and construed as integral parts of this Contract, *viz.*:
 - a. Philippine Bidding Document (PBD); *[Select one, delete the others]*
 - *For Procurement of Goods*
 - i. Invitation to Bid;
 - ii. Instruction to Bidders;
 - iii. Bid Form, including all the documents/statements contained in the Bidder’s bidding envelopes, as annexes, and all other documents submitted (e.g., Bidder’s response to request for clarifications on the bid), including corrections to the bid, if any, resulting from the Procuring Entity’s bid evaluation;
 - iv. Bid Data Sheet;
 - v. Schedule of Requirements;
 - vi. Technical Specifications;
 - vii. General and Special Conditions of Contract;

- viii. Supplemental Bid Bulletins, if any; and
 - ix. Other contract documents that may be required by existing laws and/or the Entity.
- *For Procurement of Infrastructure Projects*
 - i. Drawings/Plans;
 - ii. Specifications;/Scope of Work;
 - iii. Bill of Quantities;
 - iv. General and Special Conditions of Contract; and
 - v. Supplemental Bid Bulletins, if any;
 - *For Procurement of Consulting Services*
 - i. General and Special Conditions of Contract;
 - ii. Terms of Reference;
 - iii. Request for Expression of Interest;
 - iv. Instructions to Bidders;
 - v. Bid Data Sheet;
 - vi. Addenda and/or Supplemental/Bid Bulletins, if any;
 - vii. Bid forms, including all the documents/statements contained in the Bidder's bidding envelopes, as annexes, and all other documents/ statements submitted (e.g., bidder's response to request for clarifications on the bid), including corrections to the bid, if any, resulting from the Procuring Entity's bid evaluation;
 - viii. Eligibility requirements, documents and/or statements;
 - ix. Performance Security;
 - x. Notice of Award of Contract and the Bidder's *conforme* thereto; and
 - xi. Other contract documents that may be required by existing laws and/or the Entity.
- b. Winning bidder's bid, including the Eligibility Requirements, Technical and Financial Proposals, and all other documents or statements submitted;
 - c. Performance Security;
 - d. Notice of Award of Contract; and the Bidder's *Conforme* thereto; and
 - e. Other contract documents that may be required by existing laws and/or the Procuring Entity concerned in the PBD, such as but not limited to the Notice to Proceed and Warranty Security.
- 3. In consideration of the Contract Price of [*Contract Price in words and figures*], or such other sums as may be determined in accordance with the terms of the Contract, the Supplier/Contractor/Consultant agrees to deliver and perform the items and related services for the [*Project Title*] described herein in accordance with the terms and conditions specified in the Contract and its annexed documents.
 - 4. The [*Name of the Procuring Entity*] agrees to pay the above-mentioned sum to the Supplier/Contractor/Consultant in accordance with the schedule and manner provided in the Bidding Documents and its annexes.

5. Any dispute, difference, or claim arising out of or relating to this Contract, including its existence, validity, interpretation, breach, or termination thereof, may be submitted to arbitration or other form of alternative dispute resolution in accordance with the applicable law, such as Republic Act No. 9285 (Alternative Dispute Resolution Act of 2004) or Executive Order No 1008, series 1985 (Construction Industry Arbitration Law).

IN WITNESS WHEREOF, the parties hereto have caused this Contract to be executed in accordance with the laws of the Republic of the Philippines on the day and year first above written.

For the Procuring Entity

Head of the Procuring Entity or Duly
Authorized Representative

For the Bidder

Duly authorized to sign the Contract for
and behalf of *[Bidders Name]*:

[Signature over Printed Name]
[Position/ Designation]
[Date]

[Signature over Printed Name]
[Position/ Designation]
[Date]

Signed in the presence of:

[Name and Signature]
Witness – Procuring Entity

[Name and Signature]
Witness – Supplier

ACKNOWLEDGMENT

BEFORE ME, A Notary Public for and in the _____,
City/Province of _____, this _____ day of _____, 20____,
personally appeared the above-named persons who have satisfactorily proven to
me their identity, through their identifying documents written below their names
and signatures, that they are the same persons who executed and voluntarily
signed the foregoing instrument consisting of ____ pages, including this page
where this Acknowledgement is written, which they acknowledged before me as
their free and voluntary act and deed.

WITNESS MY HAND AND SEAL this ____ day of *[month]* *[year]*.

NAME OF NOTARY PUBLIC

Notarial Commission No. _____
Notary Public for _____ until _____
Roll of Attorneys No. _____
PTR No. __, *[date issued]*, *[place issued]*
IBP No. __, *[date issued]*, *[place issued]*

Doc. No. _____
Page No. _____
Book No. _____
Series of _____

Omnibus Sworn Statement Form

[Note: The duly accomplished form shall be submitted with the Bid]

REPUBLIC OF THE PHILIPPINES)
CITY/MUNICIPALITY OF _____) S.S.

OMNIBUS SWORN STATEMENT

I, *[Name of Affiant]*, of legal age, *[Civil Status]*, *[Nationality]*, and with residence at *[Address of Affiant]*, after having been duly sworn in accordance with law, do hereby depose and state that:

1. *Select one, delete the others:*

- *If sole proprietorship:* I am the sole proprietor or authorized representative of *[Name of Bidder]* with office address at *[Address of Bidder]*;
- *If partnership, corporation, cooperative, or joint venture:* I am the duly authorized and designated representative of *[Name of Bidder]* with office address at *[Address of Bidder]*;
- *If individual consultant not registered under a sole proprietorship, in case of Consulting Services:* I am the individual consultant or authorized representative of *[Name of Bidder]* with office address at *[Address of Bidder]*;

2. *Select one, delete the others:*

- *If sole proprietorship:* As the owner and sole proprietor or authorized representative of *[Name of Bidder]*, I have full power and authority to do, execute and perform any and all acts necessary to participate, submit the bid, and to sign and execute the ensuing contract for *[Project Title]* of the *[Name of the Procuring Entity]**[insert “as supported by the attached duly notarized Special Power of Attorney” for authorized representative]*;
- *If partnership, corporation, cooperative, or joint venture:* I am granted full power and authority to do, execute and perform any and all acts necessary to participate, submit the bid, and to sign and execute the ensuing contract for *[Project Title]* of the *[Name of the Procuring Entity]*, as supported by the attached duly notarized Special Power of Attorney, Board/Partnership Resolution, or Secretary’s Certificate, whichever is applicable;
- *If individual consultant not registered under a sole proprietorship, in case of Consulting Services:* As the individual consultant or authorized representative of *[Name of Bidder]*, I have full power and authority to do, execute and perform any and all acts necessary to participate, submit the bid, and to sign and execute the ensuing contract for *[Project Title]* of the *[Name of the*

Procuring Entity], as supported by the attached duly notarized Special Power of Attorney for authorized representative;

3. *[Name of Bidder]* is not “blacklisted” or barred from bidding by the Government of the Philippines or any of its agencies, offices, corporations, or Local Government Units, foreign government/foreign or international financing institution whose blacklisting rules have been recognized by the Government Procurement Policy Board; by itself or by relation, membership, association, affiliation, or controlling interest with another blacklisted person or entity;
4. Each of the documents submitted in satisfaction of the bidding requirements is an authentic copy of the original, complete, and all statements and information provided therein are true and correct;
5. *[Name of Bidder]* is authorizing the Head of the Procuring Entity or its duly authorized representative(s) to verify all the documents submitted;
6. *Select one, delete the others:*
 - *If sole proprietorship* : The *[Name of Bidder]* and its spouse are not related by consanguinity or affinity up to the third civil degree to the Head of the Procuring Entity, Procurement Agent (if engaged), End-User or Implementing Unit, project consultants, head of the Project Management Office, or the members of the Bids and Awards Committee (BAC), the Technical Working Group, and the BAC Secretariat;
 - *If partnership* : The partnership itself and the partners of *[Name of Bidder]* are not related by consanguinity or affinity up to the third civil degree to the Head of the Procuring Entity, Procurement Agent (if engaged), End-User or Implementing Unit, project consultants, head of the Project Management Office, or the members of the Bids and Awards Committee (BAC), the Technical Working Group, and the BAC Secretariat;
 - *If cooperative*: The cooperative itself and members of the board of directors, general manager, or chief executive officer of *[Name of Bidder]* are not related by consanguinity or affinity up to the third civil degree to the Head of the Procuring Entity, Procurement Agent (if engaged), End-User or Implementing Unit, project consultants, head of the Project Management Office, or the members of the Bids and Awards Committee (BAC), the Technical Working Group, and the BAC Secretariat;
 - *If corporation, or joint venture*: The corporation or joint venture itself, and officers, directors, and controlling stockholders of *[Name of Bidder]* are not related by consanguinity or affinity up to the third civil degree to the Head of the Procuring Entity, Procurement Agent (if engaged), End-User or Implementing Unit, project consultants, head of the Project Management

Office, or the members of the Bids and Awards Committee (BAC), the Technical Working Group, and the BAC Secretariat;

- *If individual consultant not registered under a sole proprietorship, in case of Consulting Services:* The individual consultant and its spouse are not related by consanguinity or affinity up to the third civil degree to the Head of the Procuring Entity, Procurement Agent (if engaged), End-User or Implementing Unit, project consultants, head of the Project Management Office, or the members of the Bids and Awards Committee (BAC), the Technical Working Group, and the BAC Secretariat;
7. It is understood that failure to faithfully disclose its relationship with the Head of the Procuring Entity, members of the BAC, the TWG, and the BAC Secretariat, the head of the PMO or the end-user unit or implementing unit, and the project consultants of the Procuring Entity, or of the procurement agent by consanguinity or affinity up to the third civil degree, as well as its submission of beneficial ownership information containing false entries shall be subject to blacklisting under Section 100 of the Implementing Rules and Regulations (IRR) of Republic Act (RA) No. 12009, without prejudice to criminal and civil liabilities under applicable laws, including their accessory penalties, if any.

Select one, delete the rest:

- *In case of corporations:* [Name of Bidder] declares its beneficial ownership information consistent with its updated General Information Sheet or Beneficial Ownership Declaration Form or any other document duly submitted to the SEC and has maintained a valid and updated file therein in compliance with Sections 20.2.9.1, 81, and 82 of the IRR of RA No. 12009.
 - *In case of Foreign Bidders:* [Name of Bidder] submitted an appropriate equivalent document in English issued by the country of the bidder concerned in accordance with Section 20.2.9.2 of the IRR of RA No. 12009.
8. [Name of Bidder] complies with existing labor laws and standards; and
9. [Name of Bidder] is aware of and has undertaken the following responsibilities as a Bidder:
- a) Carefully examine all of the Bidding Documents;
 - b) Acknowledge all conditions, local or otherwise, affecting the implementation of the Contract;
 - c) Made an estimate of the facilities available and needed for the contract to be bid, if any; and
 - d) Inquire or secure Supplemental Bid Bulletin(s) issued for the [Project Title].

10. *[Name of Bidder]* did not give or pay directly or indirectly, any commission, amount, fee, or any form of consideration, pecuniary or otherwise, to any person or official, personnel or representative of the government in relation to any procurement project or activity.
11. In case advance payment was made or given to *[Name of Bidder]*, failure to perform or deliver any of the obligations and undertakings in the contract shall be sufficient grounds to constitute criminal liability under existing laws.

IN WITNESS WHEREOF, I have hereunto set my hand this ____ day of ____, 20__ at _____, Philippines.

Duly authorized to sign the Bid for and behalf
of:

[Insert Bidder's Name]

[Affiant's Signature over Printed Name]

[Position/Designation]

[Date]

JURAT

SUBSCRIBED AND SWORN to before me this ____ day of *[month]* *[year]* at *[place of execution]*, Philippines. Affiant/s is/are personally known to me and was/were identified by me through competent evidence of identity as defined in the 2004 Rules on Notarial Practice (A.M. No. 02-8-13-SC). Affiant/s exhibited to me his/her *[insert type of government identification card used]*, with his/her photograph and signature appearing thereon, with no. _____.

WITNESS MY HAND AND SEAL this ____ day of *[month]* *[year]*.

NAME OF NOTARY PUBLIC

Notarial Commission No. _____

Notary Public for _____ until _____

Roll of Attorneys No. _____

PTR No. __, *[date issued]*, *[place issued]*

IBP No. __, *[date issued]*, *[place issued]*

Doc. No. _____

Page No. _____

Book No. _____

Series of _____.

Bid Securing Declaration Form

[The duly accomplished form shall be submitted with the Bid if bidder opts to provide this type of bid security]

REPUBLIC OF THE PHILIPPINES)
CITY/MUNICIPALITY OF _____) S.S.

BID SECURING DECLARATION

Project Identification No.: 2026C-ICTS2-002-B5-CB-034

To: *[Insert name of the Procuring Entity]*

I/We, the undersigned, declare that:

- 1) I/We understand that, according to your conditions, bids must be supported by a Bid Security, which may be in the form of a Bid Securing Declaration;

[Insert paragraph for Unsolicited Offer with Bid Matching]

I/We understand that upon conferment of the original offeror status under Section 30.6 of the Implementing Rules and Regulations (IRR) of Republic Act (RA) No. 12009, the offeror shall submit a Bid Securing Declaration within ten (10) days from the receipt of the certificate of conferment;

- 2) Select one, delete the other:
 - I/We accept that: (a) I/we will be automatically disqualified from bidding for any procurement contract with any Procuring Entity upon receipt of your Blacklisting Order; and, (b) I/we will pay the applicable fine provided under the Guidelines on the Use of Bid Securing Declaration, within fifteen (15) days from receipt of the written demand by the Procuring Entity for the commission of acts resulting to the enforcement of the Bid Securing Declaration under Sections 52.2 (a), 63.2, 69.1 and 100, except 100.3 (c), of the IRR of Republic Act No. 12009; without prejudice to other legal action the government may undertake; and

(For Unsolicited Offer with Bid Matching)

- I/We accept that: I/we will be automatically disqualified from any procurement opportunity of the Procuring Entity for a period of one (1) year on the first offense, two (2) years on the second offense, and perpetually on the third offense without prejudice to other legal action the government may undertake.
- 3) I/We understand that this Bid Securing Declaration shall cease to be valid on the following circumstances:

- a) Upon expiration of the bid validity period, or any extension thereof pursuant to your request;
- b) I am/we are declared ineligible or post-disqualified upon receipt of your notice to such effect, and (i) I/we failed to timely file a request for reconsideration or (ii) I/we filed a waiver to avail of said right;

[Insert this paragraph for Unsolicited Offer with Bid Matching]

- b) Upon contract award and the LCCRB is not the original offeror; or
- c) I am/we are declared the bidder with the *[Insert Award Criterion¹]* and I/we have furnished the performance security and signed the Contract.

IN WITNESS WHEREOF, I/We have hereunto set my/our hand/s this ____ day of *[month]* *[year]* at *[place of execution]*.

Duly authorized to sign the Bid for and behalf of:

[Insert Bidder's Name]

[Signature over Printed Name]

[Position/Designation]

[Date]

JURAT

SUBSCRIBED AND SWORN to before me this ____ day of *[month]* *[year]* at *[place of execution]*, Philippines. Affiant/s is/are personally known to me and was/were identified by me through competent evidence of identity as defined in the 2004 Rules on Notarial Practice (A.M. No. 02-8-13-SC). Affiant/s exhibited to me his/her *[insert type of government identification card used]*, with his/her photograph and signature appearing thereon, with no. ____.

WITNESS MY HAND AND SEAL this ____ day of *[month]* *[year]*.

NAME OF NOTARY PUBLIC

Notarial Commission No. _____

Notary Public for _____ until _____

Roll of Attorneys No. _____

PTR No. __, *[date issued]*, *[place issued]*

IBP No. __, *[date issued]*, *[place issued]*

Doc. No. _____

Page No. _____

Book No. _____

Series of _____.

Sealing and Marking of Bids

Documents	Original	Copy 1	Copy 2	USB Flash Drive	Component	Bid
Technical	 	 	 	 		
Financial	 	 	 	 		
ITB Clause 27.1 Post-Qualification (Optional advance submission on Bid Opening)	 	 	 	 		

Illustration 1

[ORIGINAL / COPY NO.] ____ - _____ [COMPONENT/DOCUMENTS]

Procurement Project: [PROCUREMENT PROJECT TITLE]

Bidding for: LOT/ITEM/ETC. ____[number]____ - [ITEM DESCRIPTION]

[BIDDER'S COMPANY NAME]

[COMPANY'S PhilGEPS-REGISTERED ADDRESS]

[COMPANY'S OTHER CONTACT INFO phone, fax, email, website, social media]

[The Chairperson]

Bids and Awards Committee [____]

c/o BAC Secretariat Division

Procurement Management Service

Department of Education

Room M-512, 5th Floor, Mabini Building, DepEd Complex, Meralco Avenue, Pasig City

Telephone Numbers: 8636-6542 or 8633-9343

Email address: depedcentral.bacsecretariat@deped.gov.ph

BACSD Microsite: <https://www.deped.gov.ph/bac-secretariat/>

BACSD Facebook Page: <https://www.facebook.com/ph.gov.deped.procms.bacsd>

Project Number [PROJECT NUMBER]

DO NOT OPEN BEFORE [DATE AND TIME OF BID OPENING]

[VENUE OF OPENING OF BIDS]

Illustration 2

**DepEd Central BAC Secretariat
Microsite**



DepEd Central BAC Secretariat Microsite



**DepEd Central
BAC Secretariat**

Follow us on Facebook!



BAC Secretariat Division
Procurement Management Service
Department of Education
Room M-512, 5th Floor, Mabini Building
DepEd Complex, Meralco Avenue, Pasig City
Telephone No.: (02) 8633-9343; 8636-6542
Email Address: depedcentral.bacsecretariat@deped.gov.ph
BACSD Microsite: <https://www.deped.gov.ph/bac-secretariat/>
BACSD Facebook Page: <https://www.facebook.com/ph.gov.deped.procms.bacsd>

Republic of the Philippines



Government Procurement Policy Board